

City Council Regular Meeting Transcript – 5/21/2026

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[10:00:07 AM]

>> Good morning everybody, it's 10 o'clock in the morning on May 21st 2026, and I will call to order this regular meeting of the Austin city council. We are meeting in the city council chambers located in city hall at 301 west second street in Austin, Texas. We have a quorum of the city council present. Let me say for the record that two council members will not be present. Council member harper-madison will not be present and council member Fuentes will not be present. So I will not. Each time I call out a vote, call out that fact. I just want to make it clear for the record that both of them have good reason to be out today. With that being said, let me walk you, everybody, through the order of business for the day, and then I'll read changes and corrections in the record. The order of the day is we're going to do things just a slightly differently than what we have grown accustomed to because of timing issues. And I'll make note of that here in just a second. The first item we're going to take up today

[10:01:07 AM]

will be item number 12. We're taking that up because we need to have that approved by a certain time today if we're going to approve it so that we can provide notice correctly for third reading on may 28th, 2026. We will then go to our consent agenda. Members, the items that have been pulled from the consent agenda are obviously item number 12. Item seven, item 16, and item 23. We will hear speakers on the consent agenda, and then we will go as soon as we can to those other items. We of course will at noon we will have our 12:00 time certain which is public general public communication at 1230. We will have an executive session. The executive session will be on item number 16, item number 16. And we're doing that to accommodate a schedule with outside counsel on that matter. So we will have that at 1230.

[10:02:07 AM]

And normally we would have music, but we're not going to have music. So we will we will go into executive session at 1230. We will come out of executive session and take up item 16. We will then go to the other items. As I've indicated, we also have a number of non consent items and they are public hearings items 54, 5556 item 57 has been postponed until may 28th, 2026 and item 58, 59 and 60 members. We will have a. Our 2:00 zoning matters. Typically, that gets put off a little bit depending upon what's going on during the day. But whatever we're doing, whatever we're doing at 2:00, we're going to pause whatever we're doing and we're going to take up some zoning matters. We're going to take up item 61, 62, 63, 64, 60, 76, 73, and

[10:03:07 AM]

seven. I mean, maybe it's 70, 73 and 74. We're going to take those up because they are being postponed. And we need to take them up as close to 2:00 as we can so that we have them done. So again, notice can be properly provided. I'll pay attention to that. But I just don't want anybody to be surprised about what we're doing when we do things maybe a little bit out of order on those with that, unless there's questions. Let me read the changes and corrections into the record items nine and ten have been withdrawn. Item 54. When public hearings are taken up, this item will be postponed indefinitely. That's what I just read into the record. No, actually, I read 57. Item 54 will be postponed indefinitely. Item 57 will be postponed to may 28th, 2026. So for the record, when public hearings are taken up, this item will be postponed to may 28th, 2026. Again, let me reiterate we are

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pulling off the consent agenda. Item number seven, item 12, item 16, and item 23. Again, unless there are questions. What I will do now is we will go to item number 12, and I'll turn to the city clerk for to call if there are any speakers.

>> There are no speakers on item 12.

>> Members. There are no speakers on item number 12. So the chair will entertain a motion with regard to item number 12. Mayor pro tem moves approval. It is seconded by council member duchen. Is there discussion on the item? Hearing none. Without objection, item number 12 is approved and I'll say it this one last time with councilmember Fuentes and council member harper-madison absent. And that's probably the last time I say that I do not have any information. If somebody on council member Laine staff will let me know

[10:05:12 AM]

whether she is. Well, there she is. Sorry. Council member Laine do you want to vote on item number 12? All right. With councilmember Laine temporarily off, the item, number 12 is adopted. That will now take us to the consent agenda, and I will turn to the city clerk to call for speakers on the consent agenda.

>> First speaker on item two is Zenobia Joseph. After miss Joseph, we have bill bunch on item three. Next, Mr. Bunch is heading on in.

>> We'll go ahead and call on four so people can make their way down. Mr. Bunch, your name has been called if you want to talk.

>> Additionally, on item number four, we have Paul Robbins, Craig Nasr, Nancy Keller. Please make your way down.

[10:06:13 AM]

>> If your name has been called, please come forward. Have you already donated according to our rules? No, no.

>> We don't have any time donations.

>> We have no time donations. So Mr. Robbins will have two minutes. Go ahead. Mr. Bunch, you were called on a previous item. So if you want to talk on number three, you're welcome to. I.

>> I think I'll pass on three. Sorry, I missed number two.

>> Well, you weren't signed up for number two. You were signed up for number three. If you're passing on number three, then we'll go to number four.

>> Mayor, this was pre-arranged two days ago and well, do not.

>> When you pre-arranged it with each other, it doesn't really work. You have to pre-arrange it with the city clerk's office.

>> Mr. Naser's trying to

[10:07:15 AM]

reconcile this right now.

>> Well, we're in a council meeting right now. That's why we have rules to allow for you to do this beforehand. And if. And so you have two minutes.

>> Which is not really enough time to do this.

>> Well, that's why we provide for people to donate time following the rules.

>> Which I've tried. Council. I questioned the last battery contract vote on May 7th, and maybe some council members were confused as to my reasoning. The common assumption is that if Austin wants to support renewable energy, storage is essential. So why would we question it? And let me show you why. Given the time I'm going to ask, move to the next slide. Next slide. Next slide. Next slide. Next slide. Okay. This is a chart that basically

[10:08:15 AM]

shows that Austin energy's three battery contracts are estimated to cost between 10 and \$0.19 per kilowatt hour. But batteries will only save seven. \$0.07 per kilowatt hour with arbitrage, and the utility could probably build it for \$0.08. The actual cost of power in ERCOT was \$0.04, and I've asked publicly what is going on. Slide. Austin energy refuses to describe the business model that makes these storage contracts, economic assets. Austin energy lacks transparency. Two days ago, I showed how the utility was hiding the effects of residential rate increases. Now they are hiding the battery contract justification. The

[10:09:17 AM]

public deserves better. Council. The staff at Austin energy does not own the utility. The people in this room do.

>> Thank you, Mr. Robbins.

>> Continuing on item four, we have Nick Wang, Jen Robichaud, Kaiba White, Elisa Hammond.

>> Your name has been called. Please come forward.

>> Good morning council. I'm speaking right now about the 20 year contract for battery storage agreement. And from what I've seen, the theme of.

>> Today, we know who you are, but you need to state your name for the record.

>> Thank you. I'm Jen Robichaud, Austin resident. And, you know, I think we see a theme here on the Austin energy agenda that we're really looking at diversifying our generation portfolio. And I think that's important for reliable and resilient grid. And I know you've seen a lot of pushback on these issues. So I'm not challenging the actual battery

[10:10:17 AM]

storage concept. I think more so what I'm looking at is why are we looking at such a large long term contract on the battery storage? 20 years is a lifetime in the realm of battery technology. We've seen huge strides just in the last decade, and I expect that we'll see a lot more in the next decade to come. Even in our own city, we have innovators in this field, and a lot of people in the community are surprised that not only are we not turning to those providers for this, but that we are contracting ourselves for so long. And so I think when we look at this, we really want to balance between, you know, getting a better term for a longer time period of commitment versus having the flexibility to adapt to changing technology that we might come across in the next 5 to 10 years. So I encourage you to just look at this a little more closely, not question that this is the right contract right now, but question whether it'll be the right contract in

[10:11:18 AM]

5 to 10 years and see if we can reduce the length of this contract just to give us more options in the future. Thanks.

>> Thank you.

>> Good morning. My name is Elisa Hammond. I'm in district nine, and I'm up here to share more information about the potential of batteries. Because we have such a revolution going on at this time last year in Minnesota, the power utility excel energy proposed a new program called capacity connect that would have it deploy 200mw of battery storage, not in the form of large utility scale installations, but smaller chunks distributed through the grid like Lego blocks of different sizes, some placed atop commercial and industrial buildings like big box stores. Others can be in the backyard of a faith community the size of a shipping container, each generating that kind of income for those locations. While we continue to grow our infrastructure and promote resilience and reliability,

[10:12:19 AM]

this introduces a new chapter in the history of the U.S. Electricity grid and for our economy more broadly. And I hope you will explore this cutting edge cost saving program. I emailed you, mayor, and all the city council person about the article. Today I'm with third act and our energy expert who is out of the country, emailed me this information just this morning. This is also taking place by the southern company utility in Georgia. And I think that we will begin to see this because the price of batteries has dropped so significantly. So. And as we see fossil fuels increasing. So I think it's just so important before we make \$1 billion investment that locks us into fossil fuels, we look at this opportunity. Can we create a battery standard offer like we have solar standard offer so that the money stays in our communities and supports all levels of

[10:13:21 AM]

businesses? Thank you very much.

>> Thank you, miss white.

>> Good morning, mayor and council members. My name is kaiba white. Speaking on behalf of public citizen's Texas office. We do support passage of this item, and I want to point out that there is some good basic information included in this rca, including the company and the amount of the investment, as well as the time duration and a few other details. We do think that this will be in the benefit of Austin energy customers and move towards meeting the established goals in the Austin energy resource plan. However, I do see in the additional backup information that it states that this will allow the utility to exceed its goals, but I would just call to attention that the delivery date is for 2030, not for 2027. So I don't think that the goal is actually going to be impacted. And so that does mean that there is actually still additional capacity needed by 2027 to meet that goal. So I would encourage you to keep

[10:14:22 AM]

asking questions of Austin energy and keep encouraging them to move forward with additional storage to make sure that that 125mw is installed. I know we have 100mw coming about the end of the year. That's all. Thank you.

>> Thank you.

>> All in-person speakers for item four have been called. I'll move on to remote. We have Cyrus reed on item four.

>> Hey, good morning, mayor and city council. This is Cyrus reed representing the Sierra club. Today. We are very much in support of item number four, and I wanted to thank all of you for your work on the Jen plan, as well as Austin energy. What's important about this contract is it's a direct result of the some of the amendments that were placed by both my city council member, council member zo to get us to higher levels of storage, but also by council member Velasquez to make sure we did

[10:15:23 AM]

an. All of the above rfp, that all of the above rfp resulted in this project. We are well aware of the oci energy, which is a, you know, a valid company and has done a lot of work in the San Antonio area, both on solar and storage. So we think it makes sense. I'll sort of add to what other folks said and say that I hope in addition to the Jupiter contract and this contract and the base power contract, we will look in the future at longer duration storage, because I think we now have will have two hour storage for our storage. And really kind of the holy grail for storage will be, you know, longer duration storage with new

technologies. So I hope that you guys will continue to ask Austin energy to keep that as a tool for the future, because I think it ultimately will be of benefit to everyone and might reduce the need for fossil fuel generation. So with that, just wanted to thank the

[10:16:24 AM]

city council and Austin energy for bringing this contract forward. Thank you.

>> Mr. Reed. You're also signed up on item five. Would you like to begin on item five right now?

>> Oh, sure. Again, item five is a contract for wind with invenergy, which if I got the name right, which is, you know, a well-known company based out of Chicago, they've got projects all over the world. If you've ever driven to Lubbock, you've driven by these two facilities, ones near goldweights. The other is kind of just east of Lubbock. Their existing wind generation facilities. We know their profiles, we know they work, adopting these and incorporating them into our generation plan will move us closer to that 65% renewable by 2027 goal. I don't think it quite gets us there, but it gets us a lot closer. So again, this went through an rfp process. We know the approximate cost. We know where

[10:17:25 AM]

these are located. They're actually existing facilities. So we think it's a good idea for Austin ratepayers and will be beneficial towards meeting our goals but also providing energy. And they're close enough. So they shouldn't be subject to all the congestion congestion we're seeing further west of there. So I think it's a good idea. And on behalf of Sierra club Cyrus reed, we support it. Thank you.

>> Back to in-person item five. We have kaiba white.

>> She's passing.

>> Next we have. In person Nancy Crowther on item six. Okay. Item seven has been pulled off consent. So we will move on. Item nine, Jeffrey Bowen. Oh, apologize. That's

[10:18:27 AM]

been withdrawn. Item 11 bill William bunch.

>> Good morning, mayor council bill bunch, executive director, Sara springs alliance district five. This item is approving \$1 billion of debt for the walnut creek wastewater treatment plant expansion. I've dressed you on this before. Recognize, of course, that there's some good things that would go along

with this expansion, upgrading treatment of the wastewater itself, though not near enough to meet the kind of standards we should be meeting for. Discharges to the Colorado river. Given the in particular,

[10:19:28 AM]

the heavy nutrient loads in that wastewater. But as I've said before, we're never going to have enough water to convert into sewage for this expansion. This is not an urgent item. And in a time of fiscal constraints, you should be doing everything you can to conserve water upstream, create less sewage flowing to this plant so that we don't have to expand it now. And if we get to the point where we do need an expansion, that it's a much smaller one for a whole lot less money, you know, we're in a different world now with water availability. You all should be aware of that. Our highland Lakes don't have the water that we've always thought were there on a firm annual yield basis. We've really got to translate, translate, transition to

[10:20:28 AM]

treating this wastewater upstream on site, especially the large water users, and not pumping it all the way to a plant that can't handle it and shouldn't be called on to handle it. And we shouldn't be called on to pay for it as ratepayers. Thank you.

>> Next is kaiba white on item 19.

>> She's passing on 19.

>> Jen Robicheaux, item 28.

>> Good morning, city council. I'm Jen Robicheaux, Austin resident, and I'm speaking on item 28, which is \$45 million for five year contract for playground equipment and maintenance. And one of the things that comes to light

[10:21:29 AM]

looking through the backup is that this is a lot of money that we don't have. I do appreciate very much, council member duchen catching the fact that the backup didn't replace all of this funding was coming from, and luckily we've gotten some of those answers, which looks like basically, we're just hoping that this is going to be in future budgets available to us. And while Austin wants to invest in our parks, we have hundreds of millions of dollars in deferred maintenance right now. And as a parent, I love playgrounds. But what we really need as a city are safe playgrounds. And it's not clear from this contract whether or not the maintenance is to improve safety concerns or if it's to install new, prettier

equipment. And with that in mind, and with the budget constraints that we will be facing, I think it's shortsighted for us to be approving such a long term, so much just for playgrounds when this these dollars could be spent more carefully in other places within our park system. So I urge you to vote no on

[10:22:30 AM]

this. So that way we have more flexibility when it comes time to budgeting in September and August, sorry, in July and August. Thank you.

>> Next on item 30 we have Katie Kamm on deck for item 32. We have rich Heyman and Zenobia Joseph.

>> If your name has been called please come forward.

>> Hello I am Katy Kamm resident of district nine. This item is to provide advanced traffic control or traffic signal cabinets for new modified and aging traffic signals. I'm speaking against this item because the city should commit to retiring traffic signals. The studies have shown that roundabouts are the safest intersection design option, with dramatic reductions in crashes, injuries, and fatalities. Because roundabouts are safer, that reduces the need for ems, fire and police to respond to car crashes, which reduces emergency response costs. Roundabouts also do not require electricity or 247 operations,

[10:23:32 AM]

so we will save money on electricity operations and maintenance. I'll give an example of Carmel, Indiana. They've had a since the late 90s, getting rid of their traffic signals and moving to roundabouts. So as traffic signals age, rather than replacing with new signals, let's replace them with roundabouts. So I would say, let's not move forward with this and start actively making this a safer city. Thank you.

>> As rich Heyman or Zenobia Joseph here for item 32. Okay, moving on to item 35, we have Jeffrey Bowen and Emily Blair.

>> You got me all out of order

[10:24:33 AM]

this morning, Mr. Mayor.

>> Well, I'll I'll take the blame for it, mister.

>> No. That's okay. Hey, life is nothing is another three ring circus here, right? So I'm here to talk about item 35, Jeffrey Bowen. Morning, ladies and gentlemen, Mr. Mayor, council members, I saw item 35. And I just want to say I am all for this. I just don't want you guys to screw this up, because there's going

to be, you know, there often is one point, almost \$1.5 million, and it's going to cost us roughly 350 million. And for some reason, I know there will be at some point that there'll be a threat to take this money away from us. So please don't screw this up.

>> Just since we're talking about screwing things. You said 350 million, but you meant 350,000.

>> Yes, sir. I'm sorry. Yeah, I have new cat. I got my cataracts done.

>> So I just want to make sure none of us are screwing up.

[10:25:34 AM]

Mister.

>> I understand it's it's all money at some point in time, but. Yeah, 350,000. Thank you sir. Appreciate that. So I really think because we have had an issue with auto thefts lately. Thank you sir. I appreciate the laugh. That's good too. And but we really need to make sure that we're cracking down on the amount of auto thefts that we have and the burglaries and break ins. And hopefully this money can be used the proper way and start trying to take care of a lot of the issues that we have with the the amount of car break ins across the city. Thank you, Mr. Mayor, for correcting my math there. Again, thanks for your time.

>> Thank you. Mr. Blair, are you here? She's passing.

>> Okay. Moving on to item 36 remotely, we have Monica Guzman.

>> Good morning. Hopefully y'all can hear me.

>> Yes, ma'am. We can.

>> Monica Guzman. Okay. Thank

[10:26:35 AM]

you. Mayor Monica Guzman Paulson, director of dawa. Go. Austin. Austin, we have drafted a letter. No data centers, defense contractors or other damaging development on the Colorado river, Garza and many others in the community. Residents from every single district across the city, all ten of them organizations have signed on. We are urging you to postpone activity on item 38 as related items 39 and 60 at least. Move 38 and 39 to non consent. Item 38 is too big of a deal. Unlimited development regulations with most zoning uses allowed variances to code that would be authorized by the director of development services. Their sole discretion. No public hearing, no vote from you. The council that is denying the community's public

[10:27:36 AM]

process. We have the right to tell you where we stand on the issue, whether we're for it or against it, or anywhere in between. You are surrendering council authority for 45 years, not only this current council, but obviously future ones. You're compromising community equity in an area that has experienced years of disinvestment and environmental injustices, and you're giving the developer or developers tax break that many people cannot afford to do. They can pay for it. We need you to take the time, pull it back, postpone and put it through the public process. The planning commission, the environmental commission, we sent you an updated letter with all the sign ons, but I want to add a few who came on since I sent an update later at 943 this morning. Three have been added on.

>> Thank you speaker. Lianes expired.

>> Thank you, miss Guzman.

>> From district three.

[10:28:39 AM]

>> Moving on to in-person item 36. Marion, I'm going to call several names. Please make your way to the front and state your name for the record before you begin. Marion Sanchez, Adrian Macias, Susana Almanza, Bianca Guerrero, Carlos pinon, Maddie. Gutierrez, Valerie. Menard, Pedro. Hernandez. Junior. William. Bunch. Tia mahealani.

>> If your name has been called, please come forward. Otherwise, we're going to assume you're not here to speak or waiving your right 38 or 36, 36. Okay, please go ahead. Keep calling names.

>> Sreekar. Nalluri, Lauren Moraga, felicity. Maxwell, Brad. Massengill, jordi Tello, Emily Blair. Please state your name for the record before you begin.

>> Great. Felicity Maxwell, d5

[10:29:40 AM]

resident or a board member. Good morning, mayor and council members here to speak on item 36 and the efforts to update and revise the language. Chapter 418 ensuring tenant protections and right to organize is a critical element of our ongoing housing work, and we appreciate staff's work on this item. With regard to these changes, we would urge staff to clarify some of the updates, specifically parts eight and 11, which, while necessary, are written very broadly and in somewhat vague way. As a result, these sections could be applied to ill effect in the future, which is clearly not the intent of the these revision efforts in order to make the process. The proposed changes abundantly clear on what this means. There

should be a rule making process with a comprehensive list of what will be required under this section of the code that involves stakeholders. This will rebuild trust in the process in this section, and ensure that such input is heard, documented and incorporated into the final version of chapter 418. Thank you.

>> Let's start with you. And then we'll just work our way down to Mr. Massingill.

>> Good morning, mayor, city

[10:30:41 AM]

council members. Basically, I had it for for 60, but I'm going to go ahead on 36. And so a lot of this zoning reminds me of the east Riverside corridor master plan that was done. And if you remember, in order to do the the bonus, there were over seven, 1700 residents displaced. And a lot of this was affordable and low income housing. And so to me, this ends up a red flag of what is going to be happening. Even though this is supposed to be city wide, what really happens is where are the most vulnerable populations at? And what would happen to those vulnerable populations, which we've already witnessed and lived through. Also, I have a question because in the Riverside corridor plan, you had five different zoning categories corridor, mixed use, industrial mixed use, neighborhood mixed use, and urban residential and neighborhood residential. And then you had identified four

[10:31:42 AM]

hubs within the Riverside corridor, which allowed you to go from 60 to 160ft. So my concern is that if you already have those designated when you're talking about the base zoning, are you then saying you can go 30ft above 160ft? You know, those are the questions because you're you're now adding 30ft as part of the whole bonus density bonus. And so those are major concerns for me because I've already witnessed what happened to the east Riverside corridor master plan. And then also too, because now you'll be creating these canyons in our communities where you have, you know, 120ft, 160ft going off straight down. And I want to talk about environmental impact on having these canyons in our communities, whether they're impact, the impervious cover, the erosion, the flooding, the air quality in our community. So this density bonus really concerns me. Thank you.

[10:32:42 AM]

>> Thank you. Please.

>> Good morning, mayor and council members. My name is Emily Blair. I'm speaking today on item 36. While we appreciate Austin or council's ongoing efforts to improve chapter 418 and support the goal of ensuring the density bonus applicant requirements are clear, effective, and aligned with Austin's

housing priorities. And we do support the proposed amendments related to certification and approval of development applications. However, we are concerned that several provisions in item 36 extend beyond the intended scope of these updates and were introduced without meaningful stakeholder engagement. The revisions to section C and G, we do support. What we do not support is the broad language presented in the amendments to other sections today on item 36, specifically related to a lease addendum and quote any city code requirement related to tenant protections, end quote. And the on site relocation specialist. Given the scope and potential impact of these changes, we believe these issues should move through a transparent stakeholder process

[10:33:43 AM]

that includes housing providers, residents, staff and community stakeholders. And we believe item 80 today provides the appropriate path for that discussion. So for these reasons, we respectfully ask council to approve the amendments solely in sections C and G on 418 and remove the additional proposed language until a broader stakeholder process can occur. Thank you.

>> Thank you. Hello.

>> My name is jordi Tello, resident of district nine. I just wanted to speak in support of item 36. Thank you.

>> Thank you, Mr. Massingill.

>> I'm Brad Massingill, I'm a member of the Austin neighborhood council representing sector nine, which is far south Austin. I'm here speaking for myself. I know y'all been trying to deal with the state laws that have been passed down regarding all this stuff, but rushing to, to, to do all this stuff is seems to be what we're doing when we're

[10:34:44 AM]

not including the community and some of this stuff, some, some of this stuff. I'm, I'm really. Just the things about. You know, the sorry, let me get my, my, my act together here. The whole idea of, of a letting. Not having let me, let me back up when we're, when we're talking about these density bonuses in plus 30 plus 45 plus 90. This is all industry facing language. This isn't stuff that's user friendly. I'm worried that when we're talking about these things in in these minimalistic terms, that the general public isn't going to have enough alarm to be questioning this until it's too late, that things are going to pop up in people's yards, their backyards that are instead of being 30 or 45ft tall, that it kind of

[10:35:46 AM]

seems like when you're getting one of these notices, it's actually going to be the base height of whatever's allowed there. Plus that that's, that's a big difference for the public. You know, I understand it makes it easier for to sell this as a density bonus program, that this is something you can add on to a property that you already have. It adds value to it and it's going to. The only stipulation is you got to do these things to supply quote unquote, affordable housing.

>> And thank you, Mr. Massingill.

>> All in-person speakers for 36 have been called. We'll move on to item 38 remote, starting with Monica Guzman, item 38.

>> Miss Guzman.

>> We'll go to the next speaker and we'll try to get back here.

[10:36:47 AM]

>> Hang on a second. What item number are you on?

>> 38.

>> 38.

>> Okay. Well, then let me finish. What I was saying is I wanted to make sure all people, organizations that signed on to the letter, and I think I ended it. Hands off central Texas. I also want to add that some questions were drafted and sent to at least one council member. And fortunately, I don't have them in front of me. But basically, council member duchen posted a. Or added a modified question on the council Q and a on the agenda page, and it would have been better if the actual questions asked had been posted either on the council message board or in the Q and a, and those questions. Which I don't have in front of me. Well, I will

[10:37:48 AM]

send those again to the full council. But basically there's too many questions. Lack of transparency. We need you to postpone item 38, 39 and 60, put it through a public process, give the people a chance to see more of what's going on and be able to speak on it. Thank you.

>> Max Hausman, item 38.

>> Hello? Can you hear me?

>> Yes.

>> Hello? Can you hear me?

>> Yes we can.

>> Okay. Hello. My name is max Horstman. I'm speaking to you as a resident of district four and a recent graduate of UT master's in community and regional planning program. I'm urging you to institute a public process for the annexation of the dog's head, specifically for items 38, 39, and 60, and put this item

[10:38:50 AM]

through the planning and environmental commissions. At a minimum. I understand that there's a sense of urgency to ensure this area is annexed into the city's tax base, and it is also clear that the deal has been in the works behind closed doors for many years. Okay. I'm urging you all to please put a study on that and create a public process around the situation. Specifically councilors. Please ask more questions around the impervious cover limits and the agreement. Why should this area that largely sits within a floodplain along the Colorado river have 100% impervious cover, no impervious cover limits? That not only impacts the dogs head area, but also surrounding areas that are made then much more vulnerable to flooding. And seeing that much of that agreement has no impervious cover limits, it basically disregards the well-being of the people of Austin and the environment. So please ask about that. In the ensuing discussion, taking measures to mitigate

[10:39:51 AM]

environmental harm before it happens can save millions of dollars. So instead of creating the conditions for the Colorado to flood surrounding areas by paving over everything, you could require the dog's head to abide by the same land development code standards as the rest of the city of Austin, which can range from 40 to 45% up to 80%. But I don't think anywhere else is that 100% impervious cover. Also, why should we be planning for golf courses next to the river? That kind of thing is the opposite of environmental stewardship. It's just spelling environmental destruction further and further, we can see how this economic development plan, how this impervious cover relates to the economic development plan.

>> Next, we have Rafael Schwarz on item 38.

>> Good morning. Rafael Schwarz speaking for the Austin Sierra club. We're extremely concerned about this dog's head agreement, which, as I understand, has been negotiated behind closed

[10:40:52 AM]

doors without the typical public input via the city commission's sensible development would be welcome. But there are many red flags here. We especially want to echo concerns that the agreement leaves the city with nearly zero control over the future use of the site for generations to come. This is a pristine stretch of a truly beautiful river ecosystem and riparian zone, and a deal that allows 92% of these 2600 acres to be developed with impervious cover seems extremely problematic. This is a site that's nearly four times as large as the Miller development. At the very least, it should go through the normal, transparent city process for development, and the agreement should be modified to negotiate protections for the community, for our water supply and for other environmental concerns. Thank you for your time.

>> Next, we have Heather on item 38. Heather, are you there?

[10:41:55 AM]

We'll move on to the next speaker, Daniela Silva, item 38.

>> My name is Daniela, and I'm speaking as a resident of district three. I'm urging you, mayor and council, to postpone today's vote in order to slow down the process to allow for review by the planning and environmental commission. Austinites made it clear that we don't want data centers, AI infrastructure, or defense research being subsidized by our tax dollars. These industries must be explicitly barred from being built on this piece of land, which shouldn't be much of an issue if they're just wanting to build a new domain. Wright. I also strongly urge you to take seriously the water crisis that we're facing in our state. Any development that takes place on one of the most pristine and biodiverse sections of the Colorado river must be mindful of the percentage of impervious cover and actually have limits and any activities that could lead to toxic chemical runoff.

[10:42:57 AM]

Additionally, anything built should include purple pipes, water catchment systems and any other technology to reduce the amount of water being consumed and utilized by the development. Our water tables and lakes are barely able to supply the existing population of Austin, developing even more without seriously prioritizing water conservation and reuse would be highly irresponsible. Let's not wait until we get in as bad of a situation as Corpus Christi before we make water conservation and usage our number one priority. Preventative policies are always better than curative ones, so I please urge you to postpone item 38 and related items 39 and 60 to ensure public process, including reviews by the planning commission, environmental commission and any other boards, and please amend the development agreement language to preclude use by data centers and defense contractors. Thank you.

>> We're going to try Heather Jerrel again, item 38, item 38,

[10:44:02 AM]

item 3830.

>> Would you go to the next speaker? Thank you. I'm not sure I could have handled two minutes of that.

>> Okay. Moving on to in person for item 38, we have Marianne Sanchez. I'm going to call a lot of names. So if you hear your name, please make your way to the front. Marianne Sanchez, Julie Oliver, Adrian Macias, Susana Almanza, Bianca. Guerrero, Carlos pinon, Maddie. Gutierrez.

>> Please go ahead and begin. Okay.

>> I'm Julie Oliver, resident of d9 and here to speak against item 38 and ask you to pull from consent and then vote no on this. The 45 year development agreement is being considered in a broader environment, where the public has watched the mayor exert heavy pressure on city council members during meetings. And at least one council member has

[10:45:02 AM]

described that dynamic as vindictive. When there is a disagreement, that context matters. When you're being asked to approve something of this scale. Over 2600 acres, long term tax increment financing, public incentives, and a framework that clearly positions this land for major industrial users. Just two weeks ago, this council discussed recruiting industries like defense and data centers. Now we're looking at a proposal that aligns directly with that goal without a full, transparent public conversation about what that means for our community long term. When you connect this to item seven, the pattern becomes clear. Land use and energy policy are being aligned to support energy intensive development with irreversible environmental and infrastructure consequences. The public deserves to know that these decisions are being made independently, not under pressure. This agreement is too large and too consequential to move forward without that assurance. Many of you are up for reelection and voters will hear this clearly. You are opening the door to water intensive data centers and approving fossil fuel power

[10:46:03 AM]

plants to fuel them. Thank you.

>> Good morning, mayor Watson and city council members. My name is Adrian Macias, and I'm the youth coordinator for Perez young scholars for justice, our Walkes program. I'm here today to ask you, our elected representatives, to postpone items 38, 39 and 60 to allow for more consideration by the community and the relevant city commissioners commissions. This is a massive development that will undoubtedly have an impact of the environmental. But we cannot know the extent unless there is more

transparency and review by staff and commissioners to find out. As I mentioned, I am a Shea project coordinator. It's a program where students learn about history, culture and government, international environment, including testing the water and the Colorado river, which I have been doing with my colleagues every month at two locations as part of Icara crown programs since 2024. Putellas recently celebrated its 35th anniversary, and I remember sharing a sharing during an interview of co-op

[10:47:04 AM]

radio that when I was first participated in the Y as a teenager, I learned. I learned how people we like can make decisions that will affect our lives. And that's important to get involved in community, to pay attention to what's happening, and to vote. On June 1st. Our 12th Y Shea class will begin, and like me, they will learn about the government some. For the first time. I would like to say to them with confidence that our elected officials who consider themselves true public servants, will listen to their constituents and try to make decisions that will improve the quality of life. Please listen to us today and postpone these items to give our community more time to consider the impact this development will have on the river, but also on the people that live in the neighborhoods within the dog's head and the lower Colorado river. Thankyou.

>> Good morning, mayor council members. My name is Carlos pinion, the resilience program coordinator at poder. And I'm urging you to postpone items 38 and related items 39 and 60 to ensure public process,

[10:48:04 AM]

including reviews by the planning and environmental commissions and other relevant boards. Furthermore, please amend the development agreement language to preclude use by data centers and defense contractors. I'm just going to echo some of the points made in that letter by Garza, signed by myself, community based organizations, and residents from every district. This draft agreement establishes very few, if any, development regulations, essentially guaranteeing the developer whatever they want to build. This draft agreement also includes research, testing facilities and allows autonomous vehicle and boat testing appealing to military contractors looking to use public waterways. If you had been paying attention to a campaign that poder ran in coalition with other organizations against saranac, this is not something that we're all at all interested in. We mobilized over about 600 people to submit public comments against the air permit that they were trying to essentially, you know, build and pollute on top of area Nick's montopolis. And so I do want to reiterate that this is not really something that the community wants. Approximately 90% of the acreage can be

[10:49:05 AM]

developed with 100% impervious cover, which to me is also astounding, granted that yesterday we were at the environmental commission and no mention of this was given despite a lot of the conversation on other items being around the effects of impervious cover on flooding on urban heat island, on the erosion of the Colorado river. So there are many dimensions to this that I think the community is not at all interested. This neighborhood is also long suffered from environmental injustice and disinvestment. So this draft agreement will, of course, exacerbate these inequities. And then the city would be committed to establish a tax increment reinvestment zone so the developer can get both property tax and sales tax credits to put towards the infrastructure we need that redirected to other things like social services and libraries and public safety. Thank you.

>> Good morning, city council. I'm Suzanne Almanza with poder, and I'm also requesting that

[10:50:06 AM]

you postpone item 38, 39 and 60. And I'm also suggesting that you put a leash on this dog. Yeah, you need a leash on this dog because it has really gone crazy. And the dog's head, you're talking about providing reimbursements to the dog head owners and you're talking about approval of a non zoning variance. Administratively. You're living you're leaving out the public participation in this process. Even though they talk about affordable housing. There's nothing that says at what mfi are we talking about 80. Are we talking about 100% median family income. Also you talk about right of right of way fees not being applicable in this development, not to mention the 100% impervious cover. So this particular 38, 39 and 60, like I said, you need to put a stop, you need to put a leash on this dog's head. It's out of control. Thank you.

>> Continuing on item 38, we

[10:51:08 AM]

have Valerie Menard with two minutes donated from Roy Whaley. Valerie and Roy, are you here?

>> Okay.

>> Valerie, you'll have four minutes. Pedro Hernandez Jr, David Weinberg, Craig, nazer, you're on deck.

>> Please come down. If your name has been called.

>> Good morning, mayor Watson. And city council members. My name is Valerie Menard. I live in district one, and I'm the project director for poder Colorado river conservancy. And here today to urgently request that you postpone items 38, 39 and 60 to allow for more citizen input and review by experts at the watershed protection department on such an impactful development along the. The lower Colorado river in east Austin. Speaking for the conservancy, we have the following concerns that we feel should go to the following boards and commissions for review. Setting impervious. Impervious cover at 100%. Unrestricted flood. Floodplain modifications and green

[10:52:09 AM]

lighting. Extensive development within the shrunken critical water quality zone should be reviewed by the environmental commission. Plus, there are zero environmental protections offered for the Colorado river in this plan. While the developer claims this plan will provide affordable housing, there are no specifics offered, but units priced at 80% mfi are not affordable housing, and allowing golf cart paths does not inspire confidence. What do we know about the residents living in the dog said or nearby? A quick look at the census shows that there are nearly 1000 residents in the 78742 zip code, which includes the dogs head. Most of the homes there were built in the 1950s and are valued at \$100,000. Average household size is three persons. Average income per household is \$74,000, and the cost of monthly rent, including utilities, ranges between 200 and \$1000. This doesn't sound like a community that will survive a massive development, even modeled after the domain, but rather one that

[10:53:10 AM]

will be obliterated by displacement and gentrification. This issue should be reviewed by the community development commission. Why would you even consider annexing this property and then surrender city control for 45 years? Why would you give tax credits to a developer without requiring any oversight or community benefits? Why would you smooth the process for connecting this water hog of a development to Austin water? And if it's annexed, what district will it come under? One, 2 or 3? Even though it won't matter for 45 years, this effort to annex the property then cede city authority over it, adding tax credits as the cherry on top puts the integrity and ethics of this body in serious question, please pump the brakes on this development and allow for transparency and public input. Thank you.

>> Yes.

>> Craig nazer, conservation chair, Austin Sierra club. So there was a climate protection plan and we were part of it,

[10:54:10 AM]

Sierra club, but we submitted as a part of that climate protection plan, a minority report. And I don't think many people read it. I was one of the authors. And what it says, essentially, is that climate change is going to be worse than we can predict because it's it's stochastic, it's not going to be linear. It's not even going to be logarithmic. We're going to come out of these tipping points, and we're not going to be able to predict that very well. Such a big development right next to the river doesn't make much sense because regardless of what anyone says, if a big flood comes down the Colorado river, and I have seen it where they had to open all the ports of the of the Mansfield dam and let all the water out because it

had it was going to top it up. If that happens, who's going to pay for that? We are the city of Austin. Taxpayers

[10:55:12 AM]

are going to pay for that. And you want to do this behind closed doors without any commission or anything? I mean, I don't know, I go to those commission meetings because I care. I don't get paid a cent. I've been on commissions, don't get paid a cent to do that because I care about this city and what kind of future we're going to have. So I would ask you to delay these and go through the normal process. We do let the citizens speak. Because if you don't do that, that's just another bit of climate change denial. We can do it. I mean, of course you get a tax. You know, you get you're going to get all these taxes. If you develop it in the short run, it's short run, stupid and long or short run smart. Maybe in long range stupid. So please don't do it.

>> Hello. Good morning, council members and mayor David Weinberg from district five. So

[10:56:13 AM]

I'll give you that. This project, it looks to me like it is something that there could be more beneficial uses to the land than there currently are also much needed revenue for the city, although I think, you know, Jack Kramer in his newsletter had a pretty good discussion on that yesterday in terms of looking at exactly how much and when. I want to

>> Just make a couple quick points on on process. I was listening to the city council work session on Tuesday, and I heard city staff describe this as an opportunity. That quote fell out of the sky, and I was a little confused because then later in the meeting, I heard the applicant for the owner say that this is something they have been working on for seven years, and I can see a little bit of daylight in between those two things. This, this, this, this does feel like an agenda item that fell out of the sky. It's quite a large project. It is. It is quite

[10:57:14 AM]

substantial in terms of its many impacts on the city. I think it would be more prudent to put this before the relevant city councils, and not take a quick vote on this before your summer recess. So I would ask you to please delay this project, put it through sort of the more normal channels of how city government works. Thank you.

>> Continuing on item 38, we have Dennis Kirwan with time donated from Jodie Kirwan. Are they both present? Okay. Richard Subtle, Elizabeth Levins, Chris Paige, William Bunch.

>> Your name has been called. Please make your way forward.

>> Is Dennis here? Is Jodie, here.

>> Is Joey. Joey's here.

>> Okay. Yep.

>> Four minutes. You have four minutes, sir. Mayor? Yes.

>> As the speakers are getting seated, may I request to be.

[10:58:15 AM]

Noted as a yes on item 12?

>> Yeah. When we finish. When we finish this, we'll go. I'll go to that. Thank you.

>> Thank you so much.

>> Please go ahead. You ready? Yeah.

>> I'm Dennis Kirwan. I've lived in at 912 Dalton Laine in the area known as the dog's head for 49 years. And I'm excited to see the dogs had finally get developed to its full potential. And and I'm 100% for it. I have a few concerns, though, on the proposed development agreement. First, I'm concerned with the concrete crushers and the concrete batch plants. It looks like they're going to get a waiver where they can put it within 500 to 100ft of a home. There's a lot of dust comes off them. I've been around them for many years. I ran half that place for a long time. I was ranch foreman. The dust in the silica from them does not need

[10:59:15 AM]

to be near anybody's home. They need to be kept back away from everybody. That's a very big problem right there, and it should never happen. Second, I'd like to talk about the impact on the local streets with the traffic. The agreement shows that the developers will have no responsibility to improve the streets outside the development. Dalton Laine is already too narrow for safe travel. We've already got all 18 wheelers running in and out of there for all these years with the dirt, sand and gravel, I've witnessed it. I've seen wrecks where they've run, hit the off the bridges more than once. A lot of it doesn't get reported. They pull each other out and go on. But when you when you meet an 18 wheeler, those bridges are too narrow. They might seem like they're legal, but when they're. And when there's two of them coming and I live right there on Dalton Laine. So I see the traffic back up. When they get to those bridges, they need to be fixed and need to be widened and fix that traffic. And then

[11:00:15 AM]

second of all, we need to consider the drainage. Everybody here seems to be worried about flooding. Well, the flooding comes out of Austin. It's a little bit too late when it already gets to the to the Doggett area. The other flooding would be the Colorado river, and I've seen it flood too. When the Gates are all open and it doesn't do anything but come up a certain amount, and that's going to all be in their environmental stuff. So, I mean, that's not going to be a problem with the development. I'm for the development, you know that. But the flooding coming from Carson creek. They let me see where I'm at now. I got off on my my rant. It's. If they've already blocked part of the 100 year floodplain in the 380 acres the developers did, and they put a levee across it. There was, I was told for 20 years that there was a 100 acre feet that backed up into that field. It came back up in there anymore.

[11:01:16 AM]

So we need help to do something with where that water is going to go. I believe that's our obligation. It looks like the agreement requires a regional storm plan, but keep in mind the agreement specifically states that the plan will not include any property outside of the development. It will have no dedicated drainage easements inside the development. We need a true regional storm plan that accounts for the land in the development and also relieves the flooding in the surrounding area, which has already been made worse by this project. Dedicated drainage easements should always be a part of the project for later later problems for getting the drainage through it. We've we've run into that problem already over on Dalton Laine with trying to get the water out of there coming from Carson creek. And also on the topic of drainage, I see they have a land swap agreement in there talking about. Well, I think that's a very good idea and has a lot of potential. The city of

[11:02:17 AM]

Austin can swap the acreage it owns on Thompson Laine, which I know they got at a very good price years ago from the ranch and swap it to the developer. In exchange, have the developer fix the channel. Am I through.

>> You are. You are. Yes.

>> You can't give me another minute about it.

>> No, can't do that.

>> Well I'm sorry. Thank you. That was four minutes.

>> That was four minutes.

>> Okay.

>> Thank you. Appreciate you being here. Thank you, Mr. Bunch. Why don't you begin then we'll. Hear from you.

>> Bill bunch, executive director of save our springs alliance, speaking against this rush to development agreement. The posting is improper. There's lots of things that are missing. It talks about negotiation and execution authority for the city manager. But you've actually posted the draft agreement with a whole lot of late backup, 3836 pages, single spaced. You're, as I

[11:03:18 AM]

understand it, limiting us to speak to two minutes, which is supposed to be the minimum under your ordinance, not what's appropriate when you have a hugely complicated 45 year deal like this. So I would urge you to right now, start giving speakers more than two minutes, 4 or 5 at least, to be compliant with the Texas public information act. This is truly offensive. You know, y'all must feel a little bit uncomfortable with Mr. Suttle, who none of you ever vote against, with perhaps the exception of council member duchen outing you by saying, oh, this has been in the works for seven years, but now somehow we don't have time to go through the board and commission process that your city charter and your ordinances require you to do, and that if you care about public engagement, if you care

[11:04:19 AM]

about transparency, if you care about the river and water quality, if you care about not subsidizing the rich at the expense of the rest of us, then you wouldn't be doing this. And you certainly wouldn't be considering this without doing what's required by your own procedures. It's particularly offensive if you compare it to your rain to river on item 45, which calls a completely different approach to this item.

>> Thank you, Mr. Bunch. Yes.

>> Good morning, mayor and council members. My name is Elizabeth Levins and I live on hergatz Laine in the dog head neighborhood. I'm here to oppose items 38, 39 and 60 as currently presented. This. This process has moved too quickly and without adequate transparency. Neighbors learned about major changes affecting our homes and community at the last minute. I respectfully ask you to postpone this action,

[11:05:22 AM]

postpone this proposal. So proponent action so this proposal can undergo full public review, including independent floodplain and traffic studies, so residents have meaningful notice and input. I'm also deeply concerned about the impact on existing homeowners. The the proposed widening of hergatz road to approximately a 92 foot right of way could take yards and potentially homes. Please do not approve residential takings unless absolutely necessary. Explore alternatives that avoid condemning homes and protecting the people who already live here. The current agreement also places too much long term risk on taxpayers without sufficient enforceable guarantees from the developer before any vote require clear milestones, independent review and stronger protections for the public. Finally, strengthen environmental protections now, not later. Do not allow reduced

[11:06:24 AM]

water quality setbacks, excessive impervious cover or unlimited floodplain modifications without strong safeguards and accountability. If this project truly serves the public interest, it can withstand additional review, transparency and community engagement. I urge you to postpone these items, require the necessary studies, and work collaboratively with adjacent residents before any final approval. Thank you.

>> Thank you.

>> Continue on. Item 38. Continuing on item 38, we have Janice Bookout, Eric Paulos, Kim Vasquez, Daniel low, srikar nalluri.

>> If your name has been called, please come forward.

>> Bobby levinski. With time donated by Betsy Greenburg and Barbara Macarthur on item 38 is are all three people present? Okay. You will have. Mr. Levinski will have six minutes when he begins.

[11:07:25 AM]

>> Please begin.

>> Good morning, mayor, city council, my name is Shryock Ernie. I'm a resident of district nine. I am offering comments on item 38. Registered as neutral. I originally grew up in Houston, which has seen a lot of annexation centers in the past. And so based on that experience, I've seen that annexation for the purposes of tax revenue is always like a popular option. But we have to be careful because it can easily go the other way where it becomes a drag on us, because if we choose to annex it, and then we choose to build wide roads, let it sprawl out, then we get a short term boost of tax revenue, but then we have to pay for all the maintenance of that in the future. And you know, it's not the best use of that land. We're basically subsidizing

[11:08:26 AM]

with that tirz the tax money like all the roads that they need. But on the other hand, if we choose to, you know, if we are going to put that tirz like subsidy money in, we should ask for it to be something that will benefit the city. Something like Mueller is probably the best example that we have, just because that's one of the good examples I have. But you know, any other type of example where we let it build up into something more productive and more hopefully environmentally friendly, then that'll be better. So please, as you execute the agreement and, and talk about the a smp modifications which was mentioned in there, which, which is what had me concerned that we take that into account. Thank you.

>> Thank you, Mr. Levinsky. Why don't we start with you and we'll work our way down?

>> Bobby Levinsky.

>> Save our springs alliance. Speaking against items 38, 39, 60. This is a disaster of an agreement. We've seen a lot of problems that have been caused by sb 2038, the bill that

[11:09:27 AM]

allows people to remove themselves from the city's extraterritorial jurisdictions. But I don't think we've ever seen an agreement where the city shoots themselves in the foot so hard. You are actually annexing this property to remove more restrictive county regulations. I've never seen that before, and I think it is really horrible. It's kind of like a turning the dog head into a middle finger to east Austin. Considering all the efforts we've been we've made to try to restore the environmental injustices that have occurred in this area, and the reason why part of the dog's head property is in a state where it's at right now. We need to be moving forward on environmental restoration activities, not agreeing to an agreement that would allow 45 years of locked in development regulations, 100% impervious cover in all of the developable area. That's over 2300 acres of impervious cover for this property that's entirely within the floodplain. You are going

[11:10:28 AM]

to make changes to one of the most ecologically sensitive stretches of an urban river in the entire state of Texas, and you're going to prevent any future council for 45 years from correcting this mistake with one week's notice. You haven't sent this agreement through the boards and commissions process. You have experts in these boards and commissions that can help you make wise decisions. You have a fantastic environmental commission right now that's really well balanced. This should be going before them to give you advice on the standards that could apply to this property to make the situation better, not worse. And on top of that, you're guaranteeing this developer tax breaks, tax breaks that you don't give to other people. Taxes are here to, to, to provide libraries, to provide public service, to provide

social services for people, not to hand them out to billionaires that already have enough money themselves. Really upset about this one because we're in a conversation right now where there's a tech oligarchy taking over parts of Texas, and this agreement has

[11:11:29 AM]

no protections in place that would prevent a use like a military contractor to be built on the site. I don't think any of your residents would want that. I don't think any of your voters would want that. And when it happens, would you have no control of after this date? They're going to be asking you why you weren't asking those questions on why it wasn't prohibited on this site, why you're giving them tax breaks, serrano or serrano continuing the name of the company. Wrong. Serrano technologies. There's language in here that indicates that it's for a there's a permitted use for auto automotive testing and boat. Anyway, it's it's it's an ai type of use that would allow for boat testing for basically, it's a military contractor that does drone drones for the military, for a drone boats for the military. It was a permit that was just withdrawn because there was air quality concerns from the residents. And as an earlier speaker noted, 600

[11:12:30 AM]

speakers came out to speak against it, that in that use that's in there is exactly the way that they they described that use as well. You would be permitting that on this site by not just taking three months, send it to the boards and commissions, postpone this. There is no rush other than the developer's pocketbooks on this item. You have an etj right now in place that it has not been. The property has not been removed from it. I think there's also some valid questions on whether they would even have the the right to remove themselves from the etj issues that are being discussed behind the scenes that are not being taken accounted for. You have cut out the public, you have cut out the boards and commissions and you have cut out, I'm going to say, the elephant in the room, you've cut out your own city staff in evaluating this proposal. It was negotiated by behind closed doors by city management and the lobbyists, not your city staff. That takes into account their job, their professional

[11:13:31 AM]

responsibilities to protect the city. And on top of this, right now, there's not even a pre briefing to the public to let them know what's in this agreement. So I'm going to use the rest of my time on this item, and then on the other items to make sure that the public is aware of all of the provisions in this agreement that are not being taken into accounted for. We've already mentioned impervious cover. There's no height, there's no setback. The critical water quality zone is reduced to 200ft for the Colorado river, the free flowing section of the Colorado river with exceptional water quality, with exceptional

biodiversity, with the riparian zone that needs to be protected so that the water quality remains high. You also have an agreement that that gives almost every single permitted use under the sun to the developer locked in. You can't change that with a with a later development agreement. That's with a later regulating plan that's passed later. It's locked in, it's guaranteed for them. You have a provision in

[11:14:37 AM]

there that would grant the director of development services. So not an elected official, not somebody that the public has anybody any accountability for the unlimited ability to grant any variance to the city code without any articulable standards on how they should approve that variance, and the public can oppose that variance, know if they don't get their way with the director of development services, they get to appeal that decision to the city, to the city council or to the city manager. So there's no public accountability with that. You have unlimited cut and fill variances. I mentioned that it's worse than the county. You're actually having no cut and fill variances, where if you're left in the county, you would actually have a cut and fill standard. Please vote against this.

>> Thank you, Mr. Levinsky.

>> Wu.

>> Please, why don't you please, why don't you take the microphone and state your name for the record?

>> Hi. Good morning. I'm Kim Vasquez, and I am a resident of Hera Laine. And I oppose items 38, 39 and 60. This. This

[11:15:42 AM]

annexation proposal does not reflect a transparent or inclusive public process. There's been no public notice, no community engagement, and no meaningful input from the advisory commissioners. Instead, it is here today on the consent agenda. So this agreement is establishing a 45 year arrangement that grants developers the broad discretion with limited public or council oversight, delegate significant authority to the city's administration level. The directors level. Without any appeals to council. It lacks clearly defined environmental protection and oversight mechanisms for the dogs heads. Privately planned parks and open spaces and trails. Also, there's waivers that's been appears to be, you know, certain development codes that's been waived that appears to have been waived. And, and, and there's the process of

[11:16:42 AM]

eliminating Travis county's oversight as part of the development here for item 39. And then it raises concerns about accountability. So this project completely affects the surrounding communities. The infrastructure changes, the widening of the 60 foot road on her Laine to possibly 90/90 feet, new new roadways of up to six lanes and then to adjacent residential neighbors. There's no no traffic studies as far as annexation for for this new roadways development. So and then just being unclear that the public, how is this benefiting the entire public? It's very disproportionate, impacting the community, the environment, the waterways, creeks, wildlife, the equity of the environment. Mainly. I oppose these three items. Thank you.

>> Thank you. Please.

>> Hi, my name.

>> Is Daniel Lowe. I'm an architect, business owner, and most importantly for this forum,

[11:17:42 AM]

a member of the southeast Colorado neighborhood association. My wife and I live on hergatz Laine. I'm speaking against items 38, 39 and 60. At the national level, we've seen the environmental protections eviscerated. We've seen backroom negotiations come to light only after the wrecking ball hits its Marc. And we've seen the systemic marginalization of voices. My community and I are committed to preventing this from happening in our backyard. The proposed agreement cherry picks the least restrictive regulations between the county and the city, while shunning any environmental obligations, responsibilities, or oversight. 100% allowable impervious cover. The same allowed downtown unlimited far building heights limited only by the FAA in environmental area. As sensitive as the riparian zone of the Colorado river is incredibly cavalier. By bypassing the city's environmental criteria manual for floodplain modifications and allowing a 12 foot wide

[11:18:43 AM]

paved e-bike superhighway running directly through the critical water quality zone is unimaginable. The allowable uses are equally concerning firearms activities, a term undefined by the agreement are allowed as continued use. Would allow a firearm activities downtown? Because that's a potential density of this development. Under this agreement, industrial uses such as data centers could conveniently pull their requisite water directly from the river. From a business perspective, this agreement lets the developer basically walk away at any time, yet binds the city for 45 years. What prohibits a developer from opting out after millions of taxpayer dollar improvements have been implemented? Has the city's legal even reviewed this document? As a business owner, if I entered into such an egregiously one sided contract, I wouldn't be in business for long. Thank you.

>> Thank you.

[11:19:45 AM]

>> Janice Bookout d4. The easiest solution is not always the best one. People who get into debt sometimes create more debt. Trying to solve the problem. That one, that 0% apr feels like a relief until it jumps to 15%. And for young, that can be a lack of experience. But for older adults, we know better. Predatory loans take advantage of desperation. The relief is temporary. The cost is not on the surface. Dog's head annex looks like a great deal. Theoretically, billions of dollars in tax revenue alleviating a major deficit. What a relief. But are we so desperate for tax dollars that we're willing to risk the health and safety of nearby residents before we trade away our ability to hold, endeavor to endeavors, endeavor to account? We need a better understanding of how their proposed development will impact neighbors. There are about a thousand people living in the area south of dog's head, almost all living in mobile

[11:20:46 AM]

homes, and a portion of which are already in the 25 or 100 year floodplain. Some of dog's head development would be at elevations higher than this area. A significant increase in the impervious cover could make this much worse, and 78742 is a nearly landlocked zip code defined by its borders, which include the Colorado river and one, 83 and 71 to the south and west. The only access for most neighbors in seven eight, 742 is the service roads. The majority of homes are mobile homes. They're also a few isolated older homes on larger lots, some with wells. 9% of the residents are. Children under the age of five, and 5% are over the age of 64, 54% are low income, 83.2% are hispanic. These folks also have higher rates of heart disease, asthma, low life expectancy, and people. There are people with disabilities disproportionately

[11:21:46 AM]

high. People living in the. I have six minutes. I have 38, 39, and 60.

>> Well, you can come back and testify on 39 and 60 when they're called up is the way we do that.

>> I will do that.

>> Thank you. Thank you very much.

>> Continuing on item 38, we have rich Harmon, Brad Massengill, Lee Edwards, Tommy, Joaquin Hancock, Victoria, Finn.

>> If your name, please come forward.

>> Tony Vasquez, Jeffrey Bowen.

>> Please make your way forward. If your name has been called and you wish to speak, Mr. Massengill, why don't you begin?

>> Hey y'all. I forgot to mention last time I was here. I'm also on the board of the south Austin creek alliance. One of the things we got to keep in mind here is that that we live in a river city. Austin is a river. And when you look at dogs head on a map, it's

[11:22:47 AM]

like a peninsula. It's surrounded on all three sides by water. When we're talking about flooding historically, maybe it's not been as bad as it can be, but recently txdot announced putting in this 22 foot diameter drainage tunnel from I-35 that's going to release somewhere below longhorn dam. What about that water? You know, we're talking about a lot of water. You know, there's there seems to be a lack of coordination or planning here to take these future impacts into consideration. I was just reading yesterday about this town called robstown, Texas, where they have a Tesla battery plant, a lithium plant. This place, although nothing illegal, has happened, apparently permits were issued. This thing got built two years down the line. A couple of workers were at one of these drainage ditches walking down. There's

[11:23:47 AM]

just black stuff coming out of the pipe into the ditch. Most of it was permitted in some level, but a lot of it was not this stuff. If you're not careful when you're allowing these types of things to happen, we're talking about some major impacts. This is not a a casual give. We need to be cautious when we're doing these types of things. When when you look at the the satellite pictures of Austin, you can tell that this part of the Colorado river is what they call a meander. It's something that has traditionally asserted itself over time. I'll finish later.

>> Thank you, Mr. Massingill. Why don't we go this direction? Yes, Tommy.

>> Joaquin Hancock, resident of Austin, district five. I'm echoing comments by previous speakers speaking out against items 38, 39 and 60 asking you to postpone these items on the agenda. The proposed dog heads

[11:24:50 AM]

development agreement affects over 2000 acres of land on the shores of one of the most pristine and biodiverse sections of the Colorado river. The deal was negotiated behind closed doors with no public input or oversight, bypassing review by the planning commission, environmental commission or any other relevant board. Here are some of the known problems. No development limits. Floodplain and water quality risks. No cut and fill limits. Code variances without oversight, risky water quality ponds developer control for 45 years. Broad zoning uses environmental injustice and tax breaks for developers. I'm asking you to postpone immediately and send this to the environmental commission for full public review process. Thank you.

>> Thank you, Mr. Bowen. Good morning again, ladies. And gentlemen.

>> Mr. Mayor, city council. Members. Jeff Bowen, district eight. I watched this through the work session, and I kept

[11:25:52 AM]

picking up on the issue that this was being done in a very rapid fashion. And I appreciate the questions that were put out by the the members asking certain questions. And there were actually some very good questions that I that I saw there. But my concern is that this is moving in such a rapid pace that even when the staff is saying that we're having to rush this entire process, putting these agreements together, then I question the the amount of transparency on this process. You've heard from many people talking about this this morning saying, where did this actually come from? One of the comments that was made during one of the questions yesterday was about, this was a concept and that there was a question about some bridges that were going to be crossing over the river, and the comment was made. Well, they were just put on a map with a sharpie, and that we will be coming back with a better concept on this. Here we are trying to listen to

[11:26:54 AM]

the comments today. And yet, where are the rest of the reviews on this process? So and I have a question regarding the tirz. And exactly the agreement was even one of the staff members said yesterday that they were working on the tirz and trying to get the tirz and trying to get some of these. This all worked out. So I request that you just kind of sit back, think about this and look at the process. What is it that you're actually saying? I mean, even the development agreement talks about the city will establish a separate team that's going to deal with this. At what point is that going to happen? So I really question the the rapidness of some of this. And I really suggest that we really take a step back.

>> Thank you. Thank you. Yes, sir.

>> Good morning.

>> Thank you so much for listening to us this morning. I assume it's not a happy job to hear opposed. Opposed but

[11:27:55 AM]

opposed. I'm Lee Edwards, I'm a resident of Hergatz Lane, which is where the extension of the hike and bike trail is proposed to go. So I also want to speak about process. I'm concerned about process. I'm concerned about the precedent that's being set for the process of this ongoing development. This is my street. Thousands of people using my street as a hike and bike trail. Maybe that's a good thing. Maybe it's a bad thing, but I didn't find out about it until two days ago. Not from endeavor, not from dog's head, JV. Not from the city, from a friend I didn't know, 38, 39, 60 existed. I didn't know any of this existed. We have an officially registered neighborhood association. It was not contacted, so I assume none of the other affected neighborhoods are being consulted, asked for their input, or even informed either. That's a problematic process. I hope you would agree the impacts will be huge. There's

[11:28:55 AM]

even a line in the draft agreement. Maybe you know, the line I'm talking about that says we will agree this process will be done as rapidly as possible. That is an odd line to put in an official document. Basically, our priority might not be doing it well. It might be doing it rapidly. I'm concerned we'll talk about content later, but I wanted you to know I'm concerned about the process. I'm concerned about inclusion. We need community engagement. And thank you for listening.

>> Thank you very much.

>> Continuing on item 38, we have Kathryn Brown, Megan Meisenbach, Katy Gay, Kaiba White, Karmen Lianes. If your name has been called, please, please make your way to the front.

>> If. Go ahead and start us off, please.

>> Gotcha. Good morning, Mayor Watson, city manager, Broadnax and council members. My name is Katie Gay, district five, and I'm here on behalf of Evergreen Austin, a local women led

[11:29:57 AM]

nonprofit organization focused on parks, open space, environmental stewardship, and thoughtful land planning. I am speaking against item 38, and I'm here to urge you to reconsider items 38, 39, and 60 concerning the proposed 45 year development agreement for the area known as Dog's Head Bend. I echo the other speakers concerns on this item. Austin should be a city that celebrates and protects its

defining natural beauty, especially the Colorado river and its waterfront. At stake are the city's long term economic, social, and environmental needs. Real, long range planning is about more than buildings. It's about creating places that inspire places with character, and places that draw people in through a powerful sense of the world as it was created. This kind of planning requires community consensus, public trust, transparency, and a willingness to think beyond short term gain towards a lasting civic legacy. The dog's head area that some of you may know is ginger, presents an opportunity to shape Austin's future in a bold and meaningful way. Thriving cities are led by

[11:30:57 AM]

creative, Progressive leaders who are willing to challenge conventional approaches, experiment thoughtfully, and move forward with new ideas for new development. Austin has a chance to show that growth and stewardship can go hand in hand. For that reason, it is essential that Austin city council aggressively preserve land and parks for open space. The agreement, now under discussion, would shape this area for decades without future council input, and puts the burden of infrastructure development on taxpayers. More than 30 years ago, there was a vision to purchase 350 acres on the north bank of the Colorado river for what is now John Trevino junior metropolitan park. That specific park's vision is now central to what could become this 2600 small city, rising from a former gravel mine, evergreen, Austin's call for a park and recreation district deserves serious consideration. A district like this could help fund, maintain, improve, equip, finance and operate public parks, recreational spaces and related facilities as new development takes shape. Thank you.

>> Thank you.

>> Hi, my name is doctor Kathryn brown. I have been a

[11:31:58 AM]

resident of Austin since 1966. I grew up in east Austin, and one of the properties that's involved involves my father's home, which is also on Hergatz Lane. I currently live in district nine. I. Rather than repeating many of the concerns that have already been listed, I will say that I'm here also to represent issues about ecology and public health. I've worked with the city on public health already in the area of West Nile virus, for example. There's really been no consultation as far as I'm concerned, about other issues related to ecology, ecosystem development, public health issues. This is a matter for all the people who live there. The matter of the people who live there in the future. My concern has been the lack of consultation for many issues already here. The concerns already raised about the local people who already live locally in that neighborhood, lack of engagement, which I have seen throughout my time being in

[11:32:59 AM]

east Austin or in this city. I really respect the council. I love my city, but I really feel that. Asking you, what would it take to actually postpone this and engage in with the population in a way that I have seen it done positively in the past with respect for the people there, with thoughts for the future of the city, and trying to gain as much as we can with a to create a new area. If we are going to do that, that is also safe for the public now and in the future. Thank you.

>> Thank you.

>> Continue on item 38, we have Zenobia Joseph Cameron Shaw Garrett. Tongue.

>> Please come forward if your name has been called.

>> That has been all in person. 38 speakers have been called.

>> Okay. Please begin.

[11:33:59 AM]

>> Hello, my name is Cameron Shaw. I live in district one and I'm here to ask that you guys pump the brakes on this. Don't sign this contract today. And mostly because I'm excited about this. This is a. I'm flabbergasted that it just came along. Tucked into an agenda item. You're expanding the footprint of Austin by 10%. You're annexing the entire dog tag. This should be like a cutting ribbons, popping bottles, getting everyone excited and hyped up. This is unbelievable. This is huge. And it's going to require massive public investment. And this contract is just I read through it. I'm a small business owner and it's like crazy. It's a 45 year contract. And like one of the clauses for, for the whole thing defaulting is that if you guys don't respond with an approval or a denial within 30 days, then the whole, the whole contract is void. What, like 27 years from now after we've built roads, added water, added more power, all this stuff, 27 years from now, we could just take 31 days to give a yes or no. And then the annexation is

[11:34:59 AM]

gone. Like this is like such a flimsy foothold for like a monumental place in Austin's history. This is huge. It's a whole new river district. It's the downstream of the Colorado. This is like some of the most fertile farmland that we've had. The river has been meandering here for thousands of years. How are we going to build in this floodplain? I'm an engineer. This is I want to know the plan. I want to know what we're doing. How are we going to, you know, build good buildings that are not going to get washed away? How are we going to have density? Where's the train going to go? It's right by the airport. How are we going to connect that in? There's just not a plan here. And it's like, so just like pump the brakes. I want to see this happen. This is so excited. Like dog's head is huge. We're going to add like the footprint right close to our downtown core is monumental. Have you ever been to like trastevere in Rome? Every great city or so many have like great river districts. Like the potential for what this dog's head could be, could

change the fabric and shape of Austin forever. And I think that we should just take some time, figure out what we're doing, and then go do that. And this is a 45 year

[11:36:00 AM]

contract. We should be looking at the 100 year, 200 year.

>> Thank you, thank you. Please.

>> Hello, council members. My name is Garrett Chung. I'm a resident in district three. I'm a member of the southeast Colorado neighborhood association and a homeowner on Hergatz Lane. 48 hours ago, I was just a little surprised to learn that the future separated river trail, part of the proposed development of the dog's head, runs directly through what is, as of this moment, my living room. The lack of transparency surrounding this project in the manner in which it was presented to the public, has been wholly unacceptable. Therefore, I ask the council to postpone approving measures 38, 39 and 60 until the proper boards and commissions have had a chance to review the plans and implement the development of the dog's head in a safe and environmentally responsible manner. Approving this measure today would grant Endeavor Real Estate Group carte blanche to develop over 2600 acres, with absolutely zero environmental oversight or regulation. It would displace an entire neighborhood of families. My

[11:37:01 AM]

neighbors, many of whom have lived on Hergatz Lane and the surrounding streets for generations. I'm not here to discourage development or growth. I'm here to ask us to take a breath, slow down, and implement the eventual development of the dog's head in a reasonable and environmentally responsible way. Approving this plan today would be, simply put, incomprehensibly reckless and shortsighted. The city of Austin should be beholden to the citizens of Austin, not billionaire corporations. Council members, I ask that you please postpone approving this project until proper due diligence can be completed. Thank you.

>> Okay, we have two more remote speakers, starting with Severin Cushing on item 38.

>> Hi. My comments apply to agenda items 38, 39, and 60. I wholeheartedly echo the environmental concerns already surfaced, as well as those of my neighbors who have already spoken. My request is for this proposal to stop here and

[11:38:01 AM]

become a public process that gives property owners and community members correct notice and goes through the board and commission review process. My home falls within the proposed area to potentially be annexed and under potential eminent domain. I have not received any formal communications about these changes whatsoever. Neither has the president of my neighborhood association or any of my neighbors. Everything that we know about this, we've learned only within the last 48 hours, and only from unofficial communication channels such as the local news and each other. I just want to repeat that the folks impacted by potential eminent domain have not received any official communications whatsoever. We've learned all of this in the last 48 hours, and there are certainly a majority of property owners who are impacted, who still don't know about this at all. As it stands now, the proposed development only achieves its goal by displacing homes of wonderful folks like my neighbors, many of whom have lived on the

[11:39:03 AM]

street for generations, many of whom have built their cozy and quaint homes with their own two hands. These are farmers, small scale ranchers, artists, musicians, engineers, hard-working, tradespeople, public servants, entrepreneurs, medical professionals, service workers, retirees, military veterans, grandparents and more good people. This would displace a small but very diverse and special, unique community that represents true Austin. I understand the motivation and the need to offer public services for community and greater good. I'm all for exploring how we can make that happen, but there needs to be a proper and correct process in place for that. So again, my request is to stop here and become a public process that gives owners and community members.

>> Thank you very much.

>> And goes through.

>> Thank you. Speaker. We do have kaiba white in person item 38.

>> Thank you. Kaiba white. On behalf of public citizen's Texas office, we are asking you to postpone this item and to

[11:40:05 AM]

engage in the full, transparent process, including going through the environmental and planning commissions and any other commissions that would normally have purview over this type of issue. This seems to be following an unfortunate pattern of a lack of transparency and abandonment of environmental commitments by the city, the fact that so much impervious surface up to 100% in so many a large part of this development would be allowed is pretty shocking given where it is. It really does call into question whether the impact of flooding on the other people who live in this area has been considered at all, because that water will be displaced and will move into those existing residents, their properties. And I'm hearing from some of those residents today, and I'm just shocked to hear that

they were entirely left out of this process. We are also concerned that the broad latitude that is being given to this development, and the locking out of future city councils to address issues

[11:41:06 AM]

that may arise, can result in negative impacts for the area and specifically also the data centers and other kind of defense related activities could be taking place on this property. In particular, when it comes to data centers, we are concerned about the impact on water and also on energy, as well as on the surrounding neighbors. So we would ask you to slow down and go through the proper process so that you can hear from the neighbors in the area as well, from other concerned entities in the city. Thank you.

>> Okay. Moving on to item 39, we have Matt remotely. We have max Horstman.

>> Hello. My name is max Horstman. I'm speaking to you again as a resident of district four. There's so much that has

[11:42:07 AM]

been said. So I am echoing so much about the need for a public process, community engagement and planning for things like economic development to benefit local people is very possible, and the city should mobilize its resources and staff towards that. Instead of rushing this process, which seems to be violating many people's civil rights and not a good sign for how the rest of the process will unfold. So I urge you to delay this process and start a community engaged, long term planning initiative to ensure that people aren't displaced from their homes and the and the. And that goal of militarized and autonomous based economic development. So

[11:43:10 AM]

thank you.

>> Monica Guzman, item 39 remote. Monica, are you there?

>> Yes. Sorry, I got a bad connection. Good morning. Monica Guzman, global policy director, speaking in opposition to item 39. Individuals and organizations to continue to sign on to the letter. While many are speaking in opposition, urging for postponement and the public process. Also signed on are robin Rother, district nine with the zilker neighborhood association and rewild at the ordained district four. Lauren Roth, fwd, P E Glen rose engineering district nine for questions. Drafted collaboratively for this

are. Can staff provide a list of all environmental. Analyzes, floodplain studies, reclamation assessments, water quality

[11:44:10 AM]

studies, traffic studies, and environmental justice analyzes that have been completed for dogs head and publicly released those documents prior. Prior to your action. Can staff clearly explain what existing environmental protections, floodplain regulations, critical environmental protections, cultural requirements, traffic analysis requirements and public review procedures are being modified, waived or administratively delegated under the proposed agreement. Can staff provide a detailed public explanation about the proposed public financing structure, including a limited, excuse me, estimated public infrastructure costs, anticipated reimbursements to the developer governance structure, and the long term fiscal risk to taxpayers if projected revenues or development assumptions did not materialize. And under what authority was the agenda item posted? Since it was not initiated by city council, nor did it go to the boards and commissions, you have the opportunity to give us your constituency, an opportunity to plan future deals well on a way

[11:45:11 AM]

that truly benefits our community and environment. We urge you, mayor and mayor, pro tem and council, to do the right thing. We urge you to postpone items 38, 39 and 60. Thank you.

>> Next we have Heather Burrell on item 39 remotely. One moment. Heather Burrell, item 39.

>> What item is it? 039 hello?

>> Hello.

>> Oh, I'm sorry, because I've been trying to speak on several items. I just want to make sure that you're hearing me. This is the first time I've gotten through. Thank you. Item 39. I'm calling. I signed up for several items because I actually the process and what the city manager and city council have been doing, it

[11:46:12 AM]

affects item today, among others. 738, 39, 45 and 60. So 39 is about the dog head thing. It's this whole development move with the city council to allow these big developments to come in, is what I'm speaking against. This one in particular is against our strategic anchors, against strategic direction, not in the city's plans or focus areas, not in alignment with our strategic management system. All of these are

things that took ten years to build, and that we want to go towards what we as a city want. It is a complete disregard and lack of short range. Five year forecast for budget, health, environmental parameters already in place, both legally, procedurally and what should be logically and for myself morally. Dismissal of city department recommendations regarding resources, creating pollution and tax incentives for the desecration and violation of the city of Austin as a whole

[11:47:12 AM]

is against the job description of city manager of city council. You were hired by the us by voting for the council members and manager was hired by them, and his whole responsibility is someone who, quote, represents the city's interests in quote. And this decision does not represent the city's strategic direction in any way. He is making decisions behind closed doors and moving toward fascist practices. Regarding the city of Austin's resources in too many ways. And it needs to stop now. Remember, that is why he was hired. Do not let these projects go forward. Postpone any voting. They need full review by all applicable city departments, as well as state and federal regulations. Every action.

>> Thank you Heather.

>> By this council.

>> Thank you.

>> Next we have Severin Cushing on item 39.

[11:48:14 AM]

>> Sorry, I just had a quick comment. I'm noticing that council member Jose Vasquez representing district three, which this is what we're focusing on, seems to be rather distracted. My most generous hope is that he's taking notes, but I just want to call out that it's important that it feels like our representatives are engaged and listening to us. Thank you.

>> We will move on to in-person item 39. Starting with Marian Sanchez, Julie Oliver, Adrian Macias, Susana Almanza, Bianca Guerrero. Carlos pinon, Manny Gutierrez, please make your way to the front.

>> Why don't you go and begin? Miss Oliver.

>> I'm Julie Oliver, resident of d9, here to speak against item 39 and ask you to pull it from the consent agenda and say no. Well, this item may seem procedural. It's a critical step in advancing the same 2600 acre development tied to items

[11:49:16 AM]

38 and 60, which I'm against all of them. Again, this is unfolding in a context where the public has said, no, we don't want this because this agreement helps accelerate a development that aligns with recent efforts to recruit data centers and defense activity industries, projects that will significantly.

>> Increase demand for energy and infrastructure. It brings us naturally back to the gas Peaker power plants. That's item seven. All of these are intertwined. We know it. They're all connected and advancing the development of this particular agenda item. And 38 and 60 increases the need for exactly the kind of fossil fuel infrastructure you're proposing in item seven. So the question remains, are these decisions being made freely and transparently? No. Or are they shaped by political pressure with a guarantee of a campaign donation for the right vote? This is where Independence and accountability matter most. This is where you need to represent us, not endeavor, not Armbrust and

[11:50:16 AM]

brown, not Richard Sutton, who is selling out my children's future for his hourly attorney's rate and fat annual bonus. If any of you have courage and I'm asking for one of you, one of you, to have courage, maybe one of you who's up for reelection pull 38, 39, and 60 from consent. I'm actually might actually have one other request of you. Fire the city manager team, city management team for this embarrassment that was brought before you today.

>> You.

>> Good morning. Mayor. City council members. I'm Susana Almanza with poder, but also with the montopolis neighborhood association and president of montopolis neighborhood plan contact team and councilman Jose Velasquez. You are my representative, and I'm asking you to postpone this item on behalf of the constituents in district three. As we all know, our neighborhood planned on Tapia was approved in 2001, but at that time, we lobbied to have her gods all the way to

[11:51:17 AM]

Thompson Laine included in the neighborhood plan just for these particular reasons, is because that neighborhood area was not represented. The city fought us tooth and nail to have them included, saying that because there was a highway there, we weren't. They couldn't bring us together. But we know that this is not true. And now we're facing this whole issue of the impact of what would happen also to the montopolis community, but also to the Colorado river. About two years ago, we had Richard settle, endeavor and them come to talk to us about project on bomb and. 183 and they told us about they were planning to acquire the dog's head and all that, and that they would come to us. Well, you know what? They never came to us. The next thing we know, it's on the agenda, this agreement. And I felt that that's very disingenuous of what has happened along this, along this thing. But that was one of the reasons that poder fought hard and worked with the city of

[11:52:18 AM]

Austin watershed department was to increase the previous the hazardous erosion zone, because we knew that this development was coming our way. And although we fought for 400ft, we got an additional 100ft, which then became 200ft on the erosion. But the whole fight back was with Richard Suttle and their team of going to a state legislator by opposing us for the 400ft development. So here we are now about to I thank.

>> You, thank you.

>> Continuing on item 39, we have Valerie Menard, Pedro Hernandez, Jr, Craig Nazer, Richard Suttle, Chris Paige, William Bunch.

>> Please come forward. If your name has already been called and you intend to say anything. Please begin.

[11:53:18 AM]

>> I am back. I said most of what I said earlier, but I still want to talk because I can for two more minutes and I want to direct my comments to council member Velasquez. We don't know which districts this area would be in, but more naturally be in your district just would seem natural that it would be in district three. And as you know, we've been trying to get you to come on a tour and that would have been part of that tour just to get him to, to appreciate the beauty of that part of the river. But I think ultimately, we would have loved all of council to go on a tour and to go on the river. It's very shallow. You can't take a boat full of people. You can take a canoe, maybe a smaller boat. But we do think it's important that you see this part of the river before you make such a tremendous decision regarding the future of its environmental quality. And for the residents there. After hearing everything you've heard today, could one of you please just make a motion to pull this from as a consent item? And it doesn't take a lot

[11:54:19 AM]

of courage, but it is something I think, and none of you are looking at me. But thank you, council member Velasquez, for keeping your attention. Just do the right thing. Let's let's pump the brakes on this. You've got a whole neighborhood of people who didn't even know this was happening to them. And we have been working with the southeast Colorado river neighborhood association, and I meant to contact Lee, but I'm glad he's here. Another other members of the community, how can you move forward on this kind of a project that could be so devastating that it will remove people from their homes? Please, let's pump the brakes. Let's just put take this out of consent. Postpone. We have an

amazing watershed protection department. They have they must have an opportunity to review this. They should have been here already. You have to use the talent that we have with the city before we move forward on something like this. Thank you.

>> Hello, Craig. Austin, Sierra club. Okay, so not wanting to beat a dead horse from this

[11:55:20 AM]

side anyway, it is clear that these are strange times in Austin. We have a a federal regime that is corrupt. We have a state legislature. I've been up there for the past couple years. That is forcing very tough economic decisions on you and on our city. And I understand that. But we shouldn't cave in to them because it will destroy Austin. And I heard all the the economic reasons for this development on Tuesday. And I understand those and I hear those, but I don't think we can collapse to them personally. And so, you know, in my. I want to the the America the beautiful was an incredible poem. It has three different versions. I want to read you one stanza from the first version that applies here, I think O beautiful for glory. Tale of liberating strife for

[11:56:22 AM]

once and twice for man's avail. Man lavished precious life. America, America. God shed his grace on thee. Til selfish gain no longer stain. The banner of the free. Thank you.

>> Good morning, council mayor Wilson, council members. My name is Pedro Hernandez junior, and I'm the transportation coordinator for poder. And I'm also the chair for Vasquez fields neighborhood association. I'm an Austin native, raised in montopolis, and I'm here to ask that you postpone items 38, 39 and 60 to allow for more citizen input on such a massive development along the eastern part of the Colorado river. While my focus is transportation, I also. I'm also a volunteer for the Colorado river

>> Watch volunteer river testing program. I and my part poder colleague Adrian Macias, test the water quality in the

[11:57:24 AM]

Colorado river under the montopolis bridge, a section of the river considered pristine, a fact I know to be true because I've been testing it since 2024. However, we haven't we haven't been able to test. We haven't been able to test test it since December due to the I-35 pumping station project currently under construction. When finished, it will pump storm drainage from the expanded highway into the section of the river. We've been blocked by the construction. But just recently found a location where we can begin testing again. We're anxious to see what impact the construction has had, but we fear the river

will no longer remain pristine when pumping begins in 2029. Now you want to move forward with the developer to place a massive development on another section of the river, with no review by the public or any city commission. This is yet another painful reminder of how the desired development zone for everything east of Longhorn dam allows the city to continue to dump on east Austin,

[11:58:25 AM]

including a section of the river that we considered a natural jewel, giving tax credits to these developers. When you can't even pay for a filtration project that could reduce the pollution dumped into the river from I-35. Just as insult to injury. Please postpone these items. If not for more public input. Let the watershed protection department weigh in on possible.

>> Thank you sir. Okay, Mr. Bunch. Mr. Punch, she's already spoken. Sorry.

>> Good morning. Bill Bunch, save our springs alliance district five, speaking against this item 39, which is basically calling for an interlocal agreement with Travis county to have them just completely roll over and accede to everything that you're trying to wrap up into this 45 year pave, pave all of it

[11:59:28 AM]

agreement, and then we get to pay them to pay it with a tax increment reinvestment zone. Maybe y'all haven't paid attention to those, the law around that, but those are limited to blighted areas. We have the gigafactory next door. We have exploding development. We have billionaires with their hands on this. Are you really going to tell us this is a blighted area? And let me ask you this question. How many times have each of you talked to your friends, your neighbors, complaining about a supreme court that doesn't care about the rule of law, about a corrupt president enriching himself and not caring about the environment, destroying our environmental protection rules wholesale? That's what you're doing right here. You're showing total disrespect for the rule of law, your own

[12:00:29 PM]

charter, our ordinances. You're throwing out environmental protection standards that have been placed for decades. For the biggest developer, the billionaires and their customers next door. Seriously, how do you explain that with any word other than corruption? Corruption dressed up as Progressive urban democratic policies?

>> Thank you, Mr. Branch. Before we call any more speakers on the consent agenda, it's 12:00. And what I indicated we were going to do is we're going to go to our 12:00 time. Certain we will hear from

our public commenters on our 12:00 time certain. And at the end of that, we will go into executive session regarding item number 16. And

[12:01:29 PM]

it's actually posted in two places, and I'll call that out here in a second. But why don't we go to our 12:00 time? Certain.

>> Okay. We've had several people let us know they won't be in attendance, but we will call their name for the record in person, we have Ethan Smith, Samsara Noble. Ryan Orcutt let us know he would not be able to attend. Huy more here in person. Desmond Hampton.

>> Please go ahead and begin.

>> All right. Ethan Smith, district nine. I wanted to talk about generational investments, and I think it's fitting that so much of the conversation has been about process and. I think that generational investments are typically about values and

[12:02:31 PM]

kind of like identity. So like I was in the greenbelt and I was enjoying it. And then as I get older, thinking about thoughts like, would my kids be able to enjoy this or grandkids? Will there be, you know, water for a greenbelt? And I think the thing is, is a lot of investments are not certain. The best generational investments in a. You know, take advantage of institutions that have been here a long time. So as I was thinking about it, I think that, in my opinion, maybe the best generational investment has actually been the UT medical school. As we think about. Well, it was very uncertain and it was a fight at the time if it would happen. But now, sometime later, there's going to be a medical district. And that was certainly not certain, but it was kind of a values thing, right? The the UT medical school that we should have this here. And so, you know, I, I

[12:03:34 PM]

appreciate all the people that have come out to fight for kind of long term planning and involving our institutions in these processes, because I, I believe in that. And, and I know we can accomplish great things, but we do face crises and expect our political class to respond to crises. But a lot of times our best solutions and policy come from the long term planning side and not just the we have a budget crunch right now, or we have to address the housing crisis right now because there are great housing policies in Austin, but a lot of them come from longer term planning kind of things. And sometimes you just got to weather the storm. So thank you.

>> Thank you. Please go ahead. Yes.

>> Oh.

>> Just state your name for the record, please.

>> Even more. Thank you, mayor and honorable city council members. Would you believe me if I were to tell you that in

[12:04:35 PM]

the U.S. We lose one person every 11 minutes to suicide? Well, according to [cdc.gov](https://www.cdc.gov), that, unfortunately, is our reality. This is why I ask Austin city council to increase the funding of mental hospitals to save more lives. According to [healthtalk.org](https://www.healthtalk.org), mental units across the U.S. Have a shortage of space, which means people are forcibly forced into the in er rooms to hours to even days on end. Can you imagine that? Waiting in a room for that long, for a waiting in a room for that long with nothing to do except someone watching your every move? Unpleasant Wright to add on. According to the national library of medicine, mental hospitals are considered a lower priority for funding, which means hospitals are severely underfunded and understaffed. As someone who has been to a mental hospital before and has known many others who've also been mental units before, it was a borderline traumatizing experience. Rude workers, horrible sleeping conditions and after leaving left me feeling crazy and scared to reach out for help again. I've

[12:05:37 PM]

also gotten similar responses from people in my community. When I asked them about their experiences at mental hospitals, many of the people I interviewed even admitted to lying about their struggles to avoid being admitted into a hospital again. According to [cdc.gov](https://www.cdc.gov), suicide rates have increased 37% since the year 2020 18. If nothing changes now, the rates will continue to rise and we will lose more lives. So I urge Austin city council to consider my points and increase the funding of mental hospitals. Thank you.

>> Thank you. Does anybody's name been called? And you have. Please come forward.

>> Samsara. Noble. Hello. Who I am is not nearly as important as what I'm about to share. I'm in this chamber because APD has gone too far and has been doing so for too long. When I'm sharing my stories that warrant outcry in our community. In the early morning of March 2nd,

[12:06:37 PM]

2025, Jocelyn Chavez had been approached by APD after they witnessed her punching at someone. Instead of trying to deescalate the situation, one officer grabbed her and threw her to the ground. This caused her injuries to her face, left arm, chest and other parts of her body. APD's force review unit determined quote the use of force was within law and policy inexcusable. I can only imagine what kind of horrors awaited her as a trans woman in jail, something I'm familiar with personally and can attest to. Matt Southard had been pulled over by APD for a front bike light being out. Silly, right? One APD officer and another unmarked agent exited the vehicle to question him. When he was explaining that he was on his way to work, he reached for his work credentials only to be yanked, cuffed and thrown into the squad car without being read. His Miranda rights, which is illegal. This person is neurodivergent, and he wasn't aware of the APD's extreme use of force. To make matters worse,

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he was charged with resisting arrest despite cooperating. This should not have happened. After the recent shooting incident in los braceros, restaurant workers were told by APD to remain silent about it. Does that sound right to y'all? Another local resident had his dog killed in cold blood by an APD officer named Daniel Walsh, and as far as we know, he was supposedly placed on leave and received no punishment. No charges. Another victim of this abuse, a woman named Natalie Gelinas, was brutally beaten by officer Speese while in custody, and she suffered a brain injury. Justifiably so. She filed a lawsuit. The only action taken was suspending Speese from his duties. And don't get me started on how APD treats unhoused community here in Austin. Why does the police chief continue to do nothing? This is how APD spends our tax dollars. Is this what protect and serve looks like? So hear us when we say do your job. We

[12:08:41 PM]

demand accountability. We demand answers, and we demand justice now.

>> Okay.

>> Has anybody's name. Has anybody's name been called for the 12:00 time? Certain public communication and you haven't spoken.

>> We have. Fran Harris signed up. She informed us she would not be here. Desmond Hampton, are you here? J Jacob Clements signed up remotely and has not connected with us. David Houston and Farrera Bog also let us know that they would not be present. Okay, so that's our entire public.

>> Thank you very much. Members, that concludes the 12:00 time certain for public communication. As indicated, we will now go into an executive session. We'll take up one item in this executive session, and that is pursuant to section 55107, one of the Texas government code. The city council will discuss legal issues related to item 81, discuss legal issues related to

[12:09:41 PM]

the Austin convention center, will be engaging in a private consultation with legal counsel again pursuant to section 55107, one of the Texas government code. Is there any objection? Without objection, we will now go into an executive session at 12:09 P.M. For the members of the community. I'm not sure how long this will take, but we'll come right back out and we will start back with the consent agenda. Although probably the first item we hang on before we go into executive session. I'll come. We'll cover that when we come back. Thank you everybody.

[12:54:46 PM]

I will call the Austin city council back to order at 12:54 P.M. We are out of our closed executive session in that closed executive session pursuant to section 55107, one of the government code, the city council engaged in a discussion of legal issues related to the Austin convention center, a private consultation with our attorney. What I'm going to do is two things before we get into going back to the consent agenda and the speakers on the consent agenda. The first thing. Is council member Laine was temporarily off the dais or absent or not virtual when we took up item number 12, which you will remember was our first item. And she would like to be shown voting. Yes, voting in favor of that item. The her vote would not change the outcome of the vote on that item. So I'll move that she be

[12:55:49 PM]

shown voting in favor of item number 12 and seconded by mayor pro tem discussion. Hearing none. Without objection, council member Laine will be voting in favor of item number 12. What I want to do before we go back to the speakers on the consent agenda is I'm going to go to I'm going to call up item number 16, which is an ordinance related to the authorization and issuance of a series of bonds related to the convention center project. And I'm going to turn to the city clerk to call the speakers on item number 16. And I'm hopeful that people are going to start making their way back into the council chambers.

>> Okay. Starting on for item 16 in person, we have Tina cannon, Steve Genovesi, we have William bunch with time donated by Betsy Greenberg and Roy Whaley, Brad Massingill, Megan meisenbach. Jen Robichaux,

[12:56:52 PM]

Zenobia Joseph, Molly prim. Joe Balash, Nick Jezierski, Scott Blaylock, Blaylock, Thomas Hoffman, rob. Gillette. Katy.

>> Please.

>> The last person is Katy Kim, with time donated by Doug Edison.

>> Mr. Massengale, I see you if you'd come forward, your name has been called and we'll hear from the speakers that are here. And pause just a minute, because I want to make sure since we came out of executive session, people have the opportunity to come in. But if you're out in the lobby area and you're listening to the TVs out there, we are taking up item number 16. Before we go back to the consent speakers, please go ahead and begin. Good afternoon. I ask you to put the microphone in front of your mouth.

>> Good afternoon. Thank you,

[12:57:53 PM]

mayor and city council for the opportunity to speak today. My name is Nick yezerski. I'm an Austin resident and I'm the general manager of hotel van zandt, located within walking distance of the convention center. I'm here today in support of item 16 to continue the progress of the Austin convention center redevelopment project. The convention center is critical to a healthy hospitality industry in Austin, and since the project began, we have felt the impact of operating without it at our hotel. That impact has meant a nearly double digit occupancy decline year over year. That decline affects people. The hotel van zandt employs approximately 200 talented, hard working individuals, many of whom have families to support. We want to continue offering rewarding careers and stability for our associates, and a strong convention center is a major part of making that possible. The expanded convention center, with 70%

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more meeting space, will help Austin capture groups and events that we have been unable to accommodate in the past due to space limitations. The impact extends beyond hotels to restaurants, retail shops, transportation providers, live music venues and other local businesses. And when hotels succeed, Austin shares in that success. Hotel occupancy tax revenue supports parks, cultural arts, live music and historic preservation, all of which make Austin a great place to live, work and visit. I also want to thank the tpid for its continued partnership. It has helped offset some challenges during this period of reduced demand, and we appreciate that support. I want to emphasize that this is essential not only for our industry, but for Austin's broader economy, and this project remained on schedule and on budget. Approval of the 1.35 billion bond issuance is a critical next step. I respectfully urge for your support on item 16.

[12:59:57 PM]

>> Thank you, Mr. Massingill.

>> Hey y'all. This this has been the ongoing what do they call it? The magic hole. Just just as a musician, a life lifetime musician living in this town and realizing where hotel occupancy tax is actually going, not toward musicians. But, you know, I have realized this is a bond talking about bonds, but it's all part and parcel of the same misguided notion that the field of dreams type of philosophy, that if you build it, they'll come. When we know that the whole industry of conventions is evaporating. It's not it's not what it used to be. It's a different environment. Now, ever since pandemic, everything's gone virtual. We see that across city government, state government, every everything you can think of where everything's at arm's length now, you know, so I don't see as making a big place for a

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bunch of people to gather in. It's going to do the citizens of Austin not much good. Mean, I, I feel for the hotel owners, but it's, you know, we're in a tourist town. There's always stuff to do here. There's always going to be people, you know, the thing going on at Cota, all these different things are all designed for bringing in people to boost the hotel tax, as far as I can tell, to pay for the convention center. So where do the musicians and the arts community fit into this, other than a few, you know, exemplars? You know, it's it's part of the population that's being shrunk out of town is, is musicians and art arts, you know, this same type of money and impetus could be used for building up the actual arts community and supporting musicians. I think it's just a disingenuous to, to tell you the truth. So that's,

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that's all I have to say.

>> Thank you, Mr. Massengill. Mr. Bunch, you have time donated by miss Greenberg. So you have four minutes.

>> Thank you. Mayor council bill bunch, save our springs alliance district five, urging you once again to just call time out and show a little bit of financial transparency and accountability. You're sitting here ready to sign off on \$1.35 billion of debt at a time when we know two things. Municipal bond interest rates are through the roof right now. The whole world is changing. I guess really three things making this project a lot more expensive and difficult to pursue. And yet you're getting absolutely no regular updates on where we are. Cost overruns, delays, any

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of that. It's all being kept secret when every other project this city does of any scale, the public and you are getting regular updates, you're in a you're in a black hole, kind of like the hole you're digging and you keep digging. The other thing we know is the whole industry, as Mr. Massengill was referencing, is in the toilet. You're building something for a, an industry that has been in a tailspin since the 90s, actually, but especially since the oh eight bust conventions that used to run and draw large crowds, they're actually shutting down. American dental association told us this is their last year for convention. And then look, the headlines today. Meta's laying off 8000 people because of ai. Last I

[1:04:00 PM]

checked, racks of computers don't go to conventions. Nvidia chip cards don't attend conventions. Robots that Mr. Musk wants to build, probably on the dog's head. Don't go to conventions. Are you kidding me? Seriously, you're going to tie up billions of dollars, and the 1.35 billion is just the bumper sticker price. What's what's the real interest rate cost here? Over 30 years of debt? You're going to jump off this 32 year cliff of a debt commitment for something that doesn't exist anymore. Your own data tells you almost nobody was coming to Austin for conventions. The one that mayor Watson let us actually vote on in 1998 never drew more than half of the projected business

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it was supposed to draw. Nobody benefits from this. The tiny little bit of benefit for hotels is those handful of ultra luxury hotels serving the rich next door. You're abandoning the arts nature in the city, the the things that actually make this city special, that we benefit from those lucky enough of us to be here. And that actually draws visitors. And then, of course, the convention, the construction engineering architecture firms get the money up front. You really need to like soul search. This shouldn't be your legacy, mayor Watson. You have real legal problems with these bonds, too. You're still collecting the \$0.02 for the 98 that we voted on. That was supposed to be limited to 135 million, and now you're going to issue new bonds for an expansion. That's all

[1:06:01 PM]

the statute allows you to do. This isn't an expansion. It's an entirely new project. Thank you.

>> Miss cannon.

>> Mayor, council, I'm Tina Cannon. I'm here on behalf of Visit Austin in support of item 16. Following many years of community planning, public discussions, council action. We are now at a moment to continue this project to move forward with confidence and execution. What happens next matters enormously to Austin's hospitality and tourism workforce. This project impacts tens of thousands of Austinites, where jobs and small businesses are connected to the visitor economy, from hotel workers to restaurant staff, live music venue staff, musicians, event technicians, small business owners, drivers, caterers, people who built their careers in this city, serving the visitors that we help bring here. When Austin can host more events and visitors simultaneously, that translates into more shifts, more

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customers, more bookings, and greater economic stability for working families and local businesses all across this city. The economic impact of this project extends well beyond downtown. Visitor spending supports restaurant retailers, music venues, service workers and businesses all across Austin in every neighborhood and critically, every dollar of debt service on these bonds is repaid by visitors, not residents. This represents a workforce focused investment that is funded by visitors through the hotel occupancy tax, rather than local residents. Spring of 2029 is the goal. Moving forward efficiently helps Austin's workers, small businesses and the broader Austin economy in the long term. Benefits of this project are designed to deliver. This industry is aligned. The financing is. Structure is sound, and the workforce is ready. Please move forward on item 16. Thank you very much for your time.

>> Thank you. If your name has been called, please come forward. Yes, I see what you have. Thank you.

>> Good afternoon, mayor and

[1:08:03 PM]

council members. My name is Steve Genovese, executive vice president at Visit Austin, and I am in strong support of item 16 and proud longtime resident of district ten. I lead our sales team's efforts to attract meetings, conventions and sporting events that support local jobs, small businesses, and Austin's visitor economy. Many of our larger events depend on having a modern, competitive convention center. I have a front row seat to the demand for group business in this city. I hear directly from event organizers about what drives their location decisions, and I see firsthand how competitive the national convention market has become as other major cities in Texas and outside Texas, such as Nashville, continue investing heavily in their convention infrastructure. In just 11 months since convention center floor plans became available, Austin has already secured definite and indefinite commitments through 2040, projecting to bring over 300,000 attendees and

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generating an estimated 406 million in economic impact for Austin, including some groups meeting in traditionally slower times, such as early January and the summer months, when local businesses and workers need it most and the demand is not continuing. We currently have active prospects, representing more than 400,000 additional attendees and an estimated 535 million in projected economic impact since the full year of closure of the convention center. During that time, citywide hotel occupancy has declined 3.6% and 4.5%. Downtown hotel room revenue dropped 116.4 million. Convention center business impacts beyond jobs and visitors spending. As an example, during the restaurant facilities management association convention, community first received hundreds of thousands of dollars in kitchen equipment and on site volunteer labor. So the momentum is real, the demand is there and the time is now. Please approve these bonds today. Thank you.

>> Thank you. Why don't we start down here and we'll work

[1:10:03 PM]

this direction.

>> Okay.

>> Hello, mayor and city council members. My name is Molly prim. I am the new executive director of Austin hotel and lodging association. I'm also a member of district three. I'm here to vote in favor of the bond issuance for the convention center redevelopment plan. Austin hotels have long supported the convention center redevelopment project and have invested heavily in the downtown market in anticipation of its economic impact. Since the project was first announced, 37 new hotels have opened in downtown Austin in preparation for the projected 15 billion impact to the local economy. The previous facility was forced to turn away nearly 50% of booking opportunities due to insufficient face space and limited calendar availability. The expanded convention center will help address this missed economic opportunity while positioning, positioning Austin as the home to the world's first zero carbon certified convention center, featuring a

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70% increase in meeting space, approximately 300,000 hotel room nights are directly attributable to convention center business annually, and that number more than doubles when accounting for attendees who book outside the block. This number will certainly grow with. With the new expanded center providing the weekday and any time business that we need here in Austin, national revpar performance has remained relatively flat year over year. While the Austin market and surrounding markets have experienced declines ranging from 5% to nearly 10% due to the convention center closure. These challenges, these challenging conditions can continue to impact not only hotels but also restaurant bars, transportation providers, retailers and other local businesses that depend on

convention and tourism activity. We are grateful for the strong outcomes and continued partnership of the Austin tpid, which has helped offset some of the demand reductions during this transition period. It is essential for both our industry and Austin's broader economy

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that this project remain on schedule and on budget, with approval of the 1.35.

>> Thank you very much. Yes, ma'am.

>> Okay, I have a time donated.

>> Yes. Is Doug Addison here? Okay. Katie Campbell will have four minutes.

>> Okay.

>> Yes.

>> All right. Hi, I'm Katie cam, a resident of district nine, long time Austin resident. I did my master's thesis on the first Austin convention center expansion. I have literally talked to thousands of Austin voters, and they are not supportive of this convention center project. Their heart is with the creatives of this city. They need the funding, the arts, the music. And I'll go later into my speech into how we can make that happen with the hotel tax revenue, instead of with this convention center, the cost I first want to start off with the cost of this convention center is much higher than the \$1.3 billion bond. The center is proposed on

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six valuable downtown blocks. At least 2 to 3 of these blocks should be sold and put back in the property tax roll to provide revenue for the city of Austin and Austin ISD that are in need of revenue. Building the convention center on those six blocks and keeping them off the property tax roll is a poor financial decision for those two entities and other entities that also rely on property tax revenue. Additionally, there are other what IFS. What if the state legislature decides it is in the best interest of cities to be able to use the hotel occupancy tax revenue for other uses, such as infrastructure repair, by tying up most of the hotel tax revenue for the next 30 years or more. If there's changes at the state legislature, we can't take advantage of those because we've tied it up into a big, giant, empty building. What if hotel tax revenue declines due to loss of interest in travel to Austin? Because the loss of culture, because we're not investing in the culture, we do not have the philanthropy base like other cities do, we need the hotel occupancy tax revenue to support our musicians, our artists and culture? There

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could be other factors that also impact our ability to attract tourists. The priority will be to pay the convention center debt and not to support the culture and historic preservation, other key things that actually bring people to Austin. And this scenario actually happened in the mid 1990s. There was a drop in hotel tax revenue, and the Austin convention center department had to dip into savings to cover the costs. I come here before and citizens communication, I presented data that shows Austin already has plenty of convention space, even with the demolition of the Austin convention center, and the city staff is already getting practice offering concierge convention services to help coordinate the bringing in of conventions. While we don't have that big that convention center, we're also getting a new convention center potentially out of Cota previous speakers emphasized that the convention center is a big economic and tourist generator, but the problem with how they present the information is they don't compare it with other things that could be used with the hotel tax revenue. And again, that's something I brought up in a previous presentation.

[1:15:07 PM]

I've talked about how cultural venues actually bring in way more visitors, foot traffic and economic generation than a convention center does. And the examples I gave were Nashville country music hall of fame, Denver art museum, the met in New York City, etc. The anthropology in Mexico City, millions of visitors puts the convention center as a footnote to the tourism economy in Austin. So we should sell off downtown Austin blocks that the convention center was sitting on. To get that property tax revenue, we should divert the hotel occupancy tax revenue to the things that the Texas state tax code actually allows. So one is promotional programing. Let's elevate the visibility of Austin based artists. This is huge for them. They really would appreciate that we can create a city ambassador program where we hire local musicians and artists and pay them livable salaries. I'm sure you've met many creatives. They are charismatic. They are our best ambassadors for the city, and we should put them on the city payroll, give them a living wage and make them our best ambassadors that travel

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the state and the world to promote Austin. And then we can also create a cultural venue, as I mentioned before. So as I mentioned before, voters love these ideas. Let's stop the convention center project. And Austin has a gravitational pull for creativity. We should build off of that. And we, you know, market ourselves as live music, capital world. We need to put our money behind that. Thank you.

>> All right.

>> Good afternoon, mayor Watson and council members. Thank you for your time today. My name is Scott Blaylock. I'm the general manager of the J.W. Marriott here in downtown, and I'm here today in support of item 16 and the continued continued progress of the Austin convention center

redevelopment project. But before going further, I just want to say the convention center or the convention business is alive and well in this country. In fact, the event sourcing organization just announced this week that Austin is one of the top ten destinations for

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conventions, and two of the hotels in the central business district are in the top ten of the entire country out of 250 hotels. So it's alive and well in Austin is thriving from a hotel operations standpoint, projects like this matter because they directly impact how busy the hotels are in restaurants and live music venues, staffing levels, and Austin's ability to continue attracting major meetings and conventions over the long term rely on this convention center. We've seen firsthand over the last 12 months what not having a convention center means occupancy in hotels, in the J.W. Competitive set, and all the ones near the convention center is down 15% over the last year in the decline in central business district occupancy impacts hotels throughout Austin. In fact, there's over 370 hotels in Austin, which make up 48,000 rooms a night. And the decline in occupancy from last year over the last 12 months means there's 450,000 fewer occupied

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rooms. That means less visitors to visit, our restaurants, to go to live music venues and and so on. But most importantly, it means fewer hotel workers needed to do the job of hosting all these visitors who come in to to see Austin, we have over 145,000 associates, austinites that work in hospitality restaurants and live music venues here in Austin. Let's not slow down the rebuilding of the convention center knowing how important it is. Thank you.

>> Mayor.

>> Council members, thank you for your time today. My name is Thomas Hoffman. I am the general manager of the Austin Marriott downtown, and I'm here today to support the item 16 and the continued progress of the Austin convention center redevelopment project. As a hotel located directly next to the convention center redevelopment site, we experienced the impact of this project every single day. Our guests, employees, and

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operations are navigating the construction activities, street closures, noise and temporary disruption that naturally come with a project of this scale. But we also understand those are short term challenges in support of a long term investment that is critical to Austin's future and success. For us, this is not an abstract economic development discussion. It directly impacts nearly 400 associates who work at our

hotel every single day. Convention business helps create stable work occupancy, more consistent scheduling, stronger banquet and less strong demand and reliable hours for our employees throughout the year. Those large citywide events drive business not only for our guest rooms, but also for housekeeping teams, banquet servers, cooks, bartenders, front desk associates, valet attendants, and many other hospitality workers across downtown Austin. The Austin convention center has historically generated about 400,000 hotel room nights annually. An average is

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approximately 28 citywide conventions annually, with more than 1300 peak room nights each. So, yes, we're doing well. Since the convention closure began, we have already seen nearly 20,000 room nights come off our future bookings. That's for our hotel, representing more than \$8 million in lost revenue at our hotel alone. That impacts staff staffing, discussions, forecasting and long term operational planning. We also see broader softness across the downtown market industry reporting. All right.

>> Thank you. Appreciate you being here.

>> All speakers on item 16 have been called.

>> Because we started with item 16 coming out of an executive session. I want to make sure if you signed up to speak on item 16 and you have not heard your name called, let let us know that right now, because it may be that you are making your way back in. And I, I want to make sure we accommodate that. Otherwise, all of the speakers

[1:21:14 PM]

on item 16 have been called, and we're going to go to a motion and a vote. Is there anyone that signed up for item 16 that may not have heard their name called because they were out in the lobby? Did you sign up on 16? I did.

>> But I donated my time to Mr. Bunch, but I was getting my bag checked again before I could get in here. But I would like to speak on.

>> The well, if you already donated your time, you don't get to do that. And you know you know that, Mr. Whaley. Thank you though we we we and we're not going to need to hear from you right now either. So thank you. Okay. That being the case, all the people that have signed up on item 16 have spoken. I'll entertain a motion with regard to item number 16. The mayor pro tem moves approval. It's seconded by council member alter. Is there discussion on item number 16? Hearing none. Without objection, item number 16 is approved with a. Council member Siegel

[1:22:15 PM]

temporarily off the dais, and the absences that I previously indicated were going to be here. And council member Laine is voting virtually. That concludes item number 16. Members. What we're going to do now is we will go back to the consent speakers. We were in the. I want to have the city clerk check my math on this. We were in the we were in item number 39 at the time. Members. What I'm going to do is go back to item number 39 and go ahead and have a continuation of those speakers, because we were already into the item. But based upon the public comment, what I'm going to suggest, unless there's an objection, is that we pull items 38 and 39 off of the consent agenda so that we can have a specific discussion with regard to them. After we've passed the consent agenda, my recommendation will be item number 60 is scheduled as a public hearing. We will take that up. We will bring up

[1:23:15 PM]

items 38 and 39 after we have the public hearing on item number 60. And without objection, just everybody know that that's what we're going to do. But we will go back to the speakers on the consent agenda, and we will start with those who are left on item number 39.

>> Continue with.

>> One second, one second. One other thing I want to point out to everybody at 2:00, at 2:00, we're going to pause and we're going to take up our time certain at 2:00, because we have a number of items that are scheduled to be postponed. But if we're going to postpone them till next week, we have to have time to post them. We have to have time to give notice. And so we need to get those taken up and not have them at sometime later in the day. So I just want to make sure everybody's with me on that. All right. Now, I apologize for interrupting you, but please go to item 39.

>> Okay. Item 39. Janice Bookout, Eric Paulos, Kim Vasquez, Daniel Io. I have Bobby lavinsky with time

[1:24:16 PM]

donated from Betsy Greenburg and Barbara Macarthur. Are they both here? Okay, Bobby, when he speaks, will have six minutes.

>> Janice Bookout, district four to continue from my earlier statement, people living in this area are in a forced state of resilience due to historic disinvestment. The area has one convenience store, no grocery store, no amenities, and no polling location. There are no schools, hospitals or parks, and there's flooding. About 40% of dogs head itself is in the 100 year floodplain. Another significant portion of the residential areas adjacent to dogs head are also in the 25 and 100 year floodplain. The ej

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screen, formerly federal newly recaptured elsewhere, cites the city as an area impacted by wastewater discharge 90 to 90 fifth percentile nitrogen oxide 9095 to 100 percentile. Particulate matter 90 to 100% percentile. With critical service gaps in lacking health insurance, broadband gaps, housing burden, transportation access burden, and a food desert. Flood risk is in the 80 to 100 percentile. I've been working recently with the hundreds of people impacted in the sandy creek area. By the July 5th floods. The devastation is heartbreaking. People lost family members, whole homes and the recovery will take years. Such an event can also push people into homelessness, where in our current policy, the city will then use its bloated police force to repeatedly take their belongings and prevent them from getting rest. Austin loves

[1:26:21 PM]

itself so much, and in truth, I have loved my life here for over 30 years. But it is. It is time to name that. Our city is cruel to its most vulnerable people. A development of this size should have due diligence, lean on commissions and include community input.

>> Thank you, miss Bookout. Mr. Levinsky.

>> Thank you. Council. Bobby Levinsky, save our springs alliance. This item is related to the development agreement. Both items are connected. Section 3.01 of the development agreement. I want to highlight some of the terms for you so you can understand what's what. You're actually approving the vested rights component. So the agreement constitutes a permit under chapter 245 of the Texas local government code. That's the vesting rights statute. And it is the first in the series of permits required for development. So what that means is after today, after you vote for it, you can't change it. There will be no ability for the city to to affect the development that's occurring on the property. And that could

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potentially even go beyond the 45 years. Section 3.03 authorization of grant variances. So except as provided in the zoning code or otherwise in the agreement, the director or his successor or her successor is authorized to grant variances from any land development code requirement. The director may only grant a variance if the requested variance meets applicable criteria, if any, as may be established in the land development code. So that really means that the environmental code process, that the environmental variance process is being usurped. And then that goes to just the director of development services, whoever that may be at the time. And it only applies for like the criteria that's in the code only really applies if there are any exists. So if there's no criteria in the code for any of the land development code, then they can just approve it by their own by their own judgment. So there's no criteria for them to be applying here. I mentioned this

[1:28:21 PM]

earlier under section 3.04, there's a use described as autonomous vehicle and boat testing. That's the same use that ceramic technologies, the military contractor that would just apply for a permit in the area but withdrew it after community opposition. That's the same use that they describe it as. So you might be approving that same military contractor that the community so opposed to under section 3.05 land uses. So again, I mentioned that pretty much any any zoning permitted use is allowed under the agreement under the mixed use area. But there's this really interesting section, section 3.05 C, which says for new uses, if city council creates any new land use after the effective date of this agreement. So think data centers. We're talking about establishing a new use for data centers. It is a permitted use in the mixed district, except if the council only permits the new land use in major industrial or research or development districts. The use will be subject to spacing requirements in section 3.14. So unless you're agreeing to

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establish that the new uses are only permitted in certain in certain uses. So you're you're pre making that determination. They're going to be able to have the the by Wright ability to do that. It would be just better just to say, hey, you can't do data centers on the site. Put that in the agreement here under section 3.07, impervious cover, except as provided in open space, which again, the open space only gets triggered if you approve a tax increment financing zone district. There are no impervious cover limits within the dog's head property, so 100% impervious cover, except with the open space that is contingent to be dedicated, you. They can't exceed 20% impervious cover. And so that open space area includes a lot of riparian Zones. There's special carve out provisions that they're allowed to do golf cart trails within the riparian zone for compatibility standards. So the neighbors that were here saying that they have had no notice about this, it's going to impact them because their rights to

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compatibility standards are going to be overridden by this agreement, because the development will not be required to comply with them under section 3.08, section 3.09 waives all height requirement restrictions for the property 3.09. Affordable housing. So there's a promise to provide affordable housing, but I think we need to learn from our past mistakes. So if I remember block 21, the the property that was just a that's now the W hotel. We had a similar provision in there that said, if you do rental housing, you're guaranteed to do you have to do affordable housing. You have to do it at a certain level that in that agreement, they didn't do rental housing, ended up doing ownership housing. So we never got any affordable housing there. Under section 3.15, it only says that that they intend to do residential units, and if they do so, you will get income restricted housing for 20% of the total for a

period of 40 years. Half of that, they're going to be responsible for half of that. The city will be responsible for paying for under section 4.01, the

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parkland dedication ordinance is going to be completely overridden. It does not apply to the development within the dog's head property. And in lieu of the parkland dedication, there's a series of things that are required to happen here. And again, that only gets triggered if they're getting their tax increment financing district approved by the city. So the water quality compliance. So there's a lot of talk about the the old mining operations on the site. There is no there's been no analysis, no public scrutiny about whether those those mining ponds could be well suited for water quality ponds. And what's interesting here is that there's actually provisions that say that the more toxic uses should not be using those sites. So it raises the question of what water quality treatment those mining ponds will actually be providing for the city. And again, you might have a provision here that has the director of development services saying, we're just going to waive any requirement

[1:32:27 PM]

later. Where else do I want to go with this? I'm just I'm just y'all really need to get into this agreement and just see what you're approving here, because it cannot be undone, and I cannot emphasize that enough. Thank you.

>> Continuing on item 39, we have rich Heyman, Brad Massengill, Lee Edwards. Is Lee Edwards here?

>> I don't see Lee Edwards.

>> Okay. Tommy. I'm sorry. Tommy. Joaquin. Hancock. Victoria. Finn.

>> If your name has been called, please come forward. Mr. Massengill, you have the floor. Please begin.

>> I'm back. I'm going to finish that. Thought I was halfway through. The this. This

[1:33:31 PM]

area of the Colorado river is on a a meander. It's a a geological hydrological feature. That basically means that this river changes courses. And it's on a loop right now that it's been on. But any, any flooding event could change the course of this river. And looking at it, that little isthmus where the highway is, that looks like the most likely place this place could easily flood. And when you're talking about putting industrial uses here, I was, I was talking about the the thing in nueces county earlier at robstown, this Tesla factory, they got the permits. They did all the right stuff. But when they the tc

finally got out there and put some actual monitoring equipment in the water, it has to sit there for a while. They found all kind of things hexavalent chromium, arsenic, strontium,

[1:34:34 PM]

lithium and vanadium, elevated levels of magnesium, iron, phosphorus, calcium, magnesium, ammonia, which contributes to algal bloom. South Austin creek alliance we had a camp out last year. It was in this area. It's a beautiful area, you know, totally quiet dichotomy. One side is this nature. The other side is this industrial wall just goes straight up. You can hear the trucks on the other side. You know, we're talking about having this on both sides of the river. You know, this is a low point. Water goes downhill. This is all downhill from Austin just setting up something like this, right in a place that's likely to flood. Seems like idiocy to me.

>> Thank you, Mr. Massengill. Please. Thank you. Mayor and councilwoman. Joaquin Hancock. Tommy, Joaquin Hancock from district five. And I'm curious.

[1:35:37 PM]

>> Regarding recent events of items that have come before council. And that are presented for public comment. What happened to cause you, our mayor and council, to abandon the environmental and social policies and procedures that protect the potential and promise of Austin as a viable community for our families and future residents. Because initiatives are not properly vetted and presented to voting stakeholders. I'm concerned that the environment and culture are being threatened by the desires and formidable, formidable resources of a minority of corporations and wealthy individuals. Please postpone on this item. Thank you.

>> Mr. Mr. Edwards, you had time donated from Garrett tang. Is that person here?

>> He is not.

>> Okay. You have.

>> Two minutes.

>> Two minutes. All right.

>> Thank you. And thank you for your time and attention. I am requesting a no vote, essentially a postponement on

[1:36:38 PM]

39 as well as 38 and 60. We spoke, I spoke, other people spoke about process this morning transparency, community engagement. I want to speak just really quickly about content and a very small piece of content. Our little section of hergatz Laine, immediately east of 183, is where the proposed extension of the hike and bike trail will pass right on the street. It's a regular, quiet residential street, 30ft wide. There's not a lot of space to put a hike and bike trail, so there are various mentions of ways to do that in the backup materials. They all come with costs. There are short setbacks in that area. My house and the houses on either side. None has a setback more than 17ft. We're also on propane, not gas. There are water meters right there. There will be upheaval. If you look

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in the backup material, you can see a dotted line showing the hike and bike trail going down hergatz Laine on the street. Then it curves down to the riverbank as you get into the city owned property farther to the east. Hope that's making sense. 183 hergatz Laine. Extension of the trail curve down to the river. Well, that curve, as depicted in the backup materials, curves through my living room. It curves to the living room on my next door neighbors. Maybe that's intentional. We need to bulldoze some houses. I'm not assuming that, but if that's not the case, then it's sloppy drawing of maps. Maybe it's true that this depiction in another item of cargoes Laine as a two F corridor, with the legend specifying that is a 92 foot wide corridor is in fact accurate.

>> Continuing on item 39, we have Tona Vasquez, Katherine brown, Megan meisenbach, Roy

[1:38:40 PM]

Whaley, kaiba white, Carmen Llanes, Elizabeth Levins.

>> If your name is called, please come forward. Mr. Whaley, we'll start with you and we'll work toward miss Lianes.

>> Yes, my name is Roy Whaley. I'm a longtime environmental activist and political activist here in central Texas. I wanted to wear a disguise in here today, probably something like a dog's head disguise or something, because I think that's what this whole thing is, is a monstrous disguise. They won't tell us what this mystery business is, whether it's going to be, you know, some high water or energy use ai, is it going to be a military use? Is

[1:39:43 PM]

it going to be like Richard Tuttle told me earlier today, that they're going to manufacture fighter jets there, and then taxi them across 79 to the airport? What is this?

>> You wouldn't be saying that would not be true, would you? Mr.

>> No, but he had. He had a sly wink in his eye, but nonetheless, it could be we wouldn't know. This is in the floodplain. It seems like we have rules for us and rules for you. And as much as we can ignore the sub, the floodplain when we need to, we can overlook those things. We don't know what it is. I don't see how anyone. I don't see how any of y'all can support this. Unless you know something we don't know about what is actually going in there, how much housing is going in there, how much affordable housing, how much open space, what is 100% impervious cover? What? We

[1:40:46 PM]

don't have any restrictions. Look, if y'all are into writing a blank check, write one to me. I could use the money. Okay, so thank you very much. I hope you will come to your senses and say, not now, not now, maybe later, but not now. Thank you very much.

>> Thank you, Mr. Williams. Please.

>> Thank you. My name is doctor Catherine brown. I've already spoken once. I'm here just simply to reiterate some of my previous concerns regarding public health. Part of my work also, aside from modeling emerging diseases in Texas and also locally, is the integration of these with flooding. And one of the big problems, of course, is part of it is just trying to understand what the impact will be. Of course, on the floodplains, on the impervious cover and what that will mean, not just for, as I said, the existing residents, but the new residents, taking into account,

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you know, as our city council, you know, I feel that there's a responsibility to protecting the public, to understanding what the actual risks are. And no risk assessment has been done yet on all these problems that could or might emerge as a result of the development. And it doesn't mean that one can't mitigate against this, but with no plan, there is no way to mitigate. And in terms of, you know, what, what are we facing? You know, we're facing potential transient environments with standing water that become breeding grounds for mosquitoes and other pathogens, water pathogens. We already are endemic for west Nile here. And other diseases are egressing from the south upwards, through our rivers and through our ecosystem. The importance of maintaining a green corridor, which also has great benefit for reducing pests, for keeping down, for keeping down other sorts of

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flooding, as well as pest control. I think that there could be I believe that there is a way forward that could be equitable for everyone, but without the time to make the assessments and make the right plans, we put ourselves, our future generations, also at risk. So please do consider postponing this. Thank you.

>> Miss Lianes.

>> Good afternoon council. Carmen Lianes, district nine executive director of Austin Austin and I was baptized in the lower Colorado river, not by a church. I was brought into my relationship with my ancestry. Native to this land and the Colorado river, which is our yanaguana. It is our celestial river. I know the lower Colorado well and this is quite a ways far down, but there are places on this river where, as you've heard, it's the water is clean enough to

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actually drink. There is pristine Shaw land here, and the future of this is in your hands. This is beyond the next election. This is beyond even the 45 years that you're trying to take away our public authority over making changes here. It goes far beyond my dad's lifetime, who gave a lot of his life to creating the Colorado river conservancy and preserving this land. What are we going to name? You know, he didn't do that to be named. He did that so that that river would have its place with our ancestors and with our children long after we're gone. And this is really the legacy that you're holding. It's this is about your humanity more than anything else. But if we want to talk in political terms, you've heard a lot about data centers. You've heard a lot about defense companies. And I'm sure it feels like a lot of fear mongering. But until you preclude those from the language, until our commissions can actually look at this and make sure that those things

[1:44:50 PM]

don't appear, people are worried about it. And now we heard from Richard Suttle. You know, we've been working on this for seven years. Well, seven years ago, real estate financing looked a lot different. Right. And a big multi unit mixed use development like the domain might have been something that was financeable that was actually feasible financially. It is not right now. Richard Suttle negotiated the contract deal. Right. You all remember that. I know you remember that. Velasquez y'all, we need more time to discuss this. Tara fab is.

>> Elon Musk's.

>> Company that's manufacturing. Billionaires are destroying our world.

>> This is.

>> Lianes of humanity. Figure it out.

>> Miss white.

>> Good afternoon. Kaiba. On behalf of public citizens Texas office, I think that many of you consider yourself urbanist and perhaps even environmentalist, or at least environmentally conscious. And I just want to point out that this is clearly sprawl. So even

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if it is something that might happen in the future, I would urge you not to go out of your way to, you know, bend the rules, avoid the process to give it its full scrutiny. It appears that it is a piece of land, an area that could bear some attention from the city council. However, we need a lot more information. We need to do that in a way that does benefit the environment, as well as the people who are living in the area, and definitely precludes data centers. And I just want to circle back to that, because I'm sure you all have probably seen the news. This is a rising issue here in Texas and it really crosses party lines. So if there's one way to unite a community, and we've seen this not just in Texas, but in other states as well, it's to start doing big giveaways and cutting deals with development for data centers. It is very unpopular politically, and it's for good reason. It's because they are

[1:46:52 PM]

water hogs. They are energy hogs. They're unsightly and they damage our environment and use our land for something that most of us are not going to benefit from. So let's first of all make sure that that is not what this property is going to be used for. And let's make sure that whatever it is going to be used for is in the public interest. Thank you.

>> All speakers for item 39 have been called.

>> Please go to item 40.

>> David Weinberg, Betsy Greenberg, Aubrey Rutter, Carol Baxter, item 40, Brad Massengill, Megan meisenbach, Jen Robichaud, Zenobia. Joseph Katy cam.

>> If your name has been called, go ahead and come forward. If there's an open seat here at the desk, take that. If not,

[1:47:54 PM]

sit in the front row. Miss Greenberg will start with you.

>> Thank you. My name is Betsy Greenberg, and I live in district nine, and I took the bus to get here today. When I heard from friends that money is being transferred. Transferred from Austin energy, Austin water and Austin watershed protection to Austin transit partnership. I thought it might be a joke, but I see from item 40 that is exactly what is proposed to the tune of \$37 million. Austin transit partnership has already eroded the public trust by over promising to obtain voter approval of a permanent tax rate increase and then redesigning a radically scaled down project connect. In fact, just today, the Texas tribune posted an article entitled how Austin's project connect went off the rails. The city should not have to provide funding above and beyond the perpetual tax revenue stream the voters approved to pay for components

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of project connect. And if our utilities, particularly Austin energy, has the money available, it should be used to lower costs for ratepayers. Similarly, if watershed protection has additional room in their budget, it should be used for flood mitigation. Project connect should be funded by the voter approved increase to Austin's property tax and the federal grants that we've been assured that Austin will receive. Please vote no on item 40. Thank you.

>> Good afternoon, mayor. Council David Weinberg, district five. I just want to pick up quickly on one thing Betsy mentioned. You know, when we talk about affordability in Austin, we're talking about a lot of things. I think most, you know, most people think of first and foremost, rent. Their their property taxes, that type of thing. But there's a lot of other things on that list. There's gas and groceries,

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there's child care and health care. And then there are also city fees, which have been going up for customers in the city of Austin. And, you know, if we're going to be taking \$37 million from Austin water and giving it to project connect, I certainly, as a resident and taxpayer, would like to see just a little more English on, on what we're actually doing here. This is a pretty sparsely spelled out agenda item, and it would just be good, I think, for the public to know exactly how these dollars are being spent. Thank you.

>> Good afternoon, mayor and council members. My name is Carol Baxter. I'm the managing director of Austin rowing club, which is located in district nine. I'm speaking regarding item 40 and will note it's also related to item 79, Austin rowing club or a or C has been part of the Austin community since 1981. For many years. Our original boathouse was located

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on Trinity street until that property was acquired for the waller creek tunnel project. Since 2012, we have proudly called the waller creek boathouse, our home. For over four decades, rc has helped connect austinites to lady bird lake through recreation, competition, environmental stewardship and community programming. Last year alone, rc volunteers and staff removed more than 27,000 pounds of trash from lady bird lake, contributed over \$265,000 in revenue share to the general fund. We serve over 100 junior rowers through our youth programs. Continue offering programs for breast cancer survivors, veterans, adaptive athletes, ensuring that rowing and water access remain available for all members of our community. We also host two nationally recognized regattas on lady bird lake, bringing thousands of athletes, families and spectators to Austin, and showcasing the lake is one of the most unique urban rowing venues in the country. As project connect moves forward,

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we understand that change is part of Austin's growth. While this next chapter includes relocation of our operations from the walnut creek boathouse, we welcome the opportunity to work alongside Austin parks and recreation, Austin transit partnership and the city of Austin. During this next phase of our relationship with the city. We are so proud of the role aac has played in lady bird lake for the last 45 years, and we are excited for the future and want to maintain the opportunities ahead to continue serving Austin community both on and off the water. Thank you.

>> Thank you, Mr. Massingill.

>> I, I really don't understand why why we're robbing Peter to pay Paul, to tell you the truth. I mean, what watershed it seems to be getting in the back seat financially. It I don't I don't think they have the money to spare. Personally, having been

[1:52:59 PM]

out in the greenbelt and done cleanups, lots of cleanups and seeing, seeing what condition things are in and how much. How much resources need to be committed toward public education, public safety, all these issues that are tied to watershed that frankly, I don't see what the what that has to do with public transportation. I understand the urgency y'all feel to get this thing going, but it's been just jerking along for a very long time and pulling funding from from vital departments or, as pointed out, increasing fees for us to help pay for this doesn't seem very fair. Thanks.

>> Thank you sir.

>> Okay, moving on to item 40. Three. We have Katy Kim.

[1:54:06 PM]

>> Okay. Hi, this is for item 40. Hello, I'm Katie Kim, I'm a resident of district nine. I have a phd in civil engineering with an emphasis on transportation. And I have done grant funded field research on transit needs. I'm also the recipient of a couple of awards from the American public transportation foundation, including one for my essay about the importance of transit. I'm very pro transit, but I am opposed to continuing investment in the light rail project, especially from funds for departments that need that funding for other critical projects around the city. I want Austin to have the best transit

>> System in the U.S. It needs to be extensive, safe, equitable, effective, responsive, practical, reliable and time efficient for people to access jobs, school and other daily travel needs. And we need to maximize who is served by this transit system in the in Austin and the. From my transportation research and my time as a single mother with two kids and without a car for about a year here in Austin, I know how much more difficult life becomes in Austin without access to a car or good, reliable transit. So we need to reevaluate the approach that project connect is taking,

[1:55:06 PM]

especially when there's just continued money being thrown at it without the benefit that we need from the transit system. The light rail project is problematic on multiple fronts. The increasing costs, the reduced length, the chosen route not being the highest demand route, the amount of right of way taken up, the displacement of businesses, the at grade crossings and resulting conflicts and delays in the street, the timeline to implementation and the inequity resulting from under serving or not serving populations that need frequent and effective and reliable transit. These concerns warrant a community discussion and reconsideration of the plans, so that we can have the best cost effective transit system that works for person's needs and does not continue to drain funding for other projects. Thank you.

>> Moving on to item 43. Zenobia Joseph. Moving on to item 44. Brad Massingale. Mr.

[1:56:08 PM]

After Mr. Massingill will take up item 45 with Adrian Macias, Bianca Guerrero, and Carlos pinon.

>> After my last comments and taking money from watershed, this item I mean spending money to help Williamson county get these atlas 14 map instated to where we know where all this flooding and stuff occurs. I mean, this is important thing. So actually support spending this money. We need to be spending more money on the watershed, more money on identifying these potential problems. So thanks.

>> Adrian Macias, Bianca Guerrero, Carlos pinon.

>> Continuing with item 45. Susana Almanza, Maddie Gutierrez, Valerie Menard,

[1:57:09 PM]

Pedro Hernandez, junior.

>> Oh, after after we get probably two more speakers and we want to take up to 2:00 time certain. Miss Almanza, are you here. You're going to pass. Thank you. Please go ahead.

>> Good afternoon council. So I'm here today because I was a participant in working on the rancho river.

>> Please state your name for the.

>> Valerie Menard, district one with poder. And I was. Happy to work on the community activation group that looked at the strategic plan, the revised strategic plan for rancho river, and I just wanted to compliment Austin watershed department. They've just been tremendous partners. Their commitment to community and to reaching out to community is a model, I think, for other city departments, and I hope that they take some some cues from

[1:58:09 PM]

watershed department. We were glad to be able to give some input into rancho river. Sad that on a day that we're looking at a massive project that's going to completely ignore the, the, the points that we were bringing up, hopefully in the future we will pay more attention to this plan. I think it's an important plan, and it does have a plan that reflects community needs and concerns and and work. So thank you.

>> Continuing with item 45, Greg Nasr.

>> Craig Nasr, Austin Sierra club, and I'm here to say that this plan is really good. And I was a part of it. And I heard

[1:59:11 PM]

the presentation at the environmental commission. And the first of all, the watershed protection department is one of the best departments in the city. And I come down here and I talk to you guys a lot, but I talk to them even more. I know a lot of people in that department, and when we have problems or issues in the city, I help them. One of the best programs you got going is the watershed restoration program. These are so good and we have great scientists, and you need to listen to them. What do they think about the dog's head? I don't know, do you know? I'd like to know what they think about that. So please support this and then listen to them and let the people listen to them. And let us all get the benefits of this great Austin department. Thank you very much.

[2:00:11 PM]

>> Members, we're going to pause on the public comment on the consent agenda and take up some items on our 2:00 time. Certain it's now 2:00, and so we're going to do that. But before we go immediately to that, council member Siegel was temporarily off the dais when we took up item number 16. He would like to be shown voting in favor of item number 16. His vote being counted will not change the outcome of the vote on that item. I move that council member Siegel be shown voting in favor of item 16. It is second by council member Ellis discussion. Hearing none. Without objection, council member Siegel be shown voting in favor of item 16 with regard to item number 23, which council member alter pulled from the consent agenda. Staff has agreed to withdraw item number 23 with the intention of returning to council next week to give council and staff more time to discuss this item and answer questions associated with the authorization amount and funding sources. So there

[2:01:12 PM]

will. Item 23 will not be heard today and will not be brought up. Now that will take us to again to our 2:00 time certain which are our zoning cases members. I indicated that we would pause so that we could do this, because we have a number of items that are scheduled or being looked to be postponed, and in order for them to be postponed and heard next week, we need to get them. We need to get decisions made so that notice can go out in a timely fashion. So with that, I'm going to. And the only ones I'm going to recognize you on right now, miss harden, are those items will come back after we have finished the other speakers on the consent agenda. So don't jump the gun. I'll recognize miss harden on item 61, 62, 63, 64, 70, 73 and 74.

>> All right.

>> Thank you, mayor and council joy harden Austin planning your zoning and neighborhood plan amendment items that have requested postponement to your

[2:02:13 PM]

may 28th council meeting are as follows. Item 61 is C one 420 250121. This item is being offered as an applicant. Postponement to your may 28th council meeting. Item 62 is c14h20260013. This item is being offered as a postponement by council member harper-madison to your may 28th council meeting. Item 63 is na202600 21.01. This item is being offered as a staff postponement to your may 28th council meeting. The related rezoning is item 64 and C 814 2025 0111. This item is being offered as a staff postponement to your may 28th council meeting. Item 70 is C one 420 250089. This item is being

offered as a postponement to your may 28th council meeting. Item 73 C one 420 250080. This is being offered as an applicant as an applicant postponement to your may 28th council meeting and item 74 C

[2:03:16 PM]

814 2018 0122.03 and this item is being offered as a staff postponement to your may 28th council meeting. And I just want to note item 65 and 66, which are na202600 22.0 1sh and C one 420 260010 point S H. Otherwise known as Rohan vela items. Staff received a postponement request from the neighborhood to your July 23rd council meeting for these items. The zoning item does have a valid petition of roughly 80%, but under house bill 24, this only requires a simple majority vote. Meeting six votes would be required for approval. I'm referencing these cases because staff will be offering them for consent later today, at which point you will also hear from the speakers. But if you did want to postpone to may 28th, now would be the opportunity. Okay, that concludes the

[2:04:16 PM]

reading of these items.

>> Thank you. Members, you just heard an addition to what I was indicating, because I thought we would take that up at a later point in time, but because the that doesn't need to be postponed for notice purposes to next week, right.

>> If the council chose to postpone it to may 28th, they would need to do it right now.

>> But what is the request?

>> July 23rd.

>> So the request that we had was to July 23rd. But what she's suggesting is that if we wanted to postpone that to next week, we would need to take that those two items up today? If so, I'll I'm getting ready to read the consent agenda, which includes the items that don't include that right now. But if you want to include that as a postponement until next week, we need to vote on that as part of the. We we don't have to vote as part of the consent agenda, but we need to vote on it momentarily. So let me look and see if

[2:05:17 PM]

anybody is going to want to add that to the consent agenda. Now, we can take it up later and also recognize the request to to postpone it, but that would be for July. We just don't need to do the notice for next week. Am I have I got that? Okay. With that being the case, here's the motion that I'll entertain

for the consent agenda. Item number 61626364, 70, 73 and 74 will be a postponement of each one of those items to may 28th, 2026. Is there a motion? Motion is made by. Well, let me let me get the motion. Motion made by council member Ellis. Is there a second? Second by council member alter? Let me turn to see if there's our speakers signed up on those items.

>> Okay. We have speaker on item 62. Lucia baker. Speaking to the merits of the

[2:06:17 PM]

postponement, an item 64. We have William bunch speaking on the merits of postponement. And. Okay. And item 70. Mr. Bunch, would you like to speak on the merits of postponement? Okay. Scott Smith, item 70. Laura, moving on to item 74. Laura Sabino, William bunch, Megan meisenbach, Zenobia Joseph and Caleb Kaitlin Griffith.

>> Does anyone wish to speak on that item?

>> All the quick turnaround items have been called. All the speakers have been called.

>> Thank you very much, members. You've heard the consent agenda. The motion has been made and seconded.

>> I can speak now.

>> You can speak to the whether you want it to be postponed or not.

>> Yes, I want it to be postponed.

>> Okay. Good testimony. All

[2:07:18 PM]

right. You've heard the motion. It's the motion to approve the consent agenda. As I read it, there's a motion and a second. Is there any discussion, anyone wishing to be shown abstaining from voting on any item on these postponements, anyone wishing to be shown recusing themselves from a vote on any of those items, anyone wishing to be shown voting no on any of those items. Without objection, the consent agenda item 61, 62, 63, 64, 70, 73 and 74 is adopted in each of those items are postponed until may 28th, 2026 and and your counted. All right. Thank you. All right. That will take us back to the consent agenda. And I will come back to the other zoning items later in the day. But that will take us back to the consent agenda. And I'll turn to the city clerk for speakers.

>> Continuing with item 45, we have William bunch, Brad Massingill, and Katie cam.

[2:08:24 PM]

>> Massingill. Are you going to talk? Please make your way forward, miss cam.

>> I was lucky enough to be on the citizen action activation group for ranger rivers. I'll say the same thing, Valerie said. It was really great working with the folks there. This exemplary department. They know or make an effort to actually listen to people. I mean, this body could learn a lot from them. I learned a lot by engaging with the people that are different from me and learning different folks needs and how they interact with the

[2:09:26 PM]

or don't interact with the watershed. You know, this is all about addressing historical inadequacies that we've had in the past, the way nature works and the way real estate works. People have been pushed off into the corners of the watershed because of the the real estate prices were less, you know, back in the old days, regular market forces would make these decisions for people. Now the city is filled up. And these last little bits of the watershed where people live are becoming desirable to development. And it's fueling all kind of problems, from flooding lot to lot flooding, as well as displacement. We need to start protecting these areas and the people that live close to them. And this is a great way to get started. I mean, there's so many great

[2:10:27 PM]

tools in this in this package. They're well thought out and they're community based. And I think we can improve public safety in many ways, including flooding, wild land, inner base fire dangers. All these things are connected to our lifeblood, which is our creeks and watershed protection. And this plan are there to save that. So I support it fully.

>> Thank you. Mayor, council members. Bill bunch, executive director, save our springs alliance district five, speaking wholeheartedly in favor of. And very grateful for our Austin watershed protection department's rain to river strategic plan. Please do support this. And also we'd like to ask you to actually follow it. And respect it

[2:11:29 PM]

because the the cognitive dissonance between the fine work that your staff is doing here and what you're proposing to do with this dog's head development, 100% paving agreement is off the charts. I mean, it literally cannot be more extreme. I want to read you just one passage out of this plan that you're here to adopt. Speaking for the and this is the, the, the, the text, what we will do. We're

committed to making our environmental and drainage standards clear, consistent, and enforceable by improving how we work together and share expectations, we will reduce uncertainty while holding projects accountable for meeting watershed protection goals. This work prioritizes transparency and responsibility so that development supports the health,

[2:12:30 PM]

safety and resilience of our community. There's not one shred of that present in the proposed dog's head development agreement. Please do the right

>> Okay. Hello, I'm Katie Kamm, resident of district nine, professionalism and civil engineer experience in developing drainage plans and advocate for watershed protection and addressing flooding. I'm very supportive of the creation of the rain to river strategic plan. I think there's an opportunity, though, to be even more ambitious in the strategic plan. Whenever I see city plans, I do a keyword search, and in this case, I did amenity and asset, and those words did not appear. I would love to see more about considering stormwater as a means to create parks and creeks to our urban environment. We also rely on site by site detention and water quality. I only saw detention mentioned once in the plan, but we should

[2:13:30 PM]

be reconsidering that and looking at management of stormwater from a watershed perspective, because when you're doing site by site detention and water quality, you're relying on private landowners to maintain it. And that's not always happening. And so that results in the degradation of the watershed. And I think if we take a more watershed approach to it, then we'll have better outcomes. So that's it. Overall, I'm very supportive of this. I'm glad to see it happen. And I second what bill bench said is let's enforce it. Thank you.

>> Item 46 William bunch.

>> Mr. Bunch. Mr. Bunch, did you step up? Oh, no.

>> Item 47 Zenobia Joseph, item 50. We have Paige. Hold on one moment. We do have a remote speaker. We have sky Howell on item 50. Sky, are you there?

[2:14:46 PM]

>> Yes. Can you hear me?

>> Yes. Please begin.

>> Ma'am, go ahead with your testimony.

>> Do you? Okay. And Nickells Waterman, Ottawa. Endow. My name is Sky Howell and I am Nottawaseppi Huron band Potawatomi. And I'm also Grand River band, Ottawa. And I'm honored to serve our community as the executive director of the Native American Cultural Center. I'm speaking today in support of the establishment of the Native American and Indigenous Quality of Life Commission. Native people have called this land and region home for centuries. As the first peoples, we have a special place in the cultural fabric of Austin and represent over 75,000 residents across central Texas. Native people have struggled to hold on to our culture, our language and our way of life. Due to displacement and cultural erasure, we have historically been invisibilized in the quality of life data that

[2:15:46 PM]

impacts our well-being. In spite of all that has been done to eradicate our community, we are still here and we celebrate joy in our community and contribute in meaningful ways across Austin and beyond. The Native American Cultural Center is a hub for intertribal community members and partners to gather, learn and support one another. Serving over 150 students and families monthly, we bring important cultural arts traditions back to our central Texas community and members. We fill a critical gap in our community due to a lack of access to culturally relevant programs and schools and other community centers and settings. We are also the host of the Austin Powwow, an annual tradition that brings thousands of visitors and \$350,000 in tourism dollars each year to the our community partners are numerous and include intertribal councils, local schools, universities, libraries and museums. There are collaborative efforts. We work year round to meet the needs of our native community through the Native American and

[2:16:46 PM]

Indigenous Quality of Life Commission, we envision a deeper and more impactful partnership with the city. We hope the commission will increase visibility of our community within the strategic plans across sectors including health care, education, economic development.

>> Thank you.

>> Thank you very much.

>> Next, we have Richard Bondy, item 50.

>> Good morning, Mayor Watson. Mayor pro tem Vela Council members. My name is Richard Bondy, director of community advocacy at Meals on Wheels, Central Texas, chair of the commission on aging and a resident of district five. I'm speaking in favor of the Native American and Indigenous Quality of Life Commission. This recommendation was developed collaboratively with members of the Indigenous

community, including representatives connected to great promise for American Indians and other native organizations. It is grounded in models already

[2:17:46 PM]

being used successfully in cities such as Seattle, Los Angeles and Fargo. The proposal recognizes the presence and contribution of Austin's diverse urban indigenous communities. This is not simply about simple symbolism. It is about ensuring indigenous residents have a consistent voice in discussions involving culture, wellness, education, economic opportunity and city policy that impact their community. Despite a strong and active native and indigenous community in central Texas, Austin currently has no formal advisory commission to represent those voices. Austin has often stated its commitment to equity, inclusion, and human rights. This recommendation provides an opportunity to make those commitments more complete. Thank you for your time.

>> Moving on to in-person item 50 with ASL interpretation

[2:18:47 PM]

services, we have speaker Gabriel Arellano. You will have four minutes.

>> Interpreter is online.

>> Good afternoon, Mayor and Austin City Council members. My name is Gabriel Arellano. I'm the founder and chief executive officer of STEM Sign, an indigenous-led educational organization focused on STEM education, sign language, accessibility, sustainability and traditional indigenous knowledge. Today, I respectfully ask for your support in approving Native American and indigenous quality of life commission. This commission represents more than policy. It represents

[2:19:49 PM]

recognition, visibility and meaningful inclusion for the Native American and indigenous communities here in Austin. Austin continues to grow as a diverse and innovative city, yet Native and indigenous voices have often remained underrepresented in the decision-making spaces. Establishment of the commission creates an important opportunity for our communities to contribute directly to the conversations involving education, cultural preservation, health and wellness, economic opportunity, environmental stewardship and community development. Through STEM Sign and our collaborations with the Native American Cultural Center. In many community partners, I have witnessed how powerful

[2:20:50 PM]

indigenous centered education and cultural cultural programing can be for youth, families and educators, and the broader public. Our communities are not only preserving traditions, we are actively contributing to the future of Austin through education, arts, science, sustainability and community leadership. The commission would help strengthen communication and partnership between the city of Austin and native American and indigenous communities, while helping future generations feel seen, respected, and included. I also want to acknowledge and thank council member Jose Velazquez, the native American cultural center, and many community leaders and organizations who have worked tirelessly to bring this effort forward. Thank you for your

[2:21:51 PM]

time, your leadership, and your consideration. I respectfully encourage your support for the native American and indigenous quality of life commission. Thank you.

>> Thank you.

>> Continue with item 50. We have Pedro Hernandez Jr, John Robichaux, Zenobia Joseph. Does anyone wish to speak?

>> Your name has been called. Please let us know.

>> Next item is 52 Jeffrey Bowen Jen Robichaux.

>> Mr. Bowen, don't talk me out of my own item.

>> I'm sorry sir.

>> Don't talk me out of my own item, okay?

>> I won't, and actually, I'm here to support your item, but I have some caveats.

>> There you go.

>> As you would know, Jeffrey Bowen, district eight. Mr.

[2:22:53 PM]

Mayor, city council members, ladies and gentlemen. Actually, one of the questions I had on this is why is this taking so long to get something to be redone? But one of the things that I've, I've noticed over the years and being being a guy that's build stuff for the United States air force, done city projects, state projects, projects all over, in some cases all over the world in different times. I noticed in Austin, we

seem to take forever to get a project done, just for instance, at my local library, we're supposed to have a little project done to expand the parking lot. In the real world, it probably wouldn't take more than 30 days. This seems to be dragging out, and I'd like to see more items in this list where it talks about something like this, especially when it talks about performance evaluation, scoring, inspections, enforcements. I don't see anything in here about making sure that we have

[2:23:53 PM]

applicable timelines for projects. Yes, I understand weather delays. Been there, done that. But the amount of time it takes to complete projects seems to be drawn out forever. I noticed that the library up at the old quarry, it's going to open up again here after two years for a renovation project. That seems to be extraordinarily long, and maybe looking at the evaluation and evaluating our entire process on how we go from award to the time that it's done, or even a time that it starts, needs some really serious evaluations because this is not it just drags out and it costs us more money. And people are wondering, why is it taking so long? Thank you.

>> Thank you.

>> Item 79, William. Bunch. Zenobia. Joseph.

[2:24:54 PM]

>> They're not responding.

>> Item 80 William bunch, Betsy Greenberg with time donated from Barbara Macarthur. They are both present. Betsy, you will get four minutes. Brad Massingill. Zenobia. Joseph Loren all for item 80.

>> We'll start here on this end and we'll work this direction.

>> Alrighty. Good afternoon. My name is Lauren Matranga. I'm a representative of the people of polaris tenants association, and I've been a resident of the polaris on the park apartments for ten years. I'm testifying today on item 80 regarding research into future expansion and securing of tenants rights and protections. I'm here because our apartments ownership has applied to rezone the property, which puts our community under imminent threat of displacement. The tenants

[2:25:56 PM]

rights issues being voted on here today will have a direct impact on our case. Affordable housing in central Austin is increasingly difficult to find, and we're at risk of losing hours. Research into tenants protections, as proposed by item 80, will allow our community to stay afloat in these increasingly

financially difficult times. I'm fortunate enough to be represented by councilman Velasquez, who's been extremely generous with his time and energy in regards to our case. In an ideal world, our ownership would engage with us, as councilman Velasquez has, and workout provisions to make sure our community won't be kicked to the curb. Unfortunately, our apartment owner, Greg Bregman, has flat out refused to meet with us, and our emails to the lobbyist, Victoria Haas, have gone unanswered. We are hopeful that our attempts to speak with them will one day result in a fruitful discussion. But in the meantime, we can't rely on good faith when our livelihoods are on the line. As tenants, we have minimal protections as provided by law. This vote, which may seem small to some, is what will dictate my future, the future of my community, and also the future of tenants all

[2:26:56 PM]

over the city of Austin who might find themselves in a similar situation. In a city where the median home price is roughly \$570,000, while minimum wage stays stagnant at 725 per hour and the price of groceries continue to skyrocket, we, the renters, are stuck at the whim of developers who are sometimes so hyper focused on the bottom line that they forget that their decisions impact real human beings like me. I'm here asking you, on behalf of my community to please vote in favor of item 80. Initiate research into basic rights for tenants who are struggling every day just to live here in the city of Austin. As tenants who are being impacted directly, we look forward to engaging in the process of identifying and securing our rights for the future. Thank you.

>> Thank you, miss Greenberg.

>> My name is Betsy Greenberg and I live in district nine. Item 80 directs the manager to convene stakeholders and recommend changes to the city's provisions for density bonus programs that are in city code for 18 article two. This should be done, but before item 56,

[2:27:57 PM]

which I thought was on today's agenda, although you didn't call it the new citywide density bonus program, it should be done before the new citywide density bonus program is passed, not after. Which is why I signed up as neutral. I also observed that for most instances, the word stakeholder really means developer. In fact, I believe this item is a result of those very stakeholders working with planning commissioners to reduce the requirements in. For 18. Unfortunately, when staff does involve general members of the public and stakeholder processes, participants feel like they are being used not for their actual opinion, but to check off a required box. For example, participants at recent events about the central city district plan did not discuss anything about the plan and instead were asked survey questions with obvious answers like do you think public safety is important? So yes, convene

[2:28:58 PM]

the stakeholder process. But please include and really listen to members of the public, especially those like the previous speaker, that are at risk of developing, of displacement instead of only developers who inform staff about what will or will not. Pencil. Thank you.

>> Thank you. Item 56, which you said we didn't call, is. The reason we haven't called it yet is because it's a public hearing item, and so it will be called at the appropriate time. Thank you, Mr. Massingill.

>> Brad Massingill, I'm on the executive committee for Austin neighborhoods council. I'm here talking for myself. I after the acacia cliffs debacle and several other things I've seen around town, I think this needs to be as strong as possible. And like Betsy said, before we start tinkering all these other rules, we need to have some protections for renters in our

[2:29:59 PM]

in our city. This this is everything rolls downhill. I'm using the word everything that. And it lands on poor people, you know, and they're not here. They're out working right now. So it's up to us old folks and people have time off to come up here and speak up for them. And, and having some protections and including actual stakeholders, I.e. The people that live in these areas presently, that's that's who we need to be engaging. And I, I applaud the effort to at least open that part up of this density bonus discussions, because it's been sorely lacking in the outreach and the way we've been interacting with us. The public has been less than robust. So being able to include like, again, back to the rain to river model, you know, something of that nature rather than a bunch of foam

[2:30:59 PM]

board easels and people with pre-digested stuff telling us supposed to think. It's, it's, it's kind of insulting, you know? And I don't mean any disrespect to the staff, but that's been the way it's been almost all these different meetings I've been going to. It's like a, a three dimensional website, you know, with all the, the foam boards of each page of the website. And unfortunately, you can't click on something on this foam board and it transports you to the other side of the room to where the follow up thought is. So it's very disconnected, connected, and not very informative.

>> Mr. Massengill members, item number 70. That includes. That concludes all the speakers. Is that correct? Yes. Item number 77 is related to a potential settlement. So I'm going to ask the city attorney to comment on item number 77 and allow you to ask any questions you might have of legal counsel.

>> Thank you. Mayor. Item 77. We recommend that you approve a payment of \$350,000 to settle a

[2:32:00 PM]

lawsuit titled Javier ambler versus the city of Austin and officer officer Neeson. This case involved the death of Javier ambler Jr while he was detained by the Williamson county sheriff's department and a petty officer. Neeson after a high speed chase in exchange for the city's payment, plaintiff will release any and all claims against the city and officer Neeson related to the incident, and will also dismiss the lawsuit filed in the western district of Texas Austin division. The Austin city attorney's office recommends you approve payment based on these terms.

>> Thank you. Members. Anybody have any questions of our city attorney? At that being the case, we will now go to a motion on the consent agenda. Remember that item seven, 16, 23 and now 38 and 39 were pulled from the consent agenda item 16. I'm sorry. Also item 12. We've we've dealt with item

[2:33:02 PM]

number 12. We've also dealt with item number 16. Item number 23 was withdrawn by staff. And we will take up item 17, item seven and item 30 and 39 accordingly. But that I just want to make sure we're clear on what's not on the consent agenda. Is there a motion to adopt the consent agenda? Motion made by council member alter it is seconded by council member Ellis discussion with regard to the consent agenda. And if you want to be recognized, let me know. Mayor pro tem.

>> Thank you. Mayor. Just wanted to thank council member Velasquez on item 15 and thank the the speakers as well. I think that's an extremely appropriate addition to our lineup of boards and commissions. One of the most impactful and emotional, meaningful events that I've

[2:34:02 PM]

participated in was when the the tonkawa came to visit Austin, their former native lands. They're now in a reservation in Oklahoma, a long history, but their visit here was deeply impactful and deeply meaningful. You know, they're trying to reconnect to their roots in central Texas. And I think this is a great way. I would love to down the road, figure out a way to even get them engaged and involved in the commission. But, you know, it's a great resolution. I really appreciate council member Velasquez for bringing in all the folks that that have sponsored it. Also just wanted to highlight item two, which is for art and public places for the saint John redevelopment. We're going to have a bunch of items on that at the may 28th meeting, but just getting excited about potential redevelopment on that site. And we're going to kick it off with this contract for some public art on the site. Again, just

[2:35:04 PM]

excited to see that move forward. Thank you mayor.

>> Thank you, councilmember Velasquez.

>> Thank you. Mayor. Colleagues, I wanted to touch on a couple of items. The first being item number 41. I'm excited to see that the item is on our agenda to negotiate and execute our Ila with the county to help establish the first family justice center in central Texas. Last year, we passed a resolution and budget amendment to support the creation of the fjc, and I am grateful to the city staff and our county partners, especially county attorney Garza, for helping make this possible in these negotiations. I encourage city staff to allow the flexibility needed to get the fjc operational as soon as possible on item 50. Today is a historic day in Austin, Texas. With the passing of item 50, we join one of few cities in the U.S. With a commission for our native and indigenous community. Last year, the native American cultural center and the mayor pro tem touched on. It hosted 15,000 folks at the 32nd annual Austin

[2:36:05 PM]

powwow and native American heritage festival, and the native American cultural center is isn't the only organization who supports our indigenous community in Austin. Yesterday, the Puerto rican cultural center, also located in district three, sent in a letter of support for this item as they share taino culture and traditions through the tribe of the sacred place. Council is in the middle of sunseting commissions that are no longer needed, and I have. And I've met with commissioners that see the value in considering the number of commissions in the city of Austin. However, we must do this thoughtfully. This is far overdue for our native American indigenous community that they are given the opportunity to make recommendations directly to the city and to be seen and heard in our policy decisions. Thank you to the mayor, pro tem council members qadri alter and Siegel for co-sponsoring this item. Also, thank you to sky Howell and non blasingame at the native American cultural center located in district three. And thank you to my my

[2:37:06 PM]

team, Elise and Moe, who worked very, very diligently on this. And thank you, mayor.

>> Thank you. Councilmember qadri.

>> Want to thank councilmember Velasquez for leading on item 50 on setting up the native American indigenous quality of life commission. Thanks for having our office as a as a co-sponsor. Just want to make real quick comments on item 80. You know, really proud to continue working on chapter four, 18 dates. You know, we heard a lot of perspectives today, all extremely important. And I think it's important for us to make meaningful, lasting changes in our city. So I just want to just thank the co-sponsors on the item. Councilmembers. Sorry, mayor pro tem vela, councilmember Siegel, councilmember Velasquez, one of the things staff for all their hard work on the item. And I also want to thank folks at housing works on all our speakers today for for all their input.

>> Thank you, councilmember Siegel.

[2:38:09 PM]

>> Thank you mayor. So I just a few items to note, items four and five want to thank Austin energy for these two items, which together add 399mw of wind generation capacity. Another example of how Austin's a national leader in renewable energy generation. Item 36. Want to congratulate and thank Austin housing and director Dean for this code amendment, which clarifies that tenant organizing rights and protections under our lease addendum will also apply to housing created by density bonus programs. Item 45. I want to congratulate Austin watershed for its rain to river ten year strategic plan. This work is a testament to Austin's environmental community, our ecological consciousness, and how we continue to innovate to be good stewards of the land, mitigate the effects of human development, and actually survive in this flood prone region. And for the members of the public, I would encourage you to check out the document, which has a lot of great information and really beautiful photos of Austin and its watersheds. Item 50 just want to give a huge thanks to

[2:39:10 PM]

council member Velasquez for bringing this to create a native American indigenous quality of life commission and honored to be included in this effort. Item 52. I want to thank the mayor and the co-sponsors of this item. In particular, I support the resolution that requests analysis of management and advisory consultant contracts for fiscal year 27 as part of the budget process. And mayor, if you don't mind, I'd like to be added as a co-sponsor of item 52.

>> Thank you very much, councilmember Siegel. Without objection, councilmember Siegel will be shown as a co-sponsor of item number 52.

>> Thank you. And this last one, item 80. Thanks, councilmember qadri, for leading this effort to improve tenant protections and establishing a stakeholder process. This is a great opportunity to improve administrative practices and provide tenants with stronger housing and financial assistance. Thank you mayor.

>> Thank you, councilmember duchen.

>> Thank you. Mayor. I just want to flag two items. One that we haven't talked about, item 42. It's about brush pickup. I understand and very much appreciate all of Austin resource recovery work to

[2:40:10 PM]

fulfill its mission. Close loopholes by adjusting the policies and fees for brush pick drop off at Hornsby bend. The sort of brush pickup remains a priority for us because of wildfire risks, and I want to thank staff for their help with our latest brush pickup community event last weekend with Austin parks foundation. A rapr. To get all this brush that we hauled out of barrows nature preserve. And I applaud Ares progress in saving money and fuel costs for the pickups. But I also have to note the amount of brush pickup tonnage declined by half between 2024 and 2025. So our plan is to continue to work with them, as well as all the relevant departments, to make sure that constituents prepare for and mitigate the wildfire risk associated with clearing out the dead and down in their areas. And for item 36, I want to thank the folks that worked on this, as well as counsel for qadri. Item 80 the protections for residents displaced by development are inadequate to

[2:41:11 PM]

make them whole, and I'd recommend that staff is exploring how to continue to strengthen those protections and dial in the appropriate compensations. They consider aligning with the amount of rental compensation to the market from where folks are being displaced into, rather than tying it to the apartment they've lost. That's all I've got.

>> Thank you. Thank you, councilmember, let me speak on item 52 real quickly. First of all, this comes out of a lot of the work that's been done through the city auditor's office and come through the audit and finance committee, where there's been an indication of a need to properly document our consultant contracts and to diligently monitor our contracts and our grants and make sure that our money is being spent well, efficiently and effectively. And so this will lead to greater oversight where we're going to do a better job of tracking deliverables, measuring performance, and doing vendor review. Also, it will bring us the greater implementation of innovative technology for the tracking of those things. I

[2:42:12 PM]

want to say thank you to Mr. Van Eno and to James Scarborough in particular, for helping on this and working closely with me and my office to make sure we're using those public dollars for the contracts and grants efficiently and effectively. And I also want to say thank you to the co-sponsors. Mayor pro tem vela council members Alton Ellis, qadri, and now councilmember Siegel for their support. And I'm looking forward to that work coming back to the council. With that being said, members, is there any further discussion? Oh, I'm sorry, councilmember Lang.

>> Thank you. I appreciate that, mayor. I'll start with number 52, the procurement policy. Thank you for your leadership on that, mayor, and I would love to be added as a co-sponsor. It's extremely important to become more systematic in the tracking and management of these areas. So I really appreciate the work.

>> Without objection, councilmember Laine will be shown as a co-sponsor of item number 52.

>> Thank you. And similarly for item number 50, establishing the native American quality of life commission. I'm grateful to the speakers who have come

[2:43:12 PM]

and spoken, and also for the leadership of councilmember Velasquez and my other colleagues for bringing this item forward. It is extremely important, and I also would like to be added as a co-sponsor for that item.

>> Without objection, you'll be shown as a co-sponsor of that item, item number 50.

>> And finally, as it relates to number 41, the family justice center, with the within the context of our regional collaborative effort to sustain our support network and services for victims of domestic violence, sexual assault, stalking, and human trafficking. I am pleased to see us making progress on the development of a family justice center with Travis county. My office has been exploring ways to ensure that Williamson county neighbors. The city of Austin addresses also are able to access these services. We have met with brave alliance and the Asian family support services of Austin, and I bring this up to keep our local residents on the city's radar, ensure that we make sure that our family justice center will be accessible to all city residents. Thank you to the Austin public health staff, and I look forward to seeing this

[2:44:14 PM]

come to fruition. Thank you.

>> Thank you, councilmember. Okay, members, we have a motion and a second to approve the consent agenda. That concludes the discussion on the consent agenda. Is there anyone wishing to be shown abstaining on on any item on the consent agenda? Anyone wishing to be shown recusing themselves from a vote on any item on the consent agenda. Anyone wishing to be shown voting no on any item on the consent agenda. Hearing none. Without objection, the consent agenda is adopted. Members. What I'm going to suggest we do is we go to item number seven, and we hear the public comment on item number seven. And then we will go to the public hearings. And I remember item 54 and 57 have been postponed, but we'll go to item 55. And what I would anticipate we will do is go item 55, 58, 59 and then 60, which we will then take up items 38 and 39, along with item number 60, and we'll vote

[2:45:15 PM]

on those. And then go back to item number 56. That's just the order. So that everybody kind of feels where we're headed on all of that. With that being said, we will now go to item number seven, and I would ask the city clerk to please call speakers.

>> Okay, we'll start with Jeremy Hendricks for item number seven.

>> Good afternoon, mayor and council members. Sorry, I'm not in person with you today. This is Jeremy Hendricks, district four resident, and I'm here today representing liuna, the laborers international union of North America, with over 600 000 members to testify in favor of item seven, Laguna supports and all of the above energy strategy. And that keeps Austin moving forward while continuing our city's leadership on climate and clean energy. Austin energy in the city of Austin have worked incredibly hard to position this city as a national leader in sustainability, renewable energy, and climate innovation. We should be proud of that work, and nothing about this proposal changes our commitment to building a cleaner future. But

[2:46:16 PM]

we also have to realize we have the responsibility to protect people on our worst energy days. These Peaker units are not about abandoning climate goals. They are an insurance policy, an insurance policy for extreme heat, severe winter weather, grid emergencies, and the growing energy demands facing our city. When the lights go out during a major event, it's not the wealthy people who suffer first. As also president of Windsor hills neighborhood association, I know it's the seniors, it's our children, it's working families, and it's the medically vulnerable residents that really are at risk. And we cannot risk catastrophic outages or loss of life because we fail to prepare for worst case scenarios, which we know are coming. At the same time, I'm also here to remind council that we have major opportunities ahead to aggressively address the climate crisis through initiatives like our geothermal study resolution, that we hope advances in the coming months. And I just want to close with reliability and sustainability can coexist, and they must. So I encourage you to support this. I look forward to continuing to

[2:47:16 PM]

work thoughts and energy in the council to build a cleaner, safer future that protects workers, has high safety standards and always pathways into good local careers. So thank you for your time and have a great day.

>> Next speaker is Rafael Schwarz on item seven.

>> Good morning. My name is Rafael Schwarz, speaking for the Austin Sierra club, and I'm a resident. I spoke on Tuesday about the serious need for updated and transparent modeling here, so the city can make a properly informed decision. I won't repeat all of that, but instead want to focus on adding meaningful carbon emissions guardrails so that these units do not run all summer, every summer, yet can still function as insurance for true load shed event and for the rare severe financial event. Please put

the policy where the discussion has been and limit these to an insurance policy. The financial case for local solar in Austin is basically entirely dependent on the summer afternoon air conditioning peak load. That is

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what solar and storage does best, and every extra megawatt of competing gas speakers that run daily in the summer does flatten the economics for local solar batteries and demand response for generations to come. These local speakers are competing directly with local renewables, and if the city is putting its thumb on the scale for massive local gas generation to the tune of \$1 billion, solar will scale much more slowly in Austin, and the city will have no realistic path to achieving its carbon free goals. These guardrails will also dramatically reduce the utility's carbon emissions and improve local air quality. I do believe this is existential for the city's climate targets, and I urge you to support an amendment on this topic. Thanks for your time.

>> Moving on to in-person for item seven, we have Elena Carnahan, Todd Davey, Devin barber, Denise Davis, Jeremy martin. Please make your way to the front and state your name for the record before you begin.

[2:49:29 PM]

>> Good afternoon, mayor, mayor pro tem and council. My name is Lena Carnahan, and I'm here today speaking in support of item seven on behalf of the real estate council of Austin and its nearly 2000 members, our members build the homes, offices, stores and infrastructure that keep Austin vibrant. The three Austin energy items today are essential to maintaining affordability and reliability for Austin, expanding our on demand generation capacity to include speakers would help protect us from unpredictable price spikes, while strengthening the reliability of our local grid. A reliable power supply and infrastructure are critical to supporting our continued growth. Beyond just cost savings, speakers would ensure fewer outages and quicker recovery from emergencies and need not remind you of 2021. Without these measures that will generate capacity for our city, we will continue to have major reliability and affordability issues. To add to this, ERCOT is projecting that the statewide electric system will be quadrupling its current peak demand by 2032. This becomes an

[2:50:29 PM]

issue for individuals and businesses wanting to move to Austin. They want to look for a place with stable, affordable power, and we need to be that place. Our city depends on an affordable and reliable power supply. These proposed investments would deliver that while also advancing a responsible, clean

energy transition and protecting Austin energy's long term financial health. These items represent an important step toward maintaining a stable, resilient, and affordable energy system that can support Austin's future growth. Please support item seven today. Thank you.

>> Good afternoon. My name is Denise Davis, and I'm the 2026 chair of the Austin chamber of commerce. Thank you for the opportunity to testify today, briefly in support of item seven on your agenda. This is a very critical item, and it provides critical investments that are vital to Austin energy's future, to customers and to the business community. Among their many benefits, these investments will protect

[2:51:30 PM]

customers from price increases and keep the grid stable and prevent outages. I'd also point out that dispatchable generation is important to our city to fill the gaps when the sun isn't shining, or when there is no wind, and that speakers are a critical piece to balancing out Austin energy's portfolio in these instances. So our chamber believes that speakers are an important investment that increase reliability across the board. And finally, it is a sound business decision for the city because it protects Austin energy from owing ERCOT a significant amount of money and stretching its budget or cash reserves because it lacks the ability to provide local generation. So again, thank you for the opportunity to support this item on the agenda and to make a few brief remarks. Thank you.

>> Thank you very much.

>> Good afternoon. Mayor, city council members, members of the public. Davon Barber, president and CEO of the downtown Austin alliance. I'm here today speaking in support of item

[2:52:31 PM]

number seven. Downtown Austin represents less than 1% of the city's land mass, but produces 11% of the city's taxable value. To put that in perspective, that represents 14,000 residents, 745 storefront businesses, 132,000 downtown workers, and 15,000 hotel rooms. Our residents, small businesses, workers and hotels must have reliable power, especially during extreme weather events. Peaker plants provide the ability to restart the electric system during a total outage without needing outside power to do it. Peakers are a measure of last resort, only called on when renewables and storage fall short. Our city is growing at the same time that extreme weather events are growing, testing our energy capacities. Additionally, new Peaker units would enable the replacement of older, less efficient gas plants. This reduces overall emissions even as dispatchable capacity grows. On a broader note, everyone knows

[2:53:31 PM]

the city is facing budget deficits. As a reminder, Austin energy provides nearly 10% of the city's general fund revenue. If Austin energy does not produce, does not produce enough local generation, it must buy energy on the ERCOT market during extreme weather events, potentially leading to dip into cash reserves. New peaker plants can offset those costs. In closing, Downtown Austin is the economic engine that powers the rest of the city in order to continue the investment and growth downtown that we've seen over the last 20 years. It needs reliable energy. Thank you.

>> Thank you very much.

>> Continuing on item seven, we have John Howard Haydn Baggett, David Jabbour, Toby Hayden, Stacy Schmidt.

>> Mayor, mayor, pro

>> Tim Vela and Council. My name is Haydn Bhagat. Speaking on behalf of the coalition for clean, affordable and reliable

[2:54:33 PM]

energy and here to support the power generation investments today. But I want to start my testimony by identifying some of the programs, policies and benefits that put Austin energy above other utilities in the. Starting with the customer assistance program, solar standard offer. E-bike rebates. Demand response pilots, EV home charger subsidies. Disconnection moratoriums during inclement weather, geothermal exploration. The lowest residential rates in Texas, a \$139 million and growing annual transfer to the city general fund and, above all else, a carbon free generation mix that exceeds statewide and national levels. All of this is at stake today. You've consistently heard about the outage risks and potential bill impacts that come from insufficient local generation, but it's important to consider the threat to the system as a whole during periods of extreme demand. Austin energy could owe hundreds of millions of dollars within days if it lacks enough

[2:55:33 PM]

local generation potentially exceeding its reserves. ERCOT requires immediate financial settlement, and with the utility only maintaining 184 days cash on hand, it could face a scenario where it can't pay its bill and has to look to the city for a lifeline. These risks are only exacerbated by load growth and ongoing transmission constraints. While battery technology is advancing rapidly. These resources can't yet protect our utility from this degree of financial exposure. Meanwhile, the speakers you're considering act as an insurance measure that protects Austin energy from insolvency and keeps it publicly owned. Without this, a utility could lose its financial footing and its ability to invest in these renewables

efficiency programs and robust public services. A vote for speakers is a vote to continue Austin energy's 130 year legacy in our community. Thank you.

>> Good afternoon, mayor and city council members. I'm John Howard with Dell technologies. I'm here today on behalf of the

[2:56:35 PM]

Austin chamber of commerce in to express our support for Austin energy's proposal. We haven't always been in a position to do so, but today we applaud Austin energy on this thoughtful proposal to add critically needed local dispatchable power. We've all lived through enough Summers, winters, storms and outages to know that it's critical for our residents and our businesses that we have affordable, reliable and sustainable power. Peakers help keep the grid stable, keep bills predictable, and keep Austin energy financially sound. Renewables and batteries are essential, but they can't do it all alone. We need more local power generation and transmission capacity to reduce the chance of wild price spikes, keep the grid stable and prevent outages, spur investment in transmission import capacity, protect

[2:57:37 PM]

against power congestion costs and allow Austin energy to replace its older, less efficient gas plants. Peakers are a measure of last resort, only to be used in the rare instances when renewables and battery storage fall short, boosting local dispatchable generation protects Austin energy's financial soundness, ensuring that it's able to reliably and affordably power our homes and businesses, and able to support the city's budget for a host of priorities and able to strengthen the city's renewables portfolio. Thank you.

>> Thank you.

>> Members of the council. I'm David Jabbour, chair elect of the Austin chamber of commerce and business owner doing business in every district in the city of Austin. If we look back to 1895, when the city of Austin first got into the power generation business, it was

[2:58:37 PM]

renewable and and Progressive. Austin is still Progressive, with 75% of its power coming from carbon free sources well above ercot and national averages. New Peaker units will enable the replacement of our older, less efficient gas plants. This reduces the overall emissions peakers fill the gaps when the sun isn't shining and the wind isn't blowing. We need the speakers. Renewables and batteries are essential,

but they can't do it all. Not all alone. That is speakers help keep the grid stable, bills predictable, and the Austin energy and Austin energy financially sound. Please support item seven.

>> Thank you sir.

>> Good afternoon. My name.

>> Is Toby Hatton. I am a nurse and an emergency manager, and I get extremely excited about critical infrastructure resiliency. So I'm going to read my statement. I'm the program director of disaster recovery and emergency medical response at ascension Texas. I'm here today representing ascension Texas to express our

[2:59:37 PM]

strong support to for Austin energy's resource generation and climate protection plan to. 2035. Ascension operates more than a dozen hospitals in the Austin area, including 480,000 encounters in our emergency department and 16,300 and associates. We are a critical part of the community's infrastructure as a hospital system, our mission is a commitment to serving all people with special attention to the poor and vulnerable. To do that, we depend on reliable power, and that meets the demand of the community. In a hospital setting. Uninterrupted power is not merely a convenience, it is a matter of life and death. Our patients, especially those in critical care, on life support or undergoing surgery, depend on a stable and predictable electric service. The 2035 plan directly addresses this by prioritizing reliability and working to mitigate the risk of long duration, statewide and localized outages, we have experienced firsthand the devastating, devastating impact of extreme weather events such as winter storm uri, which highlighted the vital need for

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resiliency. This plan aims to make Austin energy operationally and financially resilient. In the face of these increasing challenges. We particularly commend the commitment to maintain blackstart utility status, ensuring that our grid can be restored in a worst case scenario, a capability essential for critical services like ours. The plan strategic inclusion of local solutions such as avoiding premature retiring of existing local generation at sandhill and decker and considering more efficient natural gas Peaker units is paramount. These resources are crucial for voltage support and preventing outages. While we strive for clean energy. These dispatchable local resources act in extreme events, directly safeguarding our ability to provide continuous care. From the hospital's perspective, this plan is not about energy. Thank you.

>> Thank you very much.

>> Continuing on item seven, we have Dominic Padilla, Kevin Fincher, aj Bingham, Al Braden, trey Salinas. Is trey Salinas here? I have Molly Carr

[3:01:40 PM]

donating two minutes. Is she present? Okay. When you're up you'll have four minutes.

>> Somebody begin.

>> Mayor and council members, thank you for the opportunity to speak today. My name is Dominic Padilla and I live here in central Texas. And in addition to being a husband and father, I currently serve as the chair of the business retention and expansion council for opportunity Austin, and as a board member of the Austin chamber. In those roles, I regularly meet with many in the region's largest employers, and I can tell you firsthand that energy reliability is becoming one of the most common concerns about central Texas future growth and competitiveness. I consistently hear from employers that uncertainty around power reliability is a major concern when making decisions about expanding operations and investing in our region. But beyond my profession, my professional role, I'm also here today as a

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father who experienced firsthand what happens when our electrical infrastructure is pushed beyond its limits. During winter storm uri, my wife and I had a one year old daughter at home. She was still completely dependent on us to keep her safe and out of harm's way. Like thousands of other families across Austin, we lost power for extended periods of periods of time. And I will never forget sitting in front of our fireplace in the middle of the night, trying to keep our little girl warm enough and safe enough to make it through the freezing temperatures. That experience changes the way you think about energy policy. What my family went through was not unique. Many families across the city faced fear, uncertainty, and real danger because the system failed when people needed it most. How will we want a cleaner and more sustainable future? And we should. We also have a responsibility to protect protect people. Today, Austin has grown tremendously. Central Texas continues to grow at an incredible pace, but the truth is our infrastructure is struggling to keep up with that growth. We cannot build a resilient future on ideals

[3:03:42 PM]

alone. We need practical solutions that ensure reliability while continuing advancing renewable energy. These Peaker plants are not about abandoning sustainability. Austin energy already outperforms much of Texas and much of the nation carbon free generation. These units are designed to operate only when necessary and a measure of last resort. Thank you so much.

>> Thank you, thank you. Please.

>> Good afternoon, mayor and council members. I'm Al Braden proudly from district seven and vice chair of the electric utility commission. Today, I'm speaking for myself. I've spoken out against these speakers in just about every way I can with presentations on transmission alternatives, battery alternatives, and challenging the basic economic justification for the speakers. I am a hard sell on speakers, but not an immovable one if it can be shown as the best realistic solution. Despite lots of questions by myself, allies and council members, I haven't yet seen any real numbers thanks to you see commissioners white and Reid for trying to get answers and

[3:04:43 PM]

to council member Siegel and altar for asking detailed questions. Even if the responses lacked detail. Show your work, Austin energy. Show your assumptions and models. Maybe we'll agree, maybe not, but we'll have a common understanding. Austin energy in the mayor's office have done a masterful job of railroading this Peaker purchase into a secret meeting. Austin energy has continuously hidden the ball. While we have met the deadlines for posting our recommendations for several years now, Austin energy's attitude has been. We know the answers. Additional input is not needed. That was the case with the surprise green hydrogen plant in 2023. That was the case with the 2023 gen plan, until council piled on nine pages of amendments and made it better. That was especially the case with these speakers today, \$1 billion backroom deal that went from 0 to 60 in two weeks. Scare tactics like reliability risk. Ours need to show the inputs. What is the distribution of one,

[3:05:44 PM]

two, four, six, eight, 12 hour events? How can we know what batteries could or could not do without better detailed modeling? That modeling wouldn't give away all your trade secrets, but it would be a good starting point to build real public cooperation and trust. Thank you.

>> Good afternoon, mayor Watson and city council members. And for purposes of today, the board of directors of Austin energy. My name is trey Salinas, and I'm a board member as a board member of the Austin chamber of commerce. I also want to echo the chamber's support for this item, but I'm also here today to speak to you on behalf of the coalition for clean, affordable and reliable energy. C care. C care is a coalition of commercial and industrial customers for Austin energy and Austin water. Our group represents more than 50,000 employees in Austin, central Texas, which includes some of the city's largest employers, from manufacturers to hospitals to all kinds of

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technology companies. We are a big part of the economic engine that keeps Austin going. For close to 25 years now, C care has supported Austin energy's multiple generation plans. We have publicly testified and supported many of your wind, solar and battery purchase power agreements. C care supports renewable energy, and we would like to continue supporting the city's sustainability goals. But as you've heard from your professional staff at Austin energy, renewables can't do it alone. We also need gas speakers. And why do we need these gas speakers? Because we do not have enough dispatchable power in our load zone. The wind doesn't always blow and the sun doesn't always shine, and batteries as good as they are for our system, cannot do it alone. It just can't. Several years ago, C care was here. When the. When the decisions were made to shut down the holly power plant and the old units at decker. And we supported that plan because it was the right thing to do. But another reason C care supported that plan was because it was a

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third recommendation from Austin energy, and that was to replace the dispatchable power. You were retiring with new gas facilities in our load zone. The council previous council ago decided not to move forward on that. So this was we were always going to get to this day. Let's talk about reliability quickly to maintain reliability of our service territory. In other words, literally keeping the lights on at times of high peak demand. We must have the right balance of 24 hour a day generation. That power that you can turn on and off at all times, not just when the wetter weather agrees. By taking this step to better securing reliability, we can also continue to take steps on sustainability. This allows you to do both. Austin in the state of Texas are in a period of rapid growth. All you have to do is read the news any day of the week about all the new new growth coming inside our service territory and outside our service territory. All of those big data centers, ai, everything that's coming outside of our service territory will have a direct

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impact on our ability to continue to import power, and that affects pricing and reliability. This is another reason why we need more local generation. An important point in February of this year, ERCOT rejected 29 of Austin energy's proposed transmission upgrades. These transmission upgrades are necessary not only to keep the lights on, but also help sustain continued growth. ERCOT's reasoning was very clear Austin does not have enough local dispatchable power as the board of directors for the utility. We are asking that you take the next necessary steps to correct the problem. Economic development. We want the city to continue to grow and help us with our budget constraints. The utility is vitally, vitally important to that. Simply put, we are counting on you. I want to end today by thanking mayor Watson, oversight committee chairman Vela and the Austin energy leadership for all your efforts on this issue. Your hard work has not gone unnoticed by the

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business community and your commercial and industrial customers and their employees. We sincerely appreciate you. Thank you for your consideration.

>> Continue on. Item seven, we have Paul Robbins. Paul Robbins has time donated by William bunch and Roy Whaley. Is everyone present? You'll have six minutes. Tina cannon, Marion. Sam. Adrian Macias.

>> Council. I want to relate an experience I had with another Austin energy purchase. Many of you will remember that back in 2008, just before the great economic crash, energy and commodity prices went through the roof. At that time, Austin energy sought to purchase a wind power contract that was insanely high by past standards. And even though I was renewable advocate, I urged at least two

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people in charge of the purchase to abandon it. But the utility purchased it anyway, and it soon became an albatross. And eventually, when prices plummeted. But Austin was still stuck with the contract. I believe it was a 15 year contract. At any rate, I recommend that if you want to purchase a gas plant, wait until the prices come down. As I understand it, at least by one estimate, they have virtually trebled tripled in the last three years because of the ai boom. But the ai boom will not last forever, and I believe prices will come down. If this is what you think you need to do, wait this out. Don't buy at the high end of the market. Moving on in the

[3:11:50 PM]

shadow of the profound failure of the tax increase election last year, it is plain that citizens have lost some trust in local government purchasing such inexpensive plant without transparency, without adequate details, is going to make the loss of trust exponentially worse. Austin energy is claiming that not revealing some of its basic information is competitive. This is nonsense. Their competitors know 90% or more of what they are hiding because their competitors are in the same business. Rather, your staff is hiding the information because they don't want the public to know. Take it from one who's been around several decades. Moving on. I'm going to go back

[3:12:54 PM]

to something in my original presentation this morning, because it is directly relevant to alternatives to the gas plant. Several speakers advocating for batteries as an alternative to the gas plant would be in a better position if we understood the economic justification behind them, and if we could buy them less expensively. So if you cue the presentation, please slide. Go on please. Next slide. Please. This is a graph of Austin energy's average wholesale electric cost for each hour of the day. Throughout 2022. It was \$0.11 per kilowatt hour during the late afternoon and \$0.04 per kilowatt hour in the very early morning. Again, this is 2022. The power costs were very expensive that year because of the war in the Ukraine, which spiked natural

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gas costs worldwide. Slide. So if you buy low and sell high. This is a seven cent per kilowatt hour arbitrage profit slide. And now this is a respected annual benchmark study published by. And it looks at all energy sources and compares them as benchmarks. And using the assumption from this report. Next slide please. I tried to estimate what Austin energy could have built a large storage system, large storage system for. And it comes out to about \$0.08 a kilowatt hour slide. And so again, this chart summarizes my concerns. Austin energy's three battery contracts are estimated to be

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10 to \$0.19 per kilowatt hour, but it only saves \$0.07 with arbitrage. And the utility could have built it maybe for \$0.08. The actual wholesale cost of power in ERCOT in 2025 was less than \$0.04. So what is going on? Austin energy refuses to describe the business model that makes these storage contract economic assets. Utility is claiming the answer to this question is competitive and they will not discuss it. I've been in energy issues since I was a sprout, and I believe this excuse to be nonsensical, as well as condescending to the average ratepayer. The utility. I think I've made most of my points. We

[3:15:55 PM]

need transparency in batteries. We need transparency in the gas plant costs when it's going to come online. Cancellation of contracts, why we can't wait until the costs come down to something more reasonable if we really do need them. The public deserves better.

>> Thank you, Mr. Robinson. Thank you, Miss Cannon. Why don't we start with you, and we'll we'll work our way down that direction.

>> Afternoon, Mayor and Council Tina Cannon here on behalf of Visit Austin. We strongly support the approval of Austin Energy's local Peaker generation. Item number seven. Austin has built one of the strongest visitor economies in the country. As you've heard me say before, we welcome more than 30

million visitors each year that supports local jobs, small business, and the billions in economic activity across the city, the convention center, our hotels, our venues don't just serve visitors, they serve the entire community. Our industry operates 24 hours a day, 365 days a year. Extreme

[3:16:56 PM]

weather events do not pause responsibilities. The events, the hotels, the facilities that support Austin's economy and emergency infrastructure depend on reliable, uninterrupted power. But I also want to speak to something deeper. When winter storm Uri hit, when the city faced its hardest moments, the hospitality industry showed up. Convention centers, as you recall, opened its doors as a warming center. Hotels housed first responders and displaced families from around the city. Our venues became staging grounds for relief efforts, and we have always answered the call when Austin neighbors needed us most. We can only do that if the lights stay on. These Peaker units act as an important reliability tool during long duration emergencies and extreme weather events, and when additional generation capacity is needed to keep Austin functioning safely. We support a commitment to clean energy, and we recognize that getting there means responsibility means ensuring that we never leave the city or its residents in the dark. We appreciate your time and efforts in this regard.

[3:17:57 PM]

Thank you very much.

>> I'm Julie Oliver, district nine resident. I'm here to speak against item seven and ask you to vote no. Let's be clear gas speakers are not a climate solution, and calling them more efficient is whitewashing their real environmental and health impacts. And the timing of this agenda item, along with items 38, 3960 and item 24 from two weeks ago, is highly suspect. Two weeks ago, this council refused to rule out recruiting data centers and defense industries or Elon Musk's tariff plant, all of which demand enormous amounts of energy and water. Now you're considering natural gas power plants and a massive 2600 acre development in eastern Travis county. I repeat, this isn't coincidence. And despite what John Howard claims, Austin's increasingly extreme Summers are constant energy emergencies, and these so-called Peaker plants won't be running. Occasionally they'll run, often adding pollution to communities who don't yet even know that they're being considered as hosts. Austin energy has not

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shown that cleaner alternatives are unavailable, like anaerobic bio waste to energy systems, which can be up in six months. Distributed battery storage and demand side management strategies that reduce strain on the grid without poisoning our communities. Approving this Lexus into decades of fossil fuel

dependance. So the question is, are we doing this because we need it, or because businesses here and real estate development pressure are driving it? If you're prepared to spend up to \$1 billion, please invest it in real solutions that move Austin forward. And as I recall, when winter storm uri hit, downtown still had its lights on. The rest of us didn't.

>> Good morning, city council. My name is Marianne Sanchez. On behalf of poder, I'm here today to express community concerns regarding an expensive, harmful and polluting natural gas Peaker plant proposed by Austin energy. For nearly half a century, the 17 story tall holly street power plant loomed over east Austin's holly

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neighborhood, imposing a number of health, safety and environmental hazards to the working class communities of color directly in its vicinity. Residents endured chemical spills, constant noise, air quality degradation and unexpected deadly fires. Ongoing pressure from the community. Beaudet and its partners ultimately led the city council to vote to close the hazardous facility in 2007, which never should have been sited there to begin with. I ask you to consider this history and determine if such a decision will also be a part of your legacy. Currently, east Austin is burdened with ten Peaker units situated at decker creek and sand hill, which are also predominantly communities of color with lower incomes. Due to the infrastructure that east Austin was inequitably laden with. These areas are likely where Austin energy intends to locate the new peakers natural gas Peaker plants increase levels of nitrogen oxides, particulate matter and ozone in the air that we breathe, all of which are linked to negative health impacts like decreased lung function, cough, throat

[3:20:58 PM]

irritation, and cardiovascular issues. If the city and Austin energy truly seek to safely deliver clean, affordable, reliable energy, investing further in harmful, dangerous fossil fuel generation compromises that mission, the resource plan, our city's climate equity plan, and ultimately the responsibility to the public. You all serve. The environmental commission just passed a recommendation to reject authorization of the plant. We urge you to do the same. Continue to implement the clean, renewable energy technologies that are readily available, cost effective and truly reliable. Thank you for your time and consideration.

>> Continuing on item seven, we have Susana Almanza, Bianca Guerrero, Carlos pinon, Maddie Gutierrez, Valerie Menard, Pedro Hernandez Jr, David Weinberg, Bob Hendrix. Please make your way to the front and state your name before you begin.

[3:22:00 PM]

>> Good afternoon, mayor and council members. My name is Bianca Guerrero, sustainability analyst and organizer with poder, representing district three. I hope that even though I'm not in a suit, that you will still consider my words on the same tier. I urge you to vote no on item seven. Approving new natural gas powered Peaker plants. I know some will say that these speakers are needed for reliability during disasters, and to support people with acute medical conditions when power is lost, immediate reliability is important, but these plants are the wrong solution, especially for the long term health of our communities. Peaker plants are the dirtiest and most polluting units on the grid. They fire up during our hottest days, releasing high levels of nitrogen oxides, particulate matter and other toxins exactly when the air is already at its worst, they directly worsen ozone pollution and trigger respiratory emergencies. In eastern Travis county and district three, children already suffer asthma hospitalization rates 60%

[3:23:02 PM]

higher than the national average. Existing Peaker plants are concentrated in our low income and community of color neighborhoods. Adding more will only increase asthma attacks, emergency room visits, and long term respiratory illness. For the very families who can least afford doctors medications, missed work, and ways to escape the polluted air and extreme heat, these plants do not solve our problems. They shift the burden onto east Austin's most vulnerable, vulnerable residents while locking us into fossil fuels for decades and undermining Austin's energy climate goals. We need real, cleaner solutions battery storage, renewables and demand response programs that protect public health and provide reliable power without making our asthma crisis worse. Vote no on item seven. Prioritize the long term health and equity of district three families, not more. Pollution and overburdened neighborhoods. Thank you.

[3:24:02 PM]

>> Let's start here and we'll go this direction.

>> Good afternoon, mayor and council. My name is David Weinberg. I'm a resident of Austin city council. District five. Today's council meeting, I would say, with a couple exceptions, had a bit of a somber tone. I think something exciting that could be said on this issue is that we as Texans can feel very proud about clean energy. We are the nation's leader in utility scale wind production. We are also probably now the nation's leader in utility scale solar generation. And Austin energy has been a very important and critical part of that, that story and that journey. That being said, I think I would agree with some of my old coalition colleagues when I did environmental work up at the capitol, folks at the Sierra club and public citizen and some other groups that before the city makes this 40 year, 400 megawatt investment in

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fossil fuels, we should maybe have another set of eyeballs. Take a look at the plan to see if it's really needed, if it's prudent, if it's something that we could maybe come in at a lower level on maybe 200mw instead of 400. So I think this is a pretty critical climate decision we're making here today. And I would urge the council to have somebody else take a look. Thank you.

>> Good evening, council members. I'm Susana Almanza with poder, and I too. I think this is a real case of environmental racism. I wonder where all the chambers were when they were putting all these gas Peaker plants in east Austin. We have ten of them there. Why weren't they speaking up and saying, hey, there's children, there's people, there's schools. We're going to be emitting particulate matter, all the different chemicals on the community. Where were they? But they're here today talking about, yeah, we need them. We need the new ones. And it's

[3:26:03 PM]

going to reduce the pollution. But they weren't here when when they were placing them in our community, it was okay to do it. And so I have a real big issue with that. The other thing is that I was at the environmental commission last night when they rejected this plan. But I think that one of the things that they brought up is the alternative is to reduce demand. And how do we reduce demand? If you're spending close to \$1 billion and you could put solar energy, solar panels, solar batteries, and all our communities, and especially those that have been taken to harm for all these decades that were these ten Peaker plants are at you could do something. I think the number one alternative is reducing the demand. And let's get solar on everybody's properties. Let's make sure that we're also receiving the benefits from that and not continuing to dump on east Austin as as I always say, yes, the master plan was done in 1928 to put all the unwanted uses in east Austin and put people of color east of

[3:27:05 PM]

the highway. It's not over. It's still happening today. It's still happening today, and we need to end it. Thank you.

>> Please.

>> Hi, I'm Bob Hendricks, volunteer climate activist, speaking for the Sierra club and citizens climate lobby. With its combined Austin membership of over 5000, we understand that Austin's electricity demand is growing rapidly. We understand the need for reliable power and additional capacity, and we understand that Austin energy believes new gas Peaker plants are necessary. We don't think they have seriously studied cleaner and more affordable alternatives. But before Austin commits ratepayers to decades of new fossil fuel infrastructure, the public deserves a more transparent discussion of the alternatives and assumptions behind this decision. Because timing matters, new gas plants can take five years or more to permit and build utility scale, and solar and battery projects

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can often be deployed in less than two years. Cost trends matter to solar, and battery costs have continued to fall, while gas generation faces fuel price volatility and rising construction costs. And unlike Peaker plants that may operate only during high demand periods, solar and batteries provide value year round. Battery technology is also advancing rapidly. Long duration storage may improve substantially before any new gas plant even comes online, so it is difficult for the public to evaluate this proposal without seeing the underlying assumptions. What future gas prices were modeled, what battery costs were assumed, how aggressively were solar storage efficiency and demand response evaluated, and why do the models repeatedly conclude that additional batteries would not improve reliability outcomes? These are reasonable questions for investments that could cost the public hundreds of millions of dollars. And if Austin ultimately moves forward with new gas infrastructure, then I

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strongly support enforceable guardrails that limit carbon pollution and unnecessary fossil fuel use. Programs like Austin's reach framework already recognized.

>> Thank you.

>> Continuing on item seven, we have Rudy Garza. Amanda Marzullo, Craig Nasr. Eileen McGinnis, Nancy Crowther.

>> If your name has been called, please come forward. Mr. Nazer.

>> Craig Nasr, conservation chair, lone star chapter, Sierra club I participated in the recent online questionnaire concerning Austin energy. Yes, we want reliability in our

[3:30:09 PM]

energy infrastructure, but that's not the whole story. We want reliability in our climate. We don't want a summer of relentless heat and humidity. We don't want to experience a polar vortex sweeping down to Texas, making the high temperature in Austin lower than the low temperature in Anchorage. We want a reliable sea level, not a rising one. We want a reliable rain in the spring, reliable refilling of the highland Lakes in the summer. We want reliability, a reliably moderate storms. We want a reliable food supply not disrupted by increasingly erratic frost, storms and droughts. We want reliable polar ice caps. We want reliable gulf stream. We don't want to sacrifice these things for reliability in our inner energy infrastructure. We want to want reliable, clean air to breathe. We don't want some neighborhoods where people risk their health. Just breathing

[3:31:09 PM]

the air is a trade off for reliable electricity. We want to know where those polluting Peaker plants will go before we commit ourselves to 30 plus years of their pollution. I first heard about climate change on a warm June day in northeastern Ohio in 1965. I was in my bedroom reading an article in the magazine science and mechanics by a scientist named Roger Revelle. I remember for a moment being frightened, but then I realized the effects would be slow and that human civilization had time to figure it out. Time is up. We obviously haven't figured it out. Our federal regime is uselessly corrupt. Our state government is in deep denial, and our own socialist energy company and elected city council is telling us that we can end our addiction to fossil fuels by investing in more fossil fuels.

>> Thank you, sir. Miss Crowther.

[3:32:10 PM]

>> That's a.

>> Tough act to follow. I just wanted to this is Nancy Crowther, mayor pro tem, thank you for allowing us to speak before you. I am representing our community of people with disabilities and senior citizens who are predominantly. Quiored to have reliable energy. I was allowed to be a part of a stakeholders group, and I spoke to them about the reliability has to be number one because it will cost lives. We had that, Yuri, that taught us a lesson. If you're living on your own independently and your lights go out, you have no power. No power to your chair,

[3:33:12 PM]

no power to your ventilator, no power to your bed, no power to even get your attendant to come in. What a sad story. I don't care what kind of energy we're going to use if we do not have that reliability. There are lives at stake, and we need to remember that. So I'm sorry, but job one reliability. Thank you.

>> Thank you.

>> Continuing on item seven, we have Annie Fierro, Camille cook, Betsy Greenberg.

[3:34:33 PM]

>> My name is Betsy Greenberg and I live in district nine. I'm opposed to item seven for the same reasons you're hearing over and over. Gas speakers provide the dirtiest, least efficient and expensive energy sources. Exposure to Peaker emissions is known to result in adverse health risks. Austin needs to focus on clean technologies, including battery storage, renewable energy transmission improvements, and energy efficiency. In addition to this being wrong, the wrong environmental choice, the lack of transparency and the associated excuses keep for keeping details hidden is appalling. I wish you would learn something from the failure of prop Q. Your constituents expect you to be prudent with our tax dollars, to protect our environment and to operate in an open and honest manner? Vote no on item seven. Thank you.

>> Please go ahead.

[3:35:33 PM]

>> Dear mayor and council, my name is Camille cook. I live in district three, and I'm here in opposition to a plan to build a new local gas Peaker plants. There are many things wrong with this proposal, and many residents have already voiced concerns relating to financial dangers, social equity, the environment and questionable assumptions behind energy prices and all that. But I'm going to focus on the lack of real community input in this dangerously fast proposal. Announced these community meetings, quote, ahead of this proposal about a month ago, these meetings were proposed around the city, which is a good idea in theory, but they were announced about a week prior to starting. This meant that there was little, if any, actual community outreach. Before these community meetings began. I went to two of the three in-person sessions, and there were very few people that seemed to be from the surrounding community. Of the folks that seemed to be, almost everyone asked, how could we comment on the site of new generation without knowing what the actual generation would be? You know, a gas plant is not a solar farm or a battery installation. The only clear and consistent community input

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was that people don't want to live near a gas plant. Period. Has this feedback been communicated to y'all from E? Because that was clearly said it all the two community events that I went to, one of the sessions was at Decker middle school, which is, as you all know, is across the street from the Decker gas plant. A staff worker there said that they didn't even know that the meeting was happening. If some of the people at the site didn't know it was happening, do we really expect surrounding community to know? Clearly, these meetings were unsuccessful and actually reaching out to the surrounding community. And as a result, I don't think that a lot of people in Austin really realize what's coming when you're consistent, when your constituents who will live near this plant start coming to you saying they have no idea what's happening and are upset, it will be y'all's fault for not holding accountable or acme to a higher level of accountability. Clearly, E knows that the community on the whole does not want more gas, and that's why they sped up this process so much. If you're going to pass this, which I hope

you don't, please include an amendment that requires council approval for any site that's picked for these speakers. It's the least y'all can do to address the clear lack of

[3:37:34 PM]

public accountability from this process. Thank you.

>> My name is Danny ferro and I'm a district seven resident. And as I told you on Tuesday, I'm strongly against against item seven Austin energy Peaker plants. It is disingenuous to tell austinites that the speakers are crucial to keep the power on during an extreme weather event. When we know that during winter storm uri, it was ERCOT who decided which parts of the power would stay on. And without showing their work publicly, Austin energy wants you to believe that we're at risk of this happening 20 days out of the year. Unless you built a 1 billion Peaker plant to ask people tell us how to be a good neighbor is a straight out of the Exxon playbook. When you are a good neighbor, you do not pollute communities. I also want to echo what other speakers said. Last night, the environmental commission passed a recommendation to council where it stated the environmental commission does not approve the implementation of the gas plants on the grounds of lack of transparency, no environmental review and emissions impact on soil, air

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quality and noise pollution concerns. And let's be honest, fear mongering. Also, Austin energy was invited to brief the environmental commission, which they declined the invitation, even though unfortunately, I have an idea of where the decision is heading today, I'm still going to urge you to not rush to the decision until there's an independent analysis and transparency from Austin energy, and to vote no today, I recognize we need more local resources to supply the grid and our energy demand. But in the year 2026, and as a granddaughter of the main engineer behind every single transmission line in my country of origin Mexico, I know we can and we should do better. Thank you.

>> Continuing on item seven next, we will have Gabriel Arellano with a L L interpreter services. He will have four minutes for his testimony. On deck after him will be Leslie Currens, Larry Gilg, Bobby Levinsky, Jeffrey Bowen.

[3:39:34 PM]

>> Interpretation services has to be done this way for ADA accommodation.

>> Thank you. Yes. Thank you very much.

>> Good afternoon, mayor Watson, council members, everyone. I sit before you today embarrassed to call myself a citizen of Austin. I cannot understand why the council, and especially mayor Kirk Watson, would support adding new natural gas powered Peaker plants to our energy mix. While directing a deaf stem camp here in Austin, I watched brilliant deaf students light up with excitement as they learned about solar energy. These young

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people asked me a simple, powerful question why does the city of Austin continue to rely on unhealthy fossil fuels? While countries like Norway, Tibet and China and other forward thinking places all around the world are already running on 80% electric vehicles and clean energy. These children see contradiction early. They see it clearly. They want a future powered by innovation, not by outdated pollution. Would you approve a gas plant next to Westlake high school? Or by Lake Travis high school? Of

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course not. Our youth deserve a future of clean air, clean water. And a future not locked into fossil fuels for the next several decades. Please do not disappoint the children of Austin. Show them wisdom and show them a good hearted leadership that they deserve. Vote against this item and choose a cleaner, healthier path for our city's future.

>> Please.

>> Thank you.

>> Please thank him and also ask him to state his name for the record.

>> Yes. Thank you. My name is Gabriel Arellano.

>> Thank you very much, Mr. Arellano.

>> Thank you.

>> Okay.

>> Afternoon, everybody. Mr. Mayor, council members. Jeffrey Bowen, district eight. Well, we

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got ourselves between a rock and a hard spot on this one, don't we? So we've been dealing with infrastructure issues for quite some time. And at some point we knew the the chickens were going to come home to roost. And at this point, I can say one thing is that the upgrade in some of these jet engines that are super old, that they were the aircraft that they flew in were have been long retired. But does that really meet some of the needs? I've watched the work session and was surprised at some of the information that wasn't there. And in other words, at some point y'all are going to have to go behind closed doors because we don't know what this is going to cost us. And I'm afraid there will be an outcry once that word does get out. I understand the reason why that price is not out there, because we're we're over that barrel because the Peaker manufacturers know that

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we and other places out there need this type of infrastructure. So the the chickens have come home to roost. We are now going to have to pay the piper on a lot of these. Even the fact that even when my friend Jim Robishaw talked about the battery prospect this morning and the length of that contract, batteries are upgrading faster than what the length of that contract will go for. So I have my concerns there. Again, we need this for our own growth and for our own sustainability in order to keep the lights on. We can't be in here without the lights being on. Having lived in third world countries where we were on generator all the time. I do understand the concept and I understand the issues surrounding this. Thank you.

>> Thank you.

>> My name is Larry gilg,

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district nine. I was at my computer googling for climate disasters that I could cite today to convince you that purchasing natural gas speakers is a bad idea, but I decided that was a fool's errand. You all know the facts and have accepted them, rejected them. The disconnect here goes deeper than that. Again, there's no question in my mind that burning fossil fuels is changing the climate of the Earth with the results that with the result that we are seeing toxic pollution, agricultural failures, floods, drought, heat waves, series species extinctions, civil strife, climate refugees, the list goes on. Economists like to call them externalities. Every day brings a new headline. New Orleans has passed the point of no return. Atlantic current reversal imminent monster el Nino forming in the pacific. The usa is responsible for about 12% of the total greenhouse gas emissions in the atmosphere. Now, second, most of any country after in the

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world after China, we have managed to transfer responsibility for the externalities to taxpayer burden, market price discrepancies and government subsidies. Last month, representatives of 57 countries met in Santa Marta, Colombia, to set a timeline for transitioning their economies away from fossil fuels. Although none of those countries have contributed nearly as much greenhouse gas as the U.S. They are bearing the brunt of the disaster. The group, representing about one third of the world's economy, are mapping out practical ways to move away from coal, oil and gas. The guiding principle of the group is the shared scientific certainty that accelerating the transition away from fossil fuels is essential to maintaining a livable planet, upholding human rights and addressing the triple planetary crisis of pollution, climate change and biodiversity loss. They know that they must address the externalities wealthy nations

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won't.

>> Thank you, sir.

>> I never heard. Oh.

>> Your time. Time's up. Thank you.

>> Mayor and council. Bobby Lewinsky, save our springs alliance. I'm here to echo the calls of the environmental commission and public citizen to ask you to vote against item seven. There's been a lot of conversation on the justification for this item, but not a lot of answers to the questions about the being raised, about the lack of transparency. I would ask that you not take a vote on this in executive session. People deserve to know where the people peakers will be located, and they deserve to know how much they are going to cost them. I believe it was suggested that taking a vote in an open session would somehow be a violation of the Texas open meetings act. That is an absurd proposition. That transparency would violate the Texas open meetings act. There are also false comparisons being thrown out there about speakers and other area coal plants, something that is particularly ironic considering the lack of progress that the city has made in curtailing the

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irresponsible management management of the coal plant by the lcra. We need to be clear that there is no environmentally friendly or climate responsible way to extend reliance on fossil fuels. For guardrails, I would suggest that you not allow these speakers anywhere near an environmental justice population. That is the history of these Peaker items, and it is the future if you approve it. Thank you.

>> Continue with item seven. We have Christopher Paige, kaiba white, Cameron Dodd, Stephanie Noel, Caitlin Griffith, Katy cam.

>> Please come forward if your name has been called.

>> Good afternoon. I'm kaiba white, district three resident speaking on behalf of public citizen. Austin energy is

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making the case that building new gas speakers is a benefit for the environment. This is untrue for several reasons. First, once you account for methane leakage, natural gas power generation isn't any better than coal generation when it comes to climate change. I sent you all a short piece from rmi that makes this point. Please take a minute to read it. Don't be fooled by natural gas industry marketing. It's not a cleaner, greener alternative. And that's even before you consider the environmental horrors from fracking, which have resulted in serious fetal development problems and other health problems. Just because we don't see it here in Austin doesn't make it less real. Second, the new peakers will run at the same time as those existing speakers, making local air pollution worse on the days when it is already as unhealthy as it gets. Austin energy talks about the speakers as an insurance policy, but the utility plans to run them when it's economic. If this wasn't true, Austin energy would commit to not run them at the same time. So on hot, sunny afternoons, Austin energy is going to add nitrogen oxides to

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the air and increase ozone formation. Kids, the elderly and lower income people who work outside will bear the brunt of this oppression. Third, new peakers will run for 40 plus years and older, less efficient power plant will soon be pushed out of the market by batteries and cheap renewable energy. If everyone follows aes logic, new gas generation would continue to be added forever and will never phase out fossil fuels. That's a path to runaway climate change and all the social, economic and environmental impacts that come with it. Austin can be part of the problem or part of the solution. It's your choice. For these and other reasons, the joint sustainability committee unanimously recommended against adding gas speakers. To quote Lisa martin from 2024, carbon free is carbon free. It means there's no carbon. It's the supply and demand side of the equation. We ask that you uphold the carbon free by 2035 goal and vote no on guest speakers.

>> Please go ahead.

>> Okay. Hello, I'm Katy Imam. I live in district nine. I've

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been a resident of Austin since 1983, and I point that out because living in Austin in the 80s and 90s, I got to witness the growth of the mindset that Austin would become a leader in environmental protection. I clearly remember taking one of the first green building classes in the early 1990s. I recently learned that the city of Austin's Austin green builder program was recognized as one of 12 exemplary local environmental initiatives at the United Nations Earth Summit in 1992. At that time, I did not realize how forward thinking Austin was relative to the rest of the world. I asked now, as council considers a fossil fuel project,

>> What happened to those values, that vision, and that standing in the world? How did we reach this point where we were having to consider another fossil fuel project? Because lives are at risk during weather extremes, where there are decisions that could have been made in the past to avoid the situation, did robust scenario planning not happen? It appears there was too much hesitancy to adopt renewable energy and reduce energy usage. I urge the council to look in the rearview mirror to get answers to those questions, to understand how we got to this point and how to avoid it in the future. And now I'm not

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convinced, as well as other members of the public, that there is no other choice and that council, and that if council approves the gas speakers that there are not enough guardrails for environmental protection, carbon offset, public health and environmental justice. And as a side note, asthma has been mentioned as a consequence of the use of fossil fuel, and that is not a disease of inconvenience. It can be fatal. I lost a dear friend to an asthma attack. Please take public health concerns seriously. These guardrails impact the benefit cost ratio that should be considered for this issue, not just about financial costs to the utility and customers. The benefit, of course, is that we reduce the risk of enduring the loss of power, as happened during winter storm Uri. However, ERCOT's decision making and other electrical infrastructure weaknesses, such as downed overhead electric lines, contributed to the loss of power. We also need to look at what are the assumptions, challenge those. And I'm running out of time. Question this project. Consider proactive reversal. Demand more transparency. If you all do approve it, put in strong guardrails. Thanks.

>> We have one remote speaker,

[3:52:45 PM]

David Levesque.

>> Hello. Good afternoon. Can you all hear me okay?

>> Yes.

>> Okay. I'm David Levesque, and you have asked Stuart Riley to get to zero emissions by 2035. Since you are his management team, it's up to you to give Stuart the resources he needs to succeed at what you asked him to do. With the right resources, Austin energy could quickly follow several best practices around the state, including a law that improves solar permitting. Right now, Austin has the slowest and most expensive local solar process in the whole state of Texas. Another best practice is the Texas law that requires utilities to use software to improve grid capacity. As far as I can tell, Austin energy is doing either of these. These are just two simple examples where Austin energy can improve. Right now, I'm requesting that you vote no on item seven and say yes to helping our leaders at Austin energy achieve the

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goals that you asked them to achieve. Thank you.

>> Thank you.

>> All speakers for item seven have been called.

>> Thank you members. Those are all the speakers on item number seven. The city council will now go into closed session pursuant to section 55107, one of the government code to discuss legal issues related to item number 82, which is to consider competitive matters related to Austin energy generation, operation and resources, and deliberate the purchase, exchange, lease or value of real estate property, certain power, certain public power utility. Competitive matters under 551086 of the government code and real property matters under section 551072 of the government code. I'm also announcing that pursuant to section 551072 and 086, as I just said, the city council may consider will consider utility competitive matters and deliberate real property matters related to the competitive matters related to

[3:54:46 PM]

Austin energy generation, operation and resources and deliberation of the purchase, exchange, lease and value of real property. Real estate. Property. Without objection, the city council will now go into an executive closed a closed executive session on the items announced. It is 3:55 P.M. Once we have completed the executive session, we will come back out into open session. It's 355. We're going into closed executive session.

[5:19:06 PM]

>> All right. Good evening everybody. I'll call the Austin city council. We were already in order, but we're back out of closed session. It is 5:19 P.M. We're out of closed session and closed session. We discussed legal issues and considered utility competitive matters and deliberated real property matters related to item number 82. The resolution considered by the council passed item number. Item number seven on our agenda was an item that was originally put on the agenda solely for the purpose of making sure that the public would have the opportunity to comment on those matters. We have done that both at a work session and then again today. Staff is withdrawing item number seven members. What I'm going to do is have us now go to the non consent items. Those are primarily public hearings. Item number 54 is postponed. So

[5:20:07 PM]

an item number 57 is postponed. What I think I'm going to do members just for purposes of moving through the agenda, is go to 55, 58, 59, 60, which is the time we will take up items 38 and 39, and then we will go back to item. Well, then we will go to our zoning matters, finish the zoning matters, and then we'll go to item number 56. Without objection. That's what we'll do. So I will now call up item number 55. Item number 55 is a public hearing item. So without objection we will open the public hearing on item number 55. The public hearing is now open and I will turn to the city clerk.

>> We have three speakers for item 55 William bunch, Brad Massingill, and Zenobia Joseph.

>> Mr. Bunch, Mr. Massingill, if you'd please come forward. Miss Joseph hadn't been here today, but I don't. And I still

[5:21:07 PM]

don't see her. Mr. Massingill, you have the floor.

>> Brad Massingill again, I don't have a super lot to say about this, but one thing that did pop out from the backups was in an administrative review on heritage trees. Protections for heritage trees does not need to be approved without any public input or knowledge. Our urban forests are important, so that's what I have to say about that.

>> Thank you sir.

>> That's all speakers.

>> Those are all the speakers on item number 55. Without objection, we'll close the public hearing on item number 55. The public hearing is now closed. The chair will entertain a motion with regard to the ordinance. Is there a motion? Motion made by council member qadri. Second by council

[5:22:07 PM]

member duchen. Discussion. Hearing none. Without objection. Item number 55 is adopted. That will take us to item number 58, which is also a public hearing. Without objection, we will open the public hearing on item number 58. The public hearing is now open. I'll turn to the city clerk.

>> We have our remote speaker, Terry Arellano, on item 58.

>> Mr. Aaron.

>> We will move to in-person. Rich Harmon. That's all speakers for 58. Oh, we do have the remote speaker back. Okay, we'll try them again. Terry. Aaron, item 58. Terry, please

[5:23:09 PM]

unmute. That is all speakers item 58.

>> All right, members, those are all the speakers on item number 58. So without objection, we will close the public hearing on item number 58. The public hearing is now closed. I'll entertain a motion with regard to item number 58. Council member Siegel moves approval of item number 58, a second by mayor pro tem. Is there discussion? Hearing none. Without objection, item number 58 is adopted. Item number 59 is also a public hearing. Without objection, we'll open the public hearing on item number 59. The public hearing is now open. I'll turn the city clerk.

>> We have one speaker, Zenobia Joseph.

>> Miss Joseph, miss Joseph is not here. So that closes without objection. We will close the public hearing on item number 59. The public hearing is now closed. I'll entertain a motion with regard to. There's not there is not a

[5:24:13 PM]

motion on item number 59. It is the public hearing. And to specifically receive public input. So members that will now take us. To item number 60. Item number 60 is a public hearing. Without objection, we will open the public hearing on item number 60. The public hearing is now open, and I'll ask the city clerk to help us.

>> First speaker, on item 60, we'll have Marian Sanchez, Adrian Macias, Susana Almanza, Bianca Guerrero, with time donated by Valerie Menard, Carlos pinon, Maddie Gutierrez, Pedro Hernandez, Craig nazer, Richard suttler, Chris Paige.

>> If your name has been called, please come forward. If you wish to speak. Otherwise, I'm

[5:25:17 PM]

assuming you're not wanting to. Mayor. Members of council.

>> My name is Richard settle. I'm here on behalf of the landowner of the dog's head. That's subject to the public hearing and the annexation. And I'm hoping I'll just say I'm hoping that you get the opportunity to vote to annex this today. But we got to do 38 first.

>> And we know how the rules work.

>> No, I just I'm just I'm just happy that we're still having this hearing.

>> Yeah, we appreciate you. We, we would if we went past what Mr. Suttle is saying is that before we can pass item number 60, we would have to pass item number 38. And the. We've more than once had that discussion here today. That's why I say we'll bring up 38 and 39 after we've done this. So. But thank you for your input.

>> We have our remote speaker, Monica Guzman, on item 60.

>> Good afternoon. I'm Monica

[5:26:19 PM]

Guzman, dawa policy director, speaking in opposition to item 60. First, thank you for moving items 38 and 39 to the consent agenda for council discussion. We stand in solidarity with everyone who worked tirelessly to review the dog's head developer agreement draft and sign on to the letter, prepare statements and address you, the Austin city council, about the need to slow down. We urge you to postpone activity on the proposed dog's head development. The interlocal agreement with Travis county and annexation of the 22,614 acres do what is right and needed to ensure a public process to bring this before the planning commission, environmental commission and all other relevant boards and commissions. Thank you.

>> Continuing in person, we have William bunch, Janice Bookout, Eric Paulus, Kim Vasquez, Daniel lo, Bobby

[5:27:22 PM]

levinski with time donated from Betsy Greenburg and Barbara Macarthur. If they are both, they are both present, so have six minutes.

>> Mayor and council Bobby Lavinsky save our springs alliance. This is the annexation for the dog's head, encouraging you to actually vote against the annexation, especially until a development agreement gets through a public process where your boards and commissions and the public has an opportunity to analyze the agreement with your staff. Comments that could help improve the environmental protections for this area. It may surprise people to learn that this. There is actually a Travis county river corridor plan that exists for the site where the city of Austin made commitments to Travis county to help protect this area through land purchases and for and through improvements to the setbacks for the river. This agreement does the opposite. I'm going to read from the Travis county corridor river corridor plan, and it speaks to the bottomland. So the corridor bottomlands consist of creek

[5:28:23 PM]

and river riparian Zones, wetlands and floodplains, unique areas which form transitional areas between land and water. They have historically featured dense hardwood forest and deep alluvial soils, home for plants and animals of both terrestrial and aquatic ecosystems. From the perspective of watershed function, riparian areas are the most important part since they are the buffer between the uplands and the stream channel in proper functioning condition, these areas provide the following irreplaceable ecosystem services hydrological services, water storage in the riparian sponge of plant roots and soil water quality improvement as water is filtered through the riparian soils and vegetation flood attenuation as the riparian area slows, filters and absorbs flood waters. Flow stabilization as the flows are high and groundwater recharge and discharge as the riparian area contributes to the alluvial aquifer along the Colorado river. Biological services breeding habitat for Texas aquatic and terrestrial

[5:29:25 PM]

organisms shading over the the river and streams to reduce water temperature and produce and provide enhanced habitat for aquatic life like fish and amphibians. Wildlife corridors for linking Texas bioregions and critical migratory habitat for North American birds and butterflies. Geological services erosion control along the river channel as riparian vegetation armors the riverbanks along against erosion, protecting the river and our coastal bays and estuaries against sediment. Most bottomlands have been extensively modified, and their dense TRE canopy largely removed compared to their original historic condition. Today, among most of the river, only a thin strip of riparian vegetation remains the direct and visually obvious correlation in the physical location of alluvial deposits wetlands, springs, waterfowl, habitat, creek erosion, hazard areas, and so forth in the 100 year floodplain indicates a need to manage, preserve and

[5:30:26 PM]

protect the land from overdevelopment. In these areas. Restoration opportunities for these bottomlands are many and would serve numerous positive community benefits, including recreation and tourism, increased property values, and significant improvement to the diminished ecological services listed above. We have been trying to save this area, and what you're going to be doing today is approving an agreement approving the annexation that erodes the minimal Travis county protections that exist there today to to surrender it to 100% impervious cover, and that the whims of a developer that can request any variance to the development services without any council approval, and you will not have an ability to change this for 45 years. Please do not approve this. I think that the city of Austin should be ashamed for walking back on its commitments

[5:31:26 PM]

to the community and its commitments to Travis county. Thank you.

>> Janice Bookout district four. A development of this size should not should have due diligence, lean on commissions and include community input. A development of this size justifies a thorough environmental impact assessment. Major decisions are moving forward without notifying residents. That is not informed. Public process this is a 45 year agreement. What leverage will future councils have if problems emerge? The agreement has no impervious cover limits. We've already heard that the agreement removes protections from all previous from previously mined areas. Do we then plan to ignore any public health impacts that result? The agreement permits major use of critical water quality zone. What are the long term impacts? The site development standards are minimal to nonexistent. What enforceable protections actually remain? Why do we have

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to move so fast? Sometimes I think that you think advocates will obstruct all development if allowed the chance. I think that's why we're moving so fast. That's not true. We want good planning. What you're missing is that inclusive community processes do lead to good outcomes that get natural alignment from the community. What slows things down is your resistance to an inclusive process. Again, are we so desperate for tax dollars that we are willing to risk the health and safety of nearby residents? There are people living in the floodplain connected to this property. We just saw what happened with sandy creek. Why do we have to move so fast? Endeavor already brought the land. There's no reason for you to to rush this. Assuming that you are operating in good faith, then time is on your side. Please take it.

>> Hello, Craig. Naser, Sierra club. Rivers are a very

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endangered natural phenomena in America, and we are blessed with a river. Colorado river only. Only river entirely in the state of Texas. It has a dangerous. It has species that only live in the Colorado river. We are lucky in Austin because it flows down through Austin, but the only reason we can build the way we've done in Austin because of all those highland dams up there, and they protect everything further down. But we are now going into a time and we're not addressing it enough. We've talked about that a lot today, where we are going to get more rain and more flooding than we've ever had before, and it is not going to be linear and it's not going to be exponential. It's going to be erratic. And so we're going to put a huge development further down where this could be a big hassle. Now why are we

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doing it? Well, from what I heard and the thing we're doing it for money, we're doing it for tax base. We're doing it for shovel ready development. And what's happening right now on this planet is we are destroying the environment that gives us health. Now we can go into the details, talk about the endangered species. I don't have time to do that in two minutes, but just look around and see what's happening. And I've never found a city more environmentally forward than Austin. And I don't think if you do this, you will have the support of the majority of people in Austin. I really do not. I've been surprised today at what happened. I was always against this, but I was surprised and I think you should take this and remember it.

>> I think I can officially say good evening, mayor and council

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members. My name is Bianca Guerrero. I am a sustainability analyst and organizer with poder. Speaking today on behalf of district three and the east Austin families who carry this city every single day, I'm here to voice my opposition of items 38, 39 and 60. These don't represent equitable growth. They would continue the same systemic pattern that exists. I'm here for the people working two and three jobs who cannot afford to miss a shift just to be here at this meeting all day. I'm here for the parents who cannot pay for child care to come speak. I'm here for the Latino and black residents not present today, who live in the surrounding neighborhoods, who will live with the consequences of this decision for the next 45 years. I'm here for the ones who are currently gentrifying our neighborhoods. I'm here as a nursing mother who is lactating and engorged. Most of us cannot make it to these meetings, and when we do, you present romanticized versions of these proposals. You word salad us with technical

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language so we don't understand the real negatives. Then these items get rushed through and approved so quickly that by the time we feel the impacts, we're already living them and we don't even know why these decisions keep us locked in survival mode, the same survival mode created by decades of redlining, the 1928 master plan, and intentional disinvestment in our communities. I know you want and now you want to allow 100% impervious cover on this land right next to the Colorado. When we flood, you call it a natural disaster. No, you flood us by approving this. You are creating the next natural disaster for the very communities you claim to serve. We are demanding better vote no on item 38, 39, and 60 as written. Postpone them. Send them through environmental commission, planning commission and real community engagement process with transparency. Not a last minute agenda. Dump the people of east vote no.

>> Thank you. Thank you.

>> Continuing on item 60, we

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have rich Heyman, Brad Massengill, Lee Edwards, Tommy. Joaquin. Hancock, Victoria Finn, Tony Vasquez, Francis Acuna, Katherine brown, Megan. Meisenbach.

>> If your name has been called, please take a seat.

>> It's been mentioned here today that over the last seven years, 6 or 7 years that the federal government has just been decimating the rules about water quality. The clean water act is gone. You know, all these things used to apply some of these things we wouldn't even be considering right now if they were in place. So as an environmental city with a conscience, I feel that our leaders should should reflect the ideal that those now gone documents and laws embodied and

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to, to do things under the cover of a corrupt system and let these kind of decisions go forward without consulting the people they affect, without being conscience conscious of the ramifications that all those older laws were in place to protect. And when we go ignoring things that we know are right just for the sake of convenience or to make something happen faster, I think we're we're we're being immoral. We're not being fair to the environment, to the people that live here, our tax monies being used against us to do multiple projects across town. But this is really egregious. This is something that doesn't have to happen. We're actually trying to, in effect, water down laws that we already have that that the county has. So we need to vote

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no on this. I'm not saying postpone. I'm saying vote no on this. And and let's come back to it. You know, a year from now, people can talk about it with clear heads and a proper plan.

>> Brian.

>> My name is doctor Catherine brown. I'm a I live in district nine. My father's home is in district three. I'm a long term resident of east Austin where I grew up. I've already brought forth in 38 and 39 my concerns about environmentally driven diseases, particularly ones that are related to flood, which is part of my expertise. I also have my family has lived, including me, in the Austin area for over 60 years, particularly in east Austin. And much of the neighborhood that I grew up in has been gentrified. Where my father's property is now is in in one of these areas where I think, again, lack of engagement with the community has led to some

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of the concerns that have already been raised here. I think it's quite possible to preserve the neighborhood, to come up with alternative solutions that still allow us to move forward with different, different solutions to the problem that are both preserving the environment, preserving the neighborhood, and, and preserving, from my point of view, the health of the people here in Austin. I do what I do because I care about my city and I care about my neighbors, and I don't want to see increased morbidity and mortality just simply for the lack of going through and reviewing the current plans. I think that the, the, the plans, there are always alternatives. And if it's no or postponement, at least give yourselves time to review what's been put out there. Think carefully, engage the community, and remember that Austin is what it is because of you and because of

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the people that have put you in this position. Thank you very much.

>> Thank you.

>> I'm rich Hayman. I live in district nine, and I'm here to speak against 6038, 39, the dog's head development deal with the multibillion dollar endeavor group. You've heard a lot today about the many truly alarming things about this fast track deal, transparency process, environmental stewardship, planning, equity. And I'm my comments are going to focus on the extreme financial irresponsibility of this deal. Contrary to what staff asserts in its recommendation for action, this deal will cost taxpayers millions of dollars. The proposed tax increment agreement gives property and sales tax breaks to the developer for 45 years, meaning the public will receive no new taxes from the development of this huge area. Yet. We at we will have to cover the costs of new services in the area such as police, fire, ems, not to mention the increased increased cost of maintenance that the

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many thousands of new residents will cause to our already strained infrastructure. Additionally, the agreement requires the city to create not one, but two dedicated staff review teams. The city is agreeing to pay special staff just to handle the future permits and planning associated with this development, which will cost us money. This is an example of a development that is emphatically not pay for itself or benefit the public. Instead costs existing residents. Our property tax will be going to subsidize endeavor for the entire childhoods of our children. While the public benefits are minuscule, weak and vague, this is a bad deal. The developer is getting huge benefits. The public is getting peanuts. This is corporate welfare for billionaires, Austin style. Why is this coming right now? Here's a couple of statistics from the from the city's open portal. This council has taken \$130,000 in campaign donations from the developer, and about 123,000 from ambrose and brown, the principal lobbyist. For those wanting to know the price

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of this kind of sweetheart deal in Austin is right around \$250,000 a bargain for what they're getting.

>> Continuing on item 60, we have Roy Whaley, kaiba white, Carmen Lianes, Zenobia Joseph Garrett tongue, Elizabeth Levins, Beatrice Anderson, Caitlin Griffith, Katy cam. We have one remote speaker, Severin Cushing.

>> Hello.

>> My comments apply to agenda items 38, 39 and 60. Again, I want to reiterate my urging to please postpone these items, and I want to illustrate two main concerns that I have. First, I'm concerned about the environmental impact of this project, and.

>> I have yet to see sufficient evidence that proper consideration has been made in

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regards to the environment and ecosystems therein. For example, as mentioned many times today, allowing up to 100% impervious cover is egregious and unacceptable. My second concern I'm in opposition to this development, but within the current design, a better alternative is being overlooked for the hike and bike trail. So adjacent to the proposed trail is a 50 acre that's five zero 50 acre tract of land that's already owned by the city of Austin. This is literally a one minute walk from the currently proposed hike and bike trail on hergatz Laine. This tract is a natural and obvious location for the hike and bike trail to be diverted, where it can later rejoin the river at the nose of the dogs heads. Doing this

would avoid displacing residents and allow for even more community spaces within that 50 acre, such as a park or playground. This would also, more importantly, allow for ample parking without

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displacing homes in favor of a

>> Parking Lane.

>> I want to mention that this 50 acres of land falls within the airport overlay, which means that it's not zoned or eligible for any new residential structures to be erected. Also worth noting, this city of owned city of Austin owned land is completely flat, vacant, free of any protected trees or water features. It's completely unused. There are. Excuse me. There is an opportunity to achieve the goal of offering community spaces without displacing folks. I urge you to please consider diverting the hike and bike trail.

>> Thank you very much. Please just state your name for the record.

>> Hi, my name is Elizabeth Levins and I'm in district three. Good evening. I wanted to close with this. Item 60 is not a minor administrative action. This is the annexation

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of more than 2600 acres that will permanently shape the future of the dog's head area, surrounding neighborhoods and eastern Travis county. And today, you've heard overwhelming opposition from residents with no member of the public in favor who hasn't been paid. That should give this council pause. I'm not here as someone opposed to thoughtful growth. I'm a resident whose home is directly affected by these plans. In fact, the current plans show a proposed hike and bike trail cutting through my property. No. No cutting through my living room. That is not an abstract planning concept for me or my neighbors. It is a personal, immediate, and life changing action. The people speaking tonight are the people already living in the dog's head. We are the residents whose homes,

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roads, drainage, traffic, safety and environment will be directly impacted long after tonight's meeting ends. What concerns many of us is not just the scale of this proposal, but it is the pace of it. Residents feel blindsided while major questions about flooding, infrastructure, environmental protections and property impacts remain unresolved. Please do not mistake the urgency from developers as urgency from the public. Annexation and development at this scale require transparency. Independent review,

meaningful community engagement and real protections for existing residents before irreversible decisions are made. Please council members do not treat public opposition as a box checked in the process. Treat it as a.

>> Thank you very much. More work. Thank you ma'am. Thank you.

>> Hi this is I'm Katie Kamm with district nine. I don't have my laptop because about an

[5:48:47 PM]

hour ago it stopped working. So I'm going old school with paper. I'm trying to remember what I wrote, but here we go. I share the concerns of previous speakers that have been expressed about the environment. Colorado river flooding, land uses such as not wanting data centers and other intensive industries, not in alignment with community values, and the lack of transparency and meaningful public engagement. I want to comment that if this development moves forward, I want to add the following design considerations. First, I noticed in the backup material the streets cross sections show four and six lane roadways. You'll see I'm a transportation engineer. I can't help but comment on this. This is disappointing. Most of the high injury and high death roadways in Austin are 5 to 6 lanes. So why would we go and build more of those? With new development, we have the opportunity to create a truly vision zero transportation system. And when we go when we have new development like that, let's take advantage of that opportunity. So instead of wide

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roadways, we can create more of a grid like street system with narrow roads and roundabouts. And add infrastructure for missing middle mobility modes that are lower speed and safer. Second, there was a lot of stress this week by cyclists. I'm one of them that enjoys a southern walnut creek trail system. And there was two roadways proposed through that. I think those have been removed and those need to stay removed where residential is allowed. I'm in Mueller the affordable housing requirement there is 20%. That was way too low. If residential is allowed, it needs to be higher than 20%. And lastly, let's make sure we have strong green building required and green spaces to respect the Colorado river ecosystem. So if this is going to happen, let's make this an exceptional example of environmental sustainability. Transportation safety and land uses in alignment with city values. Thank you.

>> All speakers for item 60 have been called.

>> Members, that concludes all

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the speakers that have signed up for the public hearing on item number 60. So without objection, we will close the public hearing on item number 60. The public hearing is now closed. Members, we will now go back to item number 38. We will take up items 3839 and then we'll come to 60. And then at the conclusion of that, we will go to our zoning items that remain. And then we'll come back to item number 56 for the record. Item number 54 was also a public hearing, but that item has been postponed indefinitely. And item number 57, which was a public hearing, is postponed to may 28th, 2026. What I would like to do is ask our staff to come forward on item number 38 so that I can ask a few questions. And if we need to have a representative of. The folks that are applying for this and looking to this, I'd like for them to come up to.

[5:51:56 PM]

Yeah. You volunteered a minute ago. And I'm going to I've got several questions that I want to ask based upon part of what we're hearing today and concerns that we're hearing, and I'll let you all decide who is best answering when I kind of throw them out. But today we have heard a significant number of questions related to process and, and concerns about the process. So what I would like you to do is walk us through the anticipated timeline that you foresee in terms of getting the regulatory agreement put together. And, and part of what I want to know about that is the visibility of that that will be for the council as we look going forward and the public about the details that will be controlled by that regulatory agreement.

[5:52:58 PM]

>> Trish link with the law department. So the next time dockside would come before the council after today would be the tirz vote. Assuming today everything is approved, the tirz vote would be in July. After July in the fall is when we anticipate bringing forward a regulating plan that would apply to the dog's head area. The regulating plan will essentially be a mini code that will track the development agreement. There are a couple provisions in the development agreement where we've decided the issue needs to be delayed to the regulating plan, and then if there's anything else between city staff and the developer that may need to be added, that would happen in the fall, it will go to the planning commission, and then it will come to council for a vote.

>> So the regulating. So a next step. I see two two tracks here. One is the next time that this would. Assuming things were to pass today, the next time anything related to this item

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would come, come back to us is when we would consider a tirz. And I'm going to ask some questions about a tirz the tirz in a minute, but. But the issues related that what that says to me is that the issues related to the tirz itself have not been decided.

>> Correct. That is still something that financial staff is working through.

>> And so that would come back and have the opportunity for council to weigh in. And again, the public to weigh in.

>> Correct.

>> At the other path that I heard you talk about is that even if a development agreement is adopted, that there are aspects of that development agreement that require what you call a regulating plan.

>> Correct.

>> And that is, as you just said, that's kind of a mini code, like the city code, where it says, here's what has to happen and here's how you have to do it.

>> Correct.

>> And those provisions have to be worked out. And again, that would come back to council.

>> Correct. It it will mirror

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just to be clear, it will mirror the development agreement.

>> Right. But the details of it will be carried out in the regulatory plan.

>> Correct.

>> Okay. Tell somebody describe for all of us what is the current state of dogs head. And I might I think I know who I'm looking at when I ask that question. What and how has as I understand it, you know, it's it's there are there are things out there, but it's largely 25, 2600 acres of land that used to be an industrial site primarily. And, and I want to ask about what's what the current state of dog, the dog's head area, and how the industrial activity has shaped the current landscape out there. And then the third part of that, I know I'm asking a triple part question here, but I want to know what the effect that

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residential development, commercial development, the ideas for what could happen out there, impact the current state and and the past with regard to the industrial state. Sure. Richard, settle on behalf of Andy pastor here with endeavor and hopefully the future partners with the city of Austin on this. The

current situation out there, it's about 2600 acres. It's still in the etj. It's one of the few properties that did not elect to bail out of the city's etj. It's. It is a site of a former sand and gravel and topsoil mining operation. So what that means is over the course of 70 years, this site has basically been dug out and big holes and pits. It's in the process of reclamation, which means we're taking soil from other areas, clean soil from other areas, and filling these pits back in. So you're taking property that

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big holes with water in them, and we're filling them back in and bringing it back to developable land. It's three and a half miles from downtown, mile or so from the airport. The practically speaking, what that means is environmentally, this thing has been bombed out over the 70 years, and we're bringing it back and resculpting it. What we've done is instead of bailing out of the etj and just developing it out in the county, we've approached the city about a partnership where we bring it into the city. It's kind of contrarian, but bring it into the city with annexation and partner with the city to have a development agreement and work with the city on the planning and bringing it back and creating a, I don't want to say, a new city because it'll be part of Austin, but creating a mix of uses of potentially commercial, residential, industrial. It's 2600 acres. It

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could be a number of things, all coexisting. Interesting piece of information. The size of this property. If you took looked at downtown from the river to north of UT campus and from mopac to I-35, that's about 2600 acres. That's the size of the property that we're talking about. So it's an exciting planning opportunity to work with the city on. And there's been a lot of talk about the tax base. The added benefit is it adds tax base to the city immediately and for future generations. What you just referred to, you just endeavor has said that they are not opting out of the etj for. I know what that's a reference to, but explain to the public what it means when you say that. What is what is that reference to? So. In the etj, the city's subdivision and water quality regulations apply. There was a bill passed in the legislature

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that. That allows people to basically file a petition with the city, and you get out of the etj and then all of a sudden you're just in the county. So if another development company might say, well, I don't want to deal with the city, I don't want to deal with the etj. I don't want to deal with anything but the county. And they would opt out and then it would be solely county rules, which means no land use, very little regulation. The county has water quality and they have subdivision and that's about it. And so it would develop as a different kind of project under the county regulations. So some of the regulations that have been talked about today that people have asked us ask about if, if this 2600 acres opted to be outside of

the etj, we wouldn't have any control over that. That's correct. Okay. I want to go back to the regulatory regulating plan and regulatory agreement. Walk me.

[6:00:08 PM]

Walk us through some of the kinds of land use. Now that we've talked about land use, some of the land use, environmental or other topics that will be included in that.

>> In the regulating plan, it will create the zoning for the property. So as proposed in the development agreement, there's essentially two zoning districts, mixed use and open space. And that would be also in the regulating plan. The uses that are allowed in the development agreement would also be included in the regulating plan. The any modifications that we made in the agreement to current code would also be in the regulating plan.

>> If they're not in our etj or not annexed, do we have the ability to do those things?

>> No, sir.

>> Okay. Let's talk about the tourism minute, because I'm coming back to the two parallel tracks. You indicated that we might be on in the tirz. What

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kind of issues? Things like and what I'm thinking of are things like community benefits, things like affordable housing, things like that. We've heard parkland and open space. What kind of will those things be negotiated as part of a tirz agreement that will come back in July? And are there other things that might be considered as part of that?

>> As of right now, the community benefit for the tirz would be affordable housing. However, as time goes on, there may be opportunities to add community benefits.

>> Tell me about that. What? What do you mean by that?

>> It depends on how the numbers work out. And I will have to turn it over to Mr. Benigno to talk more specifically about that. But essentially there's there has to be enough money for us to provide services, and there has to be enough money for them to develop the infrastructure.

>> Well, that raises an interesting question, because I just heard somebody, in talking to us and giving us their their

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public comment, they said that the city gets no money out of this. Would we negotiate a tirz where the city got no money?

>> No, sir. That's not what the city is going to be doing.

>> Who are you?

>> I'm sorry. I am Ed Benigno, chief financial officer for the city of Austin.

>> Thank you, Mr. Benigno. Appreciate you letting me be. Be snippy or or sassy, as some have said. Go ahead.

>> So there's a lot of factors that still need to be determined in the tirz and would be brought back in July. When council sees that, you'll see a preliminary financing plan is what you'll see in July that will describe the current conditions of the site, the lack of infrastructure, infrastructure that needs to be included, and any elements of a tirz that will be funded by the tirz will be described in the preliminary financing plan. The level of the tirz, whether it's a 50% value capture or a 60 or

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70% value capture, whether or not it includes property taxes or sales taxes still needs to be worked out. And that's what council would see in July. But our intent is to not give away everything. We need to look at the project and figure out what's needed to make the project work, and get the kind of community benefits that the council expects and.

>> And, and how much do we receive? How much do we receive in taxable value? Right now.

>> The city receives none because it's not in the city's boundaries.

>> And if they were to to leave our etj utilizing the state law that allows them to get out of our etj and never come into the city of Austin, how much would we receive in terms of taxable value?

>> None.

>> So help me understand the use of the tirz. The tirz would be something that is utilized so that we could build the infrastructure to allow the development to go forward.

>> That's correct.

>> And what I hear you saying,

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and I'm going to ask them this question, but you're not going to bring us back something that says the city doesn't get some taxable value in return for this. And in addition to that, the tirz is is going to include community benefits of affordable housing.

>> That's all correct.

>> So I'm going to ask the y'all with regard to the tirz, is it your anticipation that you're going to negotiate for a tirz where the city doesn't get any taxable value out of this, that it just makes infrastructure improvements so that you all make money? Absolutely not. We came to the city with the premise that it has to make financial sense for you, the city, and it has to make financial sense for us. Our anticipation is we wouldn't ask you to do a deal where you didn't start out with more money than you started with. It's I've learned that it's much more complicated to factor all that in, but obviously you're going to need money for

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services, for providing services to a newly annexed area. You wouldn't do this deal if it wasn't net positive to you. We're not asking you to. We think that there's enough, especially if it gets done in a timely manner. We think there's enough money for both of us to come out way ahead. And what it does is it enables the city to finance infrastructure to a newly annexed area, to allow a better project than if we went it alone in the county with our mud. Describe what you did a little more about what you just said by doing it through a mud. Just not in the city. City doesn't get any taxable value outside the etj. You go with the county alone and utilize a mud. What does that put on the outskirts of the city? Because it would then be on the outskirts of the city as opposed to being in the city. It'd be on the outskirts of the city. We would have a municipal utility district funding the infrastructure. It would be a different project. Frankly, wouldn't be as I don't think

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it'd be as good a project and would be outside the county and theoretically could become another little city on the outskirts. Would we get any say in what goes into the mud.

>> If they are not in our etj? No.

>> Okay. Thank you very much. Am I dying? How would we approach zoning on this side?

>> So in as part of the regulating plan that will become that will include their zoning. And it will have two base districts of mixed use and the other would be open space. And so the uses that are allowed in the development agreement would be carried over to the regulating plan.

>> All right. We've also heard some concerns about the process for approving different kinds of commercial opportunities. Are there limits that can be put on placed on as part of the tirz, as part of the regulatory plan, or negotiated in other agreements in the future?

[6:07:16 PM]

>> Without the the owner's landowner's consent? We would not be able to limit those uses.

>> What happens if they're outside the etj?

>> There would be no control whatsoever and we would still be the water and wastewater provider, as well as the electric utility.

>> All right. Thank you. I think those are my questions. Councilmember Siegel. I got you. Sorry. Thank you mayor. I really.

>> Appreciate those questions. Really answered a lot of what I was hoping for. I do want a few more questions. You know, I think I joined the rest of council. We're very intrigued by this opportunity for the city. You know, the opportunity to improve our finances, create more places for people to live in the city and enjoy. Enjoy. Austin. When I was listening to the public testimony, I heard kind of two big concerns. One related to who the tenant is going to be and the other about these environmental questions. And I want to share, I want to

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ask if you can share whatever you can about this projected first tenant at dog's head. And it seems like that opportunity is what's driving the urgency here.

>> That's correct. So dog's head is so close in proximity to the city. We've actually had 2 or 3 potential tenants come to us and say, we want to be on dog's head. We like the location. When could you be ready? And we weren't over the last few years, we weren't quite ready. This particular tenant came to us. It's a large. Fortune 100 company. I've got to be very careful because I've got an nda that's signed that they get my dog, my truck, my wife, my kids, my house, if I let it go. So I don't want to lose my dog. So but it's a fortune 100 company. It's advanced manufacturing. It's not one of the uses. When we've kept track of your conversations about the economic development policy and all that, it's not one of the

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uses that you're concerned about. They came to us originally thinking they were going to ask the city for some large financial incentives, but as we had the conversations with them, it became apparent that the most the biggest incentive that they could get from our city would be to be able to implement their program fast, and if they did that, they would do away with the economic incentives. And so we came to

the city saying, we've been working on this for a while, but now we have the chance to jumpstart it. And it does several things. It gets a tenant, and I will tell you that it's a small portion of the entire site. It's not the 2600. I will tell you, it is not a data center. It's not one of the uses that everybody's been talking about in economic development. It's a use that I think you would be okay with. You'd like. It's a. But they want to go fast. And the the

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currency that we have right now is that your staff has been unbelievable. And we've put this very detailed plan together and we're able to go fast. And that's the urgency. If we miss the urgency, I think, Andy, we still want to do dog's head with the city. It just doesn't have the jump start that we've had fall into our lap.

>> Thank you. Yeah. The big concerns I heard were data center and military defense. And my other question was, do you think the council will be disappointed when we find out the identity of the big tenant? And it seems like you're saying we won't be.

>> I don't think you will be. But I've quit trying to guess. But I don't think you will be.

>> Thank you. And then the other question I want to ask you, sir, is can you provide any assurances in response to the constituent concerns we've been hearing about the environment, protecting the river, protecting water quality.

>> So. And Andy is here with me because everybody says, Richard, you can't be a smart aleck. You

[6:11:21 PM]

can't be Richard, because apparently I can be pretty abrasive sometimes, and I'll admit that. But and also I'll tread lightly. But when you take a site that's been mined for 70 years and dug out, it's kind of hard to make it any worse. We are going to make it better. We've got the 200 foot critical zone around the entire edge of the river with the trail, and then inside we're going to because we were able to sculpt the land, we can actually do innovative water quality and drainage strategies that will be actually better than if we were having a site that wasn't mined. But we're sure taking a site that's been mined and making it better.

>> Thank you very much. Want to ask some questions of staff as well, miss link, if you could share just what developments or sorry, what environmental standards are contemplated under the development agreement.

>> So we start from the premise that the code as it exists

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today applies. And then the agreement modifies some of the provisions related to how they can achieve water quality and drainage, and where the floodplains on the site are, but they are still required to comply with current code, except as modified. Actually, following up on councilmember Ellis's question on Tuesday related to the integrated pest management, that is actually been as it relates to water quality, added back into the agreement. It was an. It was error on our part.

>> Thank you. And then I guess after today, will there be additional opportunities to invest to redress any environmental concerns?

>> So this is a contract that we're making with the developer. And so it is enforceable just as any other contract.

>> So if later we find that there's inadequate environmental protections, we have a remedy.

>> We do. But there's also some

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provisions about how to solve it before we get to the courthouse.

>> Sure. Yeah. Work it out. Right. That makes sense,

>> Council member.

>> Yes, sir. Go ahead.

>> I want to reiterate we're partners in this, so there will be continued conversations throughout the regulating plan, the tirz and then beyond. Because this is a long term relationship.

>> Thank you. I guess a couple more questions and I'll pass back to you, mayor. I guess there was some questions that we got about TRE surveys. And, you know, whether the city's TRE protections apply to dogs that this link, could you speak to that?

>> So there are TRE surveys. They're not required in the critical outside of the critical water quality zone. So within the critical water quality zone, they would still be required.

>> Okay. So but in terms of whatever the heritage TRE ordinance, things like that, it doesn't apply everywhere.

>> It's not that it doesn't

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apply. It's just whether or not it's being surveyed. But the other thing is, is that the trees that may be on the site based on the mining activity, won't necessarily be are not the same trees that are along the water. So this will preserve what is happening along the water, which is the arguably the oldest of the trees on the site.

>> There are currently mining permits on the property and reclamation. It's an ongoing reclamation and mining operation. So dirt is being moved in massive amounts every day and around the fringe where it's been left alone. That's where we're having TRE surveys are required. And all inside there's just it's it's a mine. There's not many trees.

>> Understood. I also got some questions about the process where variances to land development code would be approved by the manager and not the council. Can you speak to that miss link?

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>> So that provision was added to the agreement to ensure that we caught everything we needed to catch. If there is a variance in city code, then the director of development services would handle that variance. If that variance under current code says it goes to the council, then it would still go to the council, otherwise it would go to the manager.

>> Fair enough. And then last question what other opportunities will there be for community engagement regarding the creation of the tirz and the regulating plan?

>> So for the regulating plan, like I said, it will follow the development agreement. Staff will work that up and take it to the planning commission. So the planning commission will weigh in and then it will come here to council as it concerns the tirz I am. Mr. Benigno would have to answer whether we. What kind of engagement may happen?

>> I can certainly say that a tirz creation requires a public

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hearing. So at the very least there'd be a public hearing at this body before the tirz was created.

>> Thank you mayor. Thank you.

>> Thank you, councilmember, councilmember qadri, followed by councilmember Velasquez.

>> Thank you mayor. I have a few questions that haven't been answered, haven't been asked yet. But, but but also want to kind of reaffirm and re-ask this question. We had a speaker jokingly say that you had mentioned fighter jets and whatnot. There's there's no defense contractor or data center that's, you know, that's projected to, to come on site.

>> No, there's not great. But I told Roy was if a fighter missed the airport runway, we're off the end of the runway. He could probably land on dog's head.

>> Got it, got it. We also heard from some speakers state that there was no polling locations. A dog dog said. Currently there's no schools, there's no grocery stores. How many people live in dogs? Ed.

>> Maybe less than ten.

>> Less than ten. Okay. Thank

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you. And another question for applicant or staff how much screen space will be included in the project?

>> I'll take that.

>> Councilmember. Andy pastor with endeavor endeavor real estate group public space will start out as 266 acres of public open space, as well as 16 acres nature trail. Well, sorry, of a permanent trail. Eventually that'll be put in place once the reclamation stops throughout the entire site. Initially there will be two miles of of a trail system and nature trails throughout.

>> Great. Thank you. And my last question also for the applicant. The applicant confirm whether they plan to utilize 100% impervious cover or not for this project.

>> No, the starting out, including the open space, it would be less than in the trail

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be less than 90%. But developing this out, the intent is to have.

>> Folks they didn't call out a single time while you were testifying today. Well, you. Well, that's a good point.

>> I'm so sorry I missed what you were saying. Do you mind repeating yourself?

>> Sure. The impervious cover will start out just without any development. Just with the open space, there will be virtually no pervious cover. Ultimately, it will be probably, I'm guessing, in the 80% range.

>> Great. Okay. Thank you.

>> Sure.

>> Councilmember Velasquez.

>> Thank you. Mayor, we got into this briefly on Tuesday, and you explained that the map at exhibit D was conceptual, but it has caused a lot of concern and distress in the community. What assurances can you give the community, us and the community that first, that

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the development of dogs head won't negatively impact the Mok Ann trail, baum park or John Trevino junior park? And secondly, that existing residential property won't be negatively impacted.

>> So there's a new exhibit D that took all of the, what I call the spaghetti bowl out on the on the trail part.

>> And those were your personal drawings, mister. Subtle.

>> I won't take the heat for it, but if I need to, I will. They were. They were lines on a map. The. You'll see a road that goes out that are bisected. John Trevino park. But it's still on the map, but it's pushed over to the side. But again, these are maps that are concept only. And the width of a sharpie is many, many feet. So there's a new exhibit since our time together on Tuesday.

>> And that's the version two that's in the backup right.

>> Now. Version two in the backup.

>> Thank you. The second question I got is we we got a

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red line version this morning that addressed our office's issues around the use of firearms on the site. Can you explain the safeguards that are now in place related to public safety? And that's for, I believe, both. Either one can answer.

>> Under the state law that allows these development agreements, you're able to specify continuing land uses after annexation, even if they're not allowed in the city. As you as you know, it's not legal to discharge a firearm in the city. We still have family members that recreate out there. They'll do some dove hunting or plinking or something. And originally we just said that was a blanket use that could continue after after hearing the council's concerns about that. But we did is we isolated 400 acres away from everything. And that is the only area on the site that can have any sort of bow hunting or shotgun shooting or pistol shooting. And there's a provision that as soon as we get the trail touches that 400 acres, all

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that activity ceases and there won't be any more on the dog's head.

>> Thank you. Thank you, mayor.

>> Thank you, councilmember mayor pro tem vela, followed by councilmember alter.

>> Thank you. Mayor, what other projects has endeavor done, whether here in Austin or other. Just to get a sense of kind of what what are you all. You know, I always think that the past is prolog to the future. What other kind of projects have you all done?

>> We we developed the domain in north Austin, south park meadows, high rise and high rise buildings downtown. We also operate in in Nashville, Denver, Salt Lake City and have a site in San Diego. So we specialize really in mixed use projects.

>> These are all more kind of dense, urban mixed use type developments. I know you all are involved with the statesman as well. I know that's still kind of a blank slate, but.

>> Yes, that's correct.

>> Thank you.

>> Councilmember, followed by

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councilmember Ellis.

>> Question for Mr. Benigno as it relates to a tirz, can you just clarify the allowable uses of the tirz from a geographic standpoint? Are they limited? Are those dollars limited to the geographical boundaries, or can you use tirz dollars outside of the geographic boundaries, but to the benefit of the tirz area?

>> I think that would all be determined by how the tirz is established, but we could certainly set up a tirz. That's for an area beyond the current boundaries of the dog head. But those are things we would have to still work through. Generally, they're used within the boundary areas, but there are provisions to use funds outside of the district boundaries as well.

>> And I alluded to this on Tuesday, but I just want to clarify here. So, for instance, councilmember Velasquez talked about the road. You know, that road originates in dog's head, but might it's going to require a bridge. And then ultimately

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maybe connection to 969. That is infrastructure that obviously the portion within the dog's head the tirz would pay for. But trying to understand what else it could be used for so that the city is not necessarily on the hook for the other side of the bridge, right. That that this bridge and some of the infrastructure is to the benefit of the tirz area and could potentially be a part of the tirz plan. And I just I want to one, clarify that that is an allowable use under state law, that that would be an allowable situation.

>> I. That's certainly the use of the funds for a bridge is an allowable use, whether the boundaries and the location of it, I think we could work it out where it would be included, but we would want to work through the details of it in what we bring back to the council.

>> Okay. And as it relates to the applicant, y'all's reading between the lines. In terms of your your map, there aren't

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enough ingress and egress points to this site. And so you need to get additional ways in and out. But that infrastructure y'all envisioned to be financed from the tirz.

>> Councilmember. Yes, I think a portion of it. But there'll be different pots of money. They'll be tirz money, they'll be developer money, they'll be other transportation companies, money to make this really a really good project. You want a grid it out a little bit and have multiple ways in and out. And that's part of what we'll be working with Ed and the city on is which pieces get funded immediately, which are longer term, which other entities may join in. And that that's what will make it a good project. Okay.

>> The other thing I'll just offer as we think about what the tirz can finance and just

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how we build the infrastructure for this area. We talked about it a little bit on Monday in terms of our large water usage users as a city, I know you're very familiar with Tesla as a large water user. You know, if you if you're able to solve for one large water user, you change the dynamic of the city's water needs, right? These we're talking an individual user can use hundreds of millions of gallons of water. And if we're able to not have to provide water from the Colorado river, but instead provide reused water that is properly treated and made to a standard that can be used for industry or even for potable use. I would really like for us to consider how there's there's a purple pipe running right there already next to the dog's head. How can we utilize that and maybe treat that a little greater before it gets to you

[6:26:32 PM]

so that, you know, the majority of the site could be using reused water, not new water from our water supplies. So that's just a, a thought as we move forward and want to.

>> Our commitment to you is we will use that reused water. It's it's it's already there. That's and we're going to be doing some improvements to that infrastructure. And our commitment is to use reused water.

>> That's great. Well, thank you very much.

>> Thank you, councilmember. Councilmember Ellis.

>> Thank you. I wanted to ask a brief question about transportation, planning and transit. We've gotten some information in our inboxes about the proximity to what would be the light rails, you know, airport extension. Obviously, the folks that have been following the timeline of that, that's many, many years away. But when and how would the conversation around either cap metro bus routes or potential extensions? Should we get light rail to the airport? When and how should we approach those conversations?

[6:27:33 PM]

>> I would recommend we start thinking about it immediately and plan for it, and don't do anything that would preclude it. And then as it matures and hopefully the line gets out to the airport and it makes perfect sense to get the train line. And in the interim, in some of those roads, in our diagrams, once we get consensus on what those look like, start out maybe with baby steps, maybe bus lines, and then make sure that we don't do anything to preclude the transit, the train. And that's that's in our plan.

>> That's good to hear because I know on the statesman site, y'all were very collaborative on making sure that you weren't precluding anything around mass transit in that, in that location, because that's already slated to get some really good service in that area. And so I want to make sure we're having those conversations. Capmetro is obviously eyeing ridership. You know, any place that ends up with dense development, they're super eager to make sure that they can they can service it. So I want to make sure we don't

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preclude any of those conversations.

>> It's a good thing about having a homegrown company like endeavor. They're thinking that way, just like they did on the statesman. They're going to think that way on this site.

>> Okay, thanks. Thank you, mayor pro tem.

>> I just wanted to point out that by annexing the area, we enable capital metro service. If it's unincorporated county area, that would not be served by capital metro. So by incorporating into it, we really kind of put capital metro into that area.

>> Thank you. Good point. All right. I'm going to ask maybe hopefully just one more question. But it relates to the length of the agreement. And I'm going to set a context for that. I remember when the Miller development, which was something north of 700 acres, which was a big deal because it was 700 acres. This is 2600. And we're just now completing the Miller agreement after. And that was, I guess, in 2000. So

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26 years later, there's talk. The some people are upset about a 45 year agreement. Describe how long you think it's going to take to build out 2600 acres. This is not something I guess is going to happen overnight. There is a an anchor tenant or whatever you want to call it, but how long do you anticipate it will take to ultimately build out 2600 acres?

>> I let Andy answer that, but I'll tell you where the 45 comes from. The state law specifies development agreements can be 45 years. And that's we just picked it because that's what's in the state law. It is 2600. So that's almost four Millers. So. But if you when you when you get the opportunity, like that's been presented to us, where you get a jump start on a few hundred acres to start with, that can go faster. And it affects not only the development agreement, but also the tirz term. And it could be burned off quicker. And Andy

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will tell you.

>> Mayor, the domain is 27 years and going it's 305 acres and it's not completed yet. So in excess of 45 years.

>> Yeah. Thank you for that. On the tirz, you now forced me to ask another question, but I want to talk about the tirz. What what is it about what Mr. Suttle just said, Mr. Benigno, that it speeds up the tirz if you have a big anchor tenant and maybe one that is worth a lot has adds a lot of value quickly.

>> Yeah. The faster the value comes on to the tirz, the faster the tirz starts generating revenue they can pay for the public infrastructure. Right now, the sites 2600 acres are appraised at roughly 17 million of taxable value. So any new value added over and above that is what would be captured. Some portion of that would be captured. Revenue would then go towards funding the public infrastructure

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that's needed at the site. So the timing of when the development occurs is really important to the ability to fund the infrastructure kind of becomes a chicken or an egg environment. But having a large developer come early on in the tirz is a huge benefit to generating the revenue that's needed to put in the public infrastructure that then generates the additional development.

>> And from the city's perspective, a portion of it would go to building infrastructure, but a portion of it would go to. Correct tax base that would be used for our general fund, for things like social services and other things that we want to fund in our budget process. So the faster we get something on that property that's annexed into our city, and depending upon what the percentages are, the faster we start getting money into our general fund that can be used for the payment of services.

>> That's correct. And it's not just property taxes, it's also sales.

>> Tax, of course. Yes. Thank you, councilmember Siegel, do you have something else?

[6:32:37 PM]

>> Thank you mayor. One last question for Mr. Subtle and the applicant. I guess in exhibit B, version two, the land use summary table military installations are listed as one of the civic uses. I guess if you could share why that's why that's there.

>> The thought process is, you know, in downtown Austin, we have the military's futures office, which by some accounts is an important citizen of our city. And we didn't want we can't see into the future what that looks like, but we felt like that may fit under military installations. We have no desire to have traditional bases and those kind of things, but we with land uses changing so much, we didn't want to preclude something like that.

>> Like an office that had a military branch of government.

>> Correct.

>> All right, members, first of

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all, thank you all very much. I think we're we're finished. Oh, I'm sorry, council member Laine.

>> I just have one question. I mean, we've been talking a lot about this initial tenant, the fortune 100 company, which is extremely important. And this is a question for I think, for Andy. Can you describe a little bit what other type of development like paint us a picture of what you would see coming in to this development after this initial anchor?

>> So we view this as being a, a, a special mixed use project that's going to have all kinds of residential. That's a goal of to have different types of residential, want to have retail, commercial, office, entertainment, think of, think of downtown, think of what downtown Austin has. So any of the, any of those kind of uses.

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But it's a, it's an opportunity to do something different, have great walkable, bikeable community with completely blank canvas. It's unlike anything we've had the opportunity to do. We usually have constraints. So this is a real opportunity and we look forward to, to collaborating with lots of groups and, and neighbors out here.

>> Thank you. Appreciate that.

>> Thank you all very much. Members. What I would suggest we do is take up item number 38. Then we'll take up item number 39, depending upon how those go. Take up item number 60. But item number 38, I'll entertain the mayor. Pro tem moves authorization of the negotiation and execution of the development agreement. I'll second the motion. Is there additional discussion with regard to it? Here's I will say

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something about it. And what I want to say about it is, first of all, I think this is a very unique situation for the city of Austin and that it is a rare situation indeed that a city the size of Austin, Texas, has this much property located. What is now? I mean, it's right next to the city. It is this close to our airport. It's three miles from our downtown. It is, it is. That's a rare situation by itself, especially when you take into consideration what it can mean to our tax base. It's also a set of circumstances that we are fortunate enough, and I want to use that word. Fortunate that we have a developer that is in control of all of that land, and it's a developer that we know. All of

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us have probably been in the domain and have seen the quality of that development. And this is a developer that, as did, as some have done, has utilized this developer did not utilize state law to get out of our jurisdiction and do whatever it was they wanted to do outside of our jurisdiction, where we would have even less control and we would have no enjoyment of the tax base. My guess is none of us are going to consider this to be a perfect development, but it creates an opportunity, again, a unique one where there's no question it will be better than what it could be and and probably would be if it's

on the outside of our jurisdiction, if for no other reason, we wouldn't get any of the tax base. So I encourage us to

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continue the process as we as we've discussed, the process is certainly not over tonight, but. I think it's it's a rare situation for a city our size to have the potential to grow our tax base on a reclamation project. Krista. I'm sorry, councilmember Laine try not to be too familiar, I apologize.

>> No worries. I, I want to thank the public commenters who have come out today and asked a lot of hard questions, good questions, questions that need to be answered and in no way am I advocating for a level of speed that would preempt answering of questions. But then I also want to note that I have seen well, I want to thank my colleagues for also asking questions that that allowed us to see how this developer has responded and the level of

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thoroughness to which the our staff has worked on this, and also the responsiveness. It is it's very important for us as a city that we figure out how to do things related to development and getting things done faster than we have in the past. Look no further than the bond discussions to see that we need to be able to move faster, but we need to be able to move faster and be effective and get it right. And it is very encouraging to me to see the level of responsiveness that we've gotten from this developer. I think that it is very beneficial that we can think about what does south park meadows look like, what does the domain look like? And then to think about this site that has so many environmental, environmental issues and obstacles and have developers working on it who has the knowledge and experience working in Austin to work through those issues and to be

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able to work effectively with partners like capmetro. These are all very good things, and the potential to then be able to bring in with an anchor tenant who can attract the quality surrounding tenants. It is very much an important opportunity for our city, and I really support the city manager's and doctor Johnson's efforts to advance economic development for Austin and the surrounding area. These are the kinds of investments that can generate jobs and revenue, that can fund essential services, that can help us to continue to create the kind of city that we want for our kids and grandkids, and to have this type of mixed development come in and be developed in this way and include significant affordability and residential residents. Again, I am

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impressed by what I've seen. I will note, as the mayor did as well, that we are not at the end of the process. We are at the beginning. There will be a much greater level of specificity as we move through the process and the level of responsiveness that we've seen so far really helps to give me confidence in where we are going. And so with that, I will say that I strongly support the project. I appreciate everyone's efforts and works to move it forward efficiently, and I look forward to hearing my colleagues thoughts. Thank you.

>> Mayor pro tem vela.

>> I echo council member lane's comments. You know, bad things happen in unincorporated county land. We really have very little control. There's very few environmental regulations, very few transportation guidelines. There's no public transit. What do we get when we annex that? We do get the environmental standards. We get

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the quality transportation network that that the city has worked so hard to, to implement in terms of our codes and our regulations. But really importantly, we get a brand new trail along the Colorado river and that 200 foot critical water quality zone, which are extremely important both for recreational and environmental purposes. And I just want to note that the the agreement requires them to build and open the first two miles of the trail within 18 months after we do the tirz. So this isn't something the trail is not something that's going to be way, way down the road. You know, hopefully two, two and a half years away from actually having two additional miles of trail, 260 acres of open space, which again, there are no parkland dedication requirements. When you're working in county land, you know, we, they, we get nothing this way. We have the insurance. They're basically matching our

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parkland dedication requirements right now. And the regional stormwater system. We have a regional stormwater system and developments like the the triangle, I believe the central market, the domain and those are top tier water quality standards. We're not kind of cobbling it together kind of property by property, little dinky little detention pond by detention pond. This is a a comprehensive, well thought out system of stormwater management. And again, these are all huge benefits that we don't get if we don't come to an agreement with the property owner. I think the benefits far outweigh any costs. And in full support of this project.

>> Thank you, mayor pro tem. I'll consider that to be a close on his motion. So we'll go to a vote. Motion has been made and seconded. Mayor. Yes.

>> I'd like to offer an amendment.

>> Okay. Do you have do you have an amendment.

[6:43:55 PM]

>> It's coming down.

>> Okay.

>> I can it's very simple. Describe it. It's a motion to amend exhibit B to the development agreement to strike military installations as a permitted use.

>> I the. We'll wait till we see. We'll get we'll get that. So we're sure that it's clear the motion has been made that we amend the main motion, which is to authorize the negotiation and execution of the development agreement. Is there a second? Is there a second? Council member? Caldwell, you. You can speak up. Yeah. Councilmember qadri seconds the motion. So the discussion will be on the motion to amend the main motion is she had somebody have it.

>> Yes, sir.

>> Yeah. Councilmember alter.

>> Could I ask a question, miss link?

>> Sure.

[6:44:57 PM]

>> Okay.

>> I don't know if we have a formal definition or not, but. If I mean, obviously a military base is a military installation is an office owned by a branch of the military where they just have an office. Is that a military installation?

>> It can be the definition. The description in the code is actually pretty broad.

>> Okay.

>> Thank you very much.

>> Okay. Any.

>> Similar question would be if it was just an office, couldn't that also be designated as administrative services?

>> It could.

[6:45:57 PM]

>> I guess one of the questions we have is would it. Councilmember Laine.

>> I it's okay, I'll hold it. Go ahead. Mayor.

>> One of the questions I guess we ought to have is, is there a use? I mean, I'm I'm must admit I'm worried about what the definition of military is, is as well both ways. Right. What goes out there, but what also might not be able to go out there and, and the answer did not give me great warmth.

>> I can read it to you. It is a site for sorry, use of a site for the provision of military facilities by the federal or state government.

>> Okay.

>> Mayor pro tem.

>> Putting aside the the merits,

[6:46:59 PM]

if the state or federal government wanted to use the land, does our ordinance stop them from using the land for a military purpose?

>> No. They can use, buy and use land just as they do throughout the city.

>> Thank you.

>> Mr. Suttle. You coming up? You want to address this before we take a vote?

>> I think if it would make it easy for a vote in favor, we'll say no military installations. And if something comes up in the future as part of our partnership, we'll be back and see what you think about it.

>> All right, members, you have in front of you, what is the motion that I'm assuming council member Siegel made when he made his oral motion? And council member qadri was seconding, and I'm correct about that. Right.

>> Thank you.

>> Mayor. Good. So you have it in front of you now, any further discussion? We're voting on the motion to amend

[6:48:00 PM]

item number 38 by Siegel. Without objection, the motion to amend is adopted with two absent. That will take us back to the main motion on item number 38, as amended. Item. So it. And I'll ask if there's any further discussion on the main motion, as amended. Hearing none without objection, item number 38, as amended, is adopted members, that will take us to item number 39, which is the authorization of approval

>> Of authorization and negotiation, of negotiation and execution of an interlocal agreement with Travis county. The mayor pro tem moves approval of item number 39. Is there a second? Second by council member Ellis? Discussion on item number 39. Hearing none without objection. Item number 39 is approved. That will now take us to item

[6:49:01 PM]

number 60. Members, we have closed the public hearing on item number 60. Items number 38. Item number 38 needed to be approved before we could go to item number 60. Item number 60 is to approve an ordinance annexing 2614 acres of land. Is there a motion? Motion is made by the mayor pro tem. Is there a second? Second by council member? Alter discussion on item number 60. Without objection, item number 60 is adopted with two members absent. Thank you all very much. Members, that will now take us to our zoning. Our 6:49 P.M. Time certain on zoning, you will recall we have already handled item 61 through 64, item 70, item 73, and item 74. So I will recognize miss Hardin on the remaining items on our

[6:50:03 PM]

zoning agenda.

>> Thank you, mayor, mayor and council. Joy Hardin Austin. Planning your zoning and neighborhood plan amendment portion of agenda begins with item 65. As you mentioned, item 65 is npa20260 022.0 1sh. This item is offered for consent on all three readings. The related rezoning is item number 66 C one for 2026 .0010 point S H. Again, this item is offered for consent on all three readings. Please remember we discussed this earlier. The city received a neighborhood postponement request to your July.

>> Could everybody hold the conversations? Don't do them until you leave the room. Thank you.

>> So again, please remember on this item, the item that the city received a neighborhood postponement request to your July 23rd council meeting. This

[6:51:03 PM]

is the neighborhood's first postponement request. Staff is offering this case for consent on all three readings. However, council may choose to postpone or proceed with the item today. Also, please remember there's a valid petition of roughly 80%, but six votes is required for passage. So again, this item is offered for consent on all three readings. Item 67ac1 for 2026 0017. This item is offered for consent on all three readings. Item 68 is C one for 2026, 000 for. This item is offered for consent on all three readings with the following motion, which reads remove personal services from the list of prohibited uses in part two a of the draft ordinance. And with that again, item 68 is offered for consent on all three readings. Item 69 is C one for 2026 0005. This item is being offered for consent. First reading only. Item 70 was postponed earlier.

[6:52:06 PM]

Item 71 is npa20250031 .01. This is being offered for consent on all three readings. The related rezoning is item 72 C one for 2025 0088. This item is being offered for consent on all three readings. 73 and 74 have were postponed earlier, so item 75 is C one for 2025 0113. This Atmos offered for consent and all three readings. Item 76 is C one for 2025, 009 for. This item is being offered as a postponement by council member. Siegel to your September 10th council meeting and just please no. On this postponement to September 10th, additional notice will be provided prior to this item returning. And this concludes the reading of the portion of the zoning and neighborhood plan amendment agenda. And as always, this is at your discretion.

>> Thank you, miss harden. Let me ask if anybody has any questions of her right now. Okay, members. I'm going to

[6:53:07 PM]

read the consent agenda and call for a motion. The motion will be item 65, 66, 6768 on all three readings. Remember that item number 68 has the motion that miss harden read into the record on item number 66. I just point out the motion that I'm currently entertaining would be one to pass it on consent on all three readings. However, there is a neighborhood request for a postponement and there's a there's a valid, valid petition in case somebody wants to change what I'm getting ready to. What I'm saying. Item number 69 is first reading 71 and 72 and 75 on all three readings. Is there a motion for. The consent agenda is read. Motion is made by councilmember qadri. It is seconded by councilmember Siegel 76. What did I say?

>> I don't.

>> I don't think I said

[6:54:07 PM]

anything. Oh well, that's no wonder council member Siegel moved so fast.

>> On it.

>> I'm sorry. Let me let me ask. We've got a motion in a second and I blew it. So let's do it this way. Council member Siegel moves that we amend the consent agenda. Motion to add item number 76 as a postponement to September 10th. Council member qadri seconds. The motion to amend the consent agenda as it was read. Is there any discussion on the motion to amend? Hearing none. Without objection, the motion to amend the consent agenda as read is adopted. So now the consent agenda includes item number 76, which is a postponement to September 10th, 2026. Now, that being said, let me turn to the city clerk for public comment.

>> On item 65. We have Diana molina. Diana, are you there?

[6:55:20 PM]

>> Yes. Hello? Can you hear me?

>> Yes.

>> Okay, I apologize. I had to run out. Okay. My name is Diana molina. I've lived here since I was a teen, but I wasn't able to call myself a homeowner until recently. And I reside here in district nine. I live in exactly the type of housing the opponents of Rohan vela are asking you to reject. I'm here to state that medium density housing is the only way that I could access. Residing in Travis heights. Opponents to ms3 are saying that it's too abrupt. They're saying that it leaks from 1930s estates that are 2 to 3 times bigger than my condo, to a four story building is too much. And yet here I am, a few blocks away, like a breath a few blocks away, sharing walls with over 200 people in my community, our presence delivers the eyes on the street that generates more safety for all. Affordability unlocked is not a great not a greedy developer loophole. It

[6:56:21 PM]

is a welcome mat put out to encourage more people like me to access this kind of community. So I just want to say my neighbors are public school teachers and nurses, retirees, students and renters. We are on first name basis. We look out for each other. That's what density looks like. The 64 families that and don't have access to a seat at the table today. But this board can speak for them by voting yes. Thank you.

>> We'll move on to in-person for item. 65, we have Nick Wang, Joshua Goldenberg, srikar nalluri, robin stallings, don garner, Patricia Murphy, geordie Tello, shiva Mayer, Ben may, Jeff Mettler, Sarah rondella. Please make your way to the front and state your name before you begin.

>> If your name has been called,

[6:57:23 PM]

please come forward.

>> So I'm going to waive my time as long as it's on consent. And so is don garner.

>> Very good. That's great testimony.

>> My name is jordi Tello, resident of district nine. I'm really happy to see this housing come up to a vote. I yield the rest of my time again.

>> You guys are on a roll. Let's see what you do.

>> I apologize, mayor, my testimony may not be quite as short. Thank you. Anyway, though. My name is shiva.

>> I have.

>> You here. District nine. I live approximately 100ft from development. I'm here on behalf of several other nearby neighbors tonight. We're currently opposed to item 65 and 66. Very much in favor of affordable housing on this lot, though, and we've been working with the developer to get to a place where we can support the support the proposed amendments as a process matter. We believe this item cannot be considered. This evening, the land development code lays out published notice requirements, particularly surrounding naming the applicant and providing contact information for further information that have not yet been met. We believe this is a

[6:58:23 PM]

reasonable and equitable policy that ensures that the public at large has the opportunity to comment on proposed land use changes. We believe this matter needs to be postponed until the notice can be corrected, and the mandated 16 day period has elapsed. We've suggested the next available council meeting after that.

>> Thank you, thank you. And I think I talked over you. Would you state your name again for the record?

>> I'm sorry. Yes. My name is shiva mayor.

>> Thank you very much. I apologize for talking over you.

>> All speakers for 65 have been called. We'll move on to 66. Remotely. We have priyanka shanmugasundaram.

>> Hello.

>> My name is priyanka. I'm a resident of district three. I just want to speak in support of item 66. I believe it's in the city's best interest to make sure that this rezoning is

[6:59:23 PM]

set and ready to go, and it's in the best interest of Austin ISD. With that, I will yield my time.

>> Thank you very much.

>> Diana molina, item 66.

>> Oh, I didn't realize I sent up twice, but again I'm voting again in support of Rohan veil, just restating my earlier comments.

>> Thank you, thank.

>> You, thank you.

>> Okay.

>> Next we'll move to in person on item 66.

>> I'm seeing qadri.

>> Nick Wang, Joshua Goldenberg, Greg Anderson, srikar nalluri, robin stallings, don garner, Patricia Murphy, jordi Tello, shiva mayor Ben may, Jeff

[7:00:25 PM]

Mettler, and Sarah rondella for item 66.

>> Robin stallings and don garner waive their time as long as it's on consent.

>> Jordi Tello, resident of district nine. I'm. I'm in support of this. I yield the rest of my time.

>> Thank you, thank you. Yes, sir. Excuse me. It is.

>> Evening council. Thank you for your patience and endurance. Envision.

>> Would you put the microphone in front of you and state your name for the record?

>> Do I have 4 minutes or 2 minutes?

>> You have two minutes.

>> Well, in short, look, our neighborhood, we love the idea.

>> You need to state your name.

>> Oh, Ben may, thank you. We are fully supportive of affordable housing. We are fully supportive of some increased density on this property. We'd love to see the church. I commend the church for wanting to put this towards affordable housing. End of the day, we support a lot of the

[7:01:27 PM]

ideas around this. It's just they're stuffing way too much into this particular site. This is already extremely challenged neighborhood. We park on the street. We have very few of us have parking spaces off site or off street. It makes a lot of sense to put this here. It just doesn't make sense to include this housing with the pre-k that they're talking about. They kind of go back and forth about, oh, we don't need parking spaces because we're so close to transit corridor. Our our people aren't going to need cars. We're magically not getting cars. We live in Texas where magically not going to need cars. But then you talk to them, they're like, no, our investors say we do need parking. So actually we do need to do it. All the neighbors have really requested, and I don't know where my presentation is, but really, I mean this when left to their own devices, this is what this developer drops, you know, giant towers to the sky.

[7:02:27 PM]

There's no community involvement. They have dumpsters out front. Parking is all stuffed below. They're hiding these people in this building. They're not communicating with the neighborhood. The neighborhood would love to welcome these neighbors. What we. They're stuffing way too much into this site plan. What? This is some of their 150 foot long, soulless corridors, you know, I mean, at least they're doing some sort of articulation, but it really doesn't mean. I mean, it kind of reads more like a penitentiary kind of hiding. Our poor people in the sky. Would love to see more articulation on this. Bring it down a story and approach this missing middle. I appreciate your vision for pursuing the missing, middle, missing, middle, affordable housing. They're not mutually exclusive. I would love to see you marry those two things, especially on this site.

>> Thank you speaker.

>> Thank you.

>> We have remotely on item 66, Carly Gratton.

>> I yield my time as long as we are on consent. Thank you.

>> Thank you.

[7:03:33 PM]

>> Moving on to item 76. Speak on the merits of the postponement of 76 Edgar Handel. Edgar, are you there?

>> Hello.

>> Hi.

>> Hi. My name is Edgar Handel. I'm a resident of district three, and I wanted to speak against the postponement of the rosedale case item 76. Wright.

>> Yes.

>> Yeah. So I just wanted to say that I've been tracking this case for about four years now. It began with the Anita coy case in the rosedale case. And in my mind for a long time, just because it's kind of upsetting to me how long it's taken for this case to move forward. It's just really not a great look that hearing Anita,

[7:04:35 PM]

we got and, you know, in my neighborhood in del valle, where I live with my wife and my kids, one of whom is actually an aic student at the valley elementary here in the valley. We moved pretty quickly and, and did the right thing in developing a lot of housing on the Anita coy site that provide housing for teachers and new residents and funding for aid. But the rosedale case has just been so fraught with delays and obstruction, and it's just been really frustrating to watch, you know, I think. You know, if we can make a mid-rise apartment happen in east Austin for the good of aid in the city and our students, it feels like it should be able to happen in rosedale. And I don't really see why. More delay makes sense. If this is about the lawsuit, I don't really see how that's a city issue. You know, if we delay, then we're

[7:05:36 PM]

just playing with fire because without that funding, we're risking jobs. Our schools. And that's not something I think that we should stand for. You know, if if aic loses in court, then that's that's the courts deal. Like let's not let's not be part.

>> Of it. Thank you.

>> Thank you very much. Thank you.

>> All right. Thanks.

>> Moving on to in person Adrian Macias, Bianca Guerrero, or I'm sorry, this is in person item 76. The merits of the postponement. Adrian Macias, Bianca Guerrero, Carlos pinon, Maddie Gutierrez, Pedro Hernandez, Susana Almanza, Brian Degman. And we have a group that requested to speak in a particular

order. We have Adam hutnik, Laura Ali, Michael Ali, Daryl a azhar, Chris Allen, Daniel rey, Christina Singh, Carl Reynolds, are you present?

[7:06:38 PM]

Okay. On deck we'll have Jeffrey archer Leslie Kearns, Christopher Colvin.

>> Good evening, mayor.

>> And council. My name is Carl Reynolds. I live in the south part of rosedale in district ten, and we've been I've kind of been in the thick of this proposal for some years now. I was originally the one that asked aid to tell us what's going on five years ago. I don't want to I don't want to relate that whole history. I will just say, really appreciate you all. Even considering a postponement of this, there is litigation going on that really needs to be resolved, I think before the zoning, before it makes sense for you all to do all this zoning activity. You need to know what what's possible. And I will tell you, we are really sincere, really earnest about coming up with a better

[7:07:38 PM]

solution for this property than what's been proposed. We we've been working diligently. I know Adam hutnik has visited with some of you on our behalf, and I should have said I'm representing both the rosedale neighborhood association and playfair with rosedale, another neighborhood group that arose spontaneously in reaction to the proposal. That was before you. I'd be happy to answer any questions. I've been immersed in this thing for the last few months. Thank you.

>> Continuing on item 76, the merits will permit. We have Fabrizio Bassetti, David Weinberg, Nick Wang, Joshua Goldenberg, Molly martin, Carrie key, Luis Navarro, Susan schiffrin, Laura martin, Charles vorspan, Barbara Macarthur, Greg Anderson, Carol. Wagner, Emily vorspan, srikar nalluri.

[7:08:41 PM]

>> If your name has been called and you want to speak, please come forward. On the merits of the postponement.

>> Hi, my name is Barbara Macarthur. I would urge you to respect councilman Segal's request for the postponement because of the complex issues that are going on now with this property, and I think it's in the best interest of everybody to have the postponement. Thank you very much.

>> Thank you.

>> Continuing on item 76, we have Suzanne Richardson, felicity Maxwell, John Fretwell, Jeffrey Bowen, Deborah Destefano, jordi Tello, Roy Whaley. Speaking on the merits of the postponement of item 76.

>> Good evening, mayor and council members felicity Maxwell, D, five, and resident, or a board member here to speak against the postponement of this zoning case. We're deeply concerned about the extended delay to the Roseville project. As you're all aware, Austin ISD

[7:09:42 PM]

is in a significant budget deficit, and redevelopment opportunities such as this parcel are crucial to mitigate cuts that will otherwise be required. That means teachers, librarians, custodial staff that will no longer be in classrooms and schools this fall because of the postponement being proposed today. And as an aid parent who served on the district's budget stabilization committee, I'm truly disappointed that an opportunity to show support for the financial needs of our school district is being pushed aside in favor of delay and denial. This district serves almost 70,000 students and their families and employs over 10,000 teachers, administrators and staff. The \$26 million potential sales of this site would offer financial certainty at a dire time for this district. Furthermore, the inaction also today also blocks housing in a transit rich central part of the city. We understand that trade offs are necessary, that not every project moves forward smoothly or as it first imagined, but this needless delay comes at too high of a cost for the district. For all the public school families in Austin, for

[7:10:42 PM]

all the residents who won't have an opportunity to live in the wonderful neighborhoods like rosedale, we urge the council to move forward as quickly as possible on this item. Thank you.

>> Mr. Bowen.

>> Good evening, Mr. Mayor.

>> Council members. Jeffrey Bowen, us district eight, also the president of a N C. I am here in support of Mr. Siegel's postponement request. We believe that the neighborhood needs to have the the court battle taken care of and get that done as swiftly as possible. So we are here speaking in support of the postponement of council member Siegel. Thank you.

>> Yes, sir.

>> Hello. Jordi Tello, resident of district nine. I am in strong opposition to the postponement. I think that no neighborhood, no district should be exempt from adding housing to the city. I think this sets a bad example that

[7:11:42 PM]

some neighborhoods and some districts are more special than others, and more worthy of keeping wrapped in amber, instead of allowing everywhere to grow and to accommodate all the new people we want to welcome into the city, this is going to hurt aisd. This delay. \$26 million sale that is getting delayed. That means that the cuts that they're going to have to make to stipends, to teachers, it could be a lot worse. It could be a lot more painful. And I know some of you, some of you used to serve as teachers. And I would really hope that in the end, you have the best interests of aid in mind. And I hope that you care about adding housing and adding people to a rich area like rosedale. Thank you.

>> Thank you.

>> All zoning speakers have been called at this time.

>> Thank you members, you've heard, as you've heard, all of the speakers have been called on the consent agenda for the zoning item. We have a motion.

[7:12:42 PM]

And a second. Let me. I want to call on speaker. So if you want to speak, please let me know. Councilmember Siegel council member qadri then councilmember Velasquez.

>> Thank you, mayor. I'll speak on item 76. I really want to thank everyone who testified today, both for and against postponement, and I want to thank my colleagues for supporting this this postponement to separate September 10th. And I want to explain to the community why we are taking this action. I think I speak for all of council. We really do empathize with the school district and its financial situation and how the development of an old rosedale site for housing will make a very positive contribution to to the district's cash flow. And I also think I speak for council when we say we do intend to build housing there, but the reason for postponement is a recognition of the very difficult situation for the people who neighbored the old school, who have had to face the twin burdens of being sued by the district in district court here in Travis county. At the same time, they have to

[7:13:43 PM]

negotiate a zoning case that does impact their neighborhood. Now, almost 200 households have had to find lawyers and participate in the court process, and that does take a lot out of them. And given that burden, from what I've seen, it's very hard for them to sit down with the developer and negotiate setbacks and drainage and transportation improvements. So part of this postponement is to acknowledge that tough situation for the neighbors. But the main goal is to allow the school district and the neighborhood to sit down and negotiate a win win situation, a solution that builds housing and generates revenue for the district, but also acknowledges that, frankly, the district may not win the right

to build what the applicant is proposing to council today. The Travis county district court is set to decide that issue this land use rights issue either in August or September. And so my hope is that in the intervening time, the neighbors in the district will sit down and work something out, out of court before any hearings this fall. And I've spoken to the attorney for many of the neighbors, Renee Hicks. He said he's ready to do that. I've spoken to the

[7:14:43 PM]

superintendent, Mr. Segura. He said he's willing to do that. And with this postponement, we've given them a couple months to work it out. And I'll also say that council did adopt a missing middle resolution. And I've heard from some Rosedale neighbors they would love to see missing middle style development. Of course, as council, we can't predetermine or dictate the exact type of project, but it would be great if the district and the neighbors could meet in the middle. Thank you mayor.

>> Well, say councilmember Qadri, followed by councilmember Velasquez.

>> Great. Thank you. Mayor, speaking on item 66, I just really want to thank all the speakers that were here today. I know the neighbors and the applicant have spent a lot of time on this project, and I and I want to, but I want to highlight a voice that we unfortunately didn't hear from today. And that's the neighbors that will call this project home. Time and time again, I hear from our constituents about how difficult it is to find a place they can afford while being an artist or a student, a waiter, or just a parent. But I also hear how strongly people want better transit and better access to transit. What I see when I think about this project is an opportunity for our working

[7:15:44 PM]

families to call Travis Heights South Congress and District Nine home. We've heard directly from workers on South Congress today who would like to call this home. It reminds me of the fights affordable housing advocates and low income folks had to have to see Katy Lofts built in Hancock, which is which is also in District Nine. So I'm proud of the collaboration modifications made with that project between the neighborhood and the property. And I'm hopeful that kind of collaboration and success can continue here at Travis Heights.

>> Thank you. Thank you, councilmember. Councilmember Velasquez, the mayor pro tem.

>> Thank you, mayor, on item 66, I'm proud to vote in favor of this item because it delivers 64 income, restricted affordable housing units and an on site pre-K just one block off South Congress and within walking distance of two aid schools. Two weeks ago, we voted to dismantle some of the exclusivity that pushed displacement and gentrification onto the Eastern Crescent, while other neighborhoods were insulated from growth, I. I said, we must be willing to build affordable housing in

[7:16:45 PM]

every part of Austin. This is part of what that commitment looks like regarding item 6776. As a product of all aid schools in a long time aid advocate, I reluctantly support this postponement, but I will say that we cannot continue to hinder aid's ability to sustain itself. We're talking about teacher and staff jobs that are in the balance with this postponement, and I do not intend to do it again.

>> Thank you.

>> Thank you, councilmember mayor pro tem.

>> Thank you. Mayor. I echo councilmember Velasquez's comments with regard to the situation of aid. I want to help the district as much as we possibly can. They're in a very, very difficult situation and we need to help them out. I also wanted to say I think it's a great project that's right next to the 803. I'm talking about the rosdale project. It's right next to the 803, one of the city's rapid transit lines. It's right next to 801. And that runs on north Lamar just a little bit down the way.

[7:17:45 PM]

It's not far from where the light rail will run at some point close to the university. Lots of great shops all along that entire area. This is just a great place for housing. It's a great opportunity to get affordable housing into west Austin, which we have a real hard time doing. So when it does eventually come back to the Dyess, it has my strong support.

>> Thank you. Mayor pro tem all right. A motion has been made and seconded to adopt the consent agenda as it was read and amended. Anyone wishing to abstain from a vote on any item on the consent agenda, anyone wishing to recuse themselves from a vote on any item on the consent agenda. Anyone wishing to be shown voting no on any item on the consent agenda. Very good. Without objection, the consent agenda is adopted.

[7:18:47 PM]

Members, that will take us to item number 56. Item number 56 is. Part of that is to conduct a public hearing. Without objection, we will open the public hearing on item number 56. The public hearing is now open, and I will turn to the city clerk.

>> Item 56. In person, we have Jacqueline Dudley, Audrey Arellano, Alexander miles Reid, Gordon, Jordan cook, Marion Sanchez, Adrian Macias, Susana Almanza, Bianca Guerrero, Carlos. Pinon, Maddie. Gutierrez. If your name has been called, please make your way to the front and meet.

>> Yes, if your name has been called, come up and grab a seat. Please go ahead and begin. Just state your name for the record.

>> Sure. Good evening, mayor Watson, mayor pro tem vela and council members. My name is Jacqueline Dudley. I'm the architecture practice leader at beck. Excuse me. And I've been

[7:19:49 PM]

working in Austin for almost 15 years. I'm currently also the board chair of the real estate council of Austin, and I'm speaking on behalf of nearly 2000 of our members of the real estate commercial real estate industry. I'm here today to express support for item 56, a city wide density bonus program. Rico truly appreciates the work of city staff to create a new and predictable density bonus program that applies citywide. The proposed program provides more flexibility and certainty, and through this broad range of heights and simplified affordability requirements, the measure of success of a density bonus program is its wide usage period. Making it easier to use ensures that more housing projects get built, which means greater supply and more affordable units, as well as tax revenue to fund important city services. To ensure this

[7:20:50 PM]

program accomplishes its main goal of providing more affordability, rekha recommends the addition of a fee in lieu option that allows builders to contribute meaningful dollars into an affordable housing fund, instead of building affordable housing units on site. This flexible option will allow for more construction of more density bonus projects, and will then allow the city to intentionally use those funds to deeply fund affordable housing units and provide housing for the austinites that really, truly need it most. A broad coalition that includes organizations across the business community, housing advocacy, and affordable housing have expressed support of a fee in lieu option for these reasons.

>> Thank you, speaker. Your time.

>> Good afternoon, mayor and council. My name is Alec miles, and I work in commercial interiors and development

[7:21:51 PM]

support here in Austin, helping developers, architects, contractors, brokers, and project teams move projects from ideas to reality. And one thing I've learned quickly is that uncertainty kills projects long before construction ever begins. And if we're being honest, uncertainty kills a lot. When timelines are unpredictable, entitlement paths are unclear, or programs become too difficult for teams to realistically

use. Projects slowed down, budgets tightened, and opportunities stop moving forward. And when projects stop, people stop. Construction crews lose work, businesses wait longer for customers, housing takes longer to come online, and the people trying hardest to stay in Austin get pushed further and further away from the city. They keep renting. When that happens, Austin loses more than buildings. We lose housing supply, we lose opportunities for our workforce, and we lose mixed use developments and future tax revenues that support the infrastructure, parks, emergency services and the public services that make Austin great. What I appreciate most about the proposed citywide density bonus program is that it creates greater predictability and flexibility. It gives our project teams clearer understanding of what

[7:22:51 PM]

can actually be built and how we can move those projects forward. Because the sooner spaces come online, the sooner people can move into them, work in them, and support the businesses around them and begin generating value back into the city itself, that flow matters. And I believe we should be doing everything we reasonably can to keep that process clear, functional and moving responsibly forward. Austin is still growing, and I love that people want to live here, they want to work here, and they want to build here, and that's magic. Thank you all so much for your time and the opportunity to speak today.

>> Continuing on item 56, we have Valerie Menard, Pedro Hernandez, Alexandra Boone, Katherine Sasser, David Weinberg, Matthew saint Germain, Harrison Hudson, Mackenzie comer, Greg Anderson, Betsy Greenberg with time donated from Barbara Macarthur. Are they present?

>> They are.

>> You have four minutes, miss Greenberg.

[7:23:53 PM]

>> Thank you. My name is Betsy Greenberg, and I live in district nine. I've spoken to you about the proposed citywide density bonus program before. In case you don't memorize what I said, I'll remind you that before taking testimony about acacia cliffs zoning case last may, mayor Watson mentioned that dbi 90 has been an extremely unhappy experience has created significant unintended consequences. Division in our community and contributed to making some people feel helpless. He committed to a resolution which happened directing staff to fix the problem. The staff proposal does not fix the problem. Instead of working to avoid displacement and the loss of existing affordable housing, the new proposal is focused on giving developers more options, allowing height of 15, 45 and 60ft, in addition to the 30 foot option allowed by dbi 90. The planning commission even recommended adding more levels

[7:24:54 PM]

up to 190 foot bonus. At most, 20% of newly constructed units need to be income restricted. In the acacia cliffs example, less than half of the existing naturally occurring affordable housing would be replaced with income restricted units. This code change is not ready for consideration. There are two versions posted with multiple substantive amendments that got posted yesterday, and you passed a resolution to have a stakeholder process with the goal of revising for 18, thus altering the requirements for using the density bonus program very quickly on those items. I don't agree with the PC recommendation, allowing for significantly more height. The rationale that a 90 foot height bonus would eliminate the continued use of L. I'd. A zoning is as much of a fantasy as the rationale that vmu two and db 90 would end the use of

[7:25:57 PM]

mf six. I also don't agree that allowing more use of fee in lieu. That option lowers costs for developers and fails to deliver on site affordable housing. The vela amendments are specifically designed to help developers and do nothing to prevent displacement. The draft also doesn't specifically prohibit the use of citywide density bonus programs in locations with different programs, such as etod or uno. Please postpone this item. Wait until you can also make the changes to section 418 that were described in item 80 that you passed earlier today. Please take the time to get this right so we don't need to see citywide density bonus program phase two in a few months. Thank you.

>> Continue on item 56, we have Chris Paige, William bunch, Patty sprinkle, Eric Paulus, Brad Massengill, Victoria Finn,

[7:26:58 PM]

Tonya Vasquez, Francis. Acuna, Peter hunt, Megan. Meisenbach, Zenobia Joseph, Brad. Stein, Katy Kam. All names have been called on item 56 if you wish to speak.

>> Thank you. Those are all the people that have signed up to speak at the public hearing.

>> We have one speaker. I'm sorry. Yes.

>> Hi. I don't know whether I'm fast or you were slow.

>> I was it was raining. You know, I just I barely got here. Go ahead. I'm Brad Stine. I'm here to speak in support of the item for the citywide density bonus program. I'm a real estate developer here in Austin. We've availed ourselves of the downtown density bonus program in the past, as well as other density oriented bonuses such as D, B nine, D, vmu two. And so I'm speaking in support of of a citywide downtown density bonus program, because I think there's some realities that I just wanted to point out here

[7:27:58 PM]

for the benefit of the council that I'm sure you all know about. But, you know, one of the realities is that, you know, developers are very aware of this balance. I would say this trade that goes on with increased density or height and affordability, on the other hand, and this program has been in place for many years. I think it benefits developers, it benefits the city. And so the other reality is where the market is today. I think it comes as no surprise to us that we don't see the cranes in the sky, and we don't see a lot of new projects happening right now. And so as the developer, us wanting to put additional housing units on the ground, you know, what we're looking for is consistency. You know, we're looking for a program that everybody can really understand, both from the developer standpoint and kind of the equity backing standpoint. So if you look at the capital that comes in to

[7:28:58 PM]

support these projects, that builds density and housing units, the capital is mostly from outside of Austin. So, you know, the capital wants to know number one. You know, does our city management, does our city staff and our city council support density? And I really commend this council for having supported density. And the second thing that, you know, equity wants to know is, do I have an understanding of what the requirements are? And so, you know, this program provides that understanding.

>> Thank you very much. Appreciate you being here in the rain.

>> All speakers have been called.

>> Thank you. All right. All the speakers have been called on item number 56. So without objection, we will close the public hearing on item number 56. The public hearing is now closed and I will ask for a motion. The motion would be for adoption of the staff. Version number two of the item. The motion is made by council

[7:29:59 PM]

member Siegel seconded by council member qadri members. We have a number of proposed amendments to the main motion. The order. I'm going to go in to take up those amendments is the following. So if you want to get them in front of you, the first amendment that we will take up will be the one that I'm offering. We will then take up councilmember alter's amendment number one, then council member alter's, amendment number two and qadri proposed amendment number one, then mayor pro tem proposed amendment number one and mayor pro tem proposed amendment number two. Unless there's objection, that's the order. I'll I'll take these in. All right. The first motion to amend is

labeled mayor Kirk Watson. Motion number motion number one. May 21st, 2026. Council meeting item 56. It makes a change in the height limits in says under part C,

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height limits any structure that's located less than 50ft from any part of a property may not exceed 60ft. And then it adds a part two any structure that is located less than 75ft from any part of a property may not exceed 120ft. But this amendment will do is it will change the compatibility standards from the staff proposal to the db standards. The staff proposed compatibility restrictions mirror the original db90 density bonus program. The compatibility and db90 program proved to, in my opinion, to be out of alignment with the goal of integrating denser developments into residential areas with reasonable impact, aligning the compatibility of the citywide density bonus program with db tod will standardize compatibility for the city of Austin bonus programs, and I would move approval of Watson amendment number one to item 56. It is seconded by council member Velasquez. Is there discussion on the motion to Watson motion to amend number one. Hearing

[7:32:01 PM]

none. Without objection. Watson. Motion to amend item number 56. Motion to amend number one of item 56 is adopted. That will take us now to alter amendment proposed amendment number one. What I'm referring to as that, just for purposes of clarity, is the motion sheet that's labeled motion sheet. Add fee in lieu for rental units, so that everybody can have that in front of them. Councilmember alter, you're recognized on your proposed motion to amend number one.

>> Thank you very much. Well, as titled, this allows for a fee in lieu option through this program. And I think if you look at the success of fee in lieu from things like the downtown density bonus programs and how that has been able to be really well utilized in creating very affordable housing, this is going to be a tool that I think will allow those dollars to be used to create the greatest benefit, and I would move. Adoption.

[7:33:01 PM]

>> Councilmember alter moves. Adoption of alter. Proposed motion to amend item 56. Number one, it is seconded by the mayor pro tem. Is there further discussion? Hearing none. I'm sorry, councilmember duchen okay, fair enough. Hearing none. Alter motion to. Without objection alter motion to amend number one for item number 56 is adopted, with council member duchen being shown voting no. That will take us to alter proposal number motion to amend number two to item number 56. Councilmember alter, you're recognized.

>> I'll move to amend with alter number two and I'll talk about in a second.

>> All right. Is there a second? Second by councilmember qadri. Councilmember alter, you're recognized on your motion to amend number two for item 56.

>> So what this is going to do is, as part of the work that I know councilmember qadri is hoping gets done, and I appreciate the amendment he's about to offer. We want to have

[7:34:01 PM]

staff study how we can use the fee in lieu dollars to get more 30% units. We have seen in the blueprint that that is the area of biggest need of the city, but we're not getting those units built. And so my message here for staff as they're working on this is this is not supposed to be how we can use fee in lieu dollars to support the 30% units that we're kind of already getting. This is to change developer behavior, where you had a development that might have had 10%, 30, 10% of the units be at 30, and, you know, another 30% at 50. How do we make that 20 or 30% at that 30% level? What kinds of requirements or incentives do we need to incentivize to make this happen? And so with that, I would move adoption.

>> Councilmember alter moves adoption of alter proposal proposal to amend number two for item number 56. It is seconded by the mayor pro tem, is there further discussion on alter motion to amend number

[7:35:02 PM]

two for item number 56? Hearing none. Without objection, alter motion to amend number two for item 56 is adopted, with councilmember duchen being shown voting no. Members. That will take us to qadri. Motion to amend number one to item number 56. Councilmember qadri, you're recognized for your proposal to amend item number 56.

>> Great. Thank you. Mayor. This amendment direct staff to look closely at the fee in lieu option as it relates to our Austin housing strategic blueprint blueprint goals, among other things, in our council, Shea staff has provided some data to show the significance of our on site density bonus units contribution to our affordable housing goals thus far, and I want to note that we have to remove a uno units from the d9 numbers since it was so successful, and I also just want to add. Also really excited about councilmember Walters amendment on fee in lieu language. And I want to

[7:36:04 PM]

make sure that we continue to thoughtfully and intentionally review this policy option and get recommendations from our expert staff members.

>> Councilmember qadri moves to amend item number 56 with qadri motion to amend number one second by councilmember Velasquez. Is there a discussion with regard to qadri motion to amend item 56 with qadri. Motion to amend number one. Hearing none without objection. Qadri motion to amend. Number one is adopted, with councilmember duchen being. Councilmember duchen being shown voting yes. Very good. All right, so.

>> Councilmember duchen voted for it.

>> Yeah. So. So I move to reconsider. Yeah. Thank you. Thank you. Council. So councilmember zo qadri motion to amend item number 56 is adopted. That will take us to the mayor. Pro tem mayor pro tem vela proposed amendment number one to item number 56.

[7:37:05 PM]

It is labeled item 56. Citywide density bonus provide a density bonus height at 250ft rather than 105ft. So we want to get in front of you. Mayor pro tem, you're recognized.

>> Thank you. Mayor, I have an amendment with regard to the different height levels that we lay out. What the amendment essentially does is it adds a D, B, C 190, which it's also limits the height of the dbc190 only to commercial service cs and cs one properties. Those are 60ft. So this would allow for up to a 250 foot building. The. The, the thinking behind this is that. And let me speak from the district four experience. First, we've had multiple cases involving requests for up to 250ft of

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height. The Anderson square there on the corner of Anderson and Lamar, we went to 250ft in height. We've had multiple other requests. I distributed a list and posted it in the backup, where they've really been all over town, where we've had, you know, 180, 200 different amounts of. And right now, the way that folks are getting to those heights is they're using the light industrial and then a pda or a commercial highway zoning and a pda. And the problem with those two types of zonings is they don't have any affordability requirements. They don't have any tenant protections. You know, they don't have all the things that we've rolled into that we've, I think, very thoughtfully and carefully rolled into this whole kind of density bonus rewrite are missing from those. And those are some of the, the biggest projects that we're permitting.

[7:39:09 PM]

We from the district for perspective, we have gotten restrictive covenants as part of those developments as they've moved through the process. The, you know, neighbors and other interested parties have come together with the developers to try to kind of recreate the kind of normal benefits, the community benefits that we would ask from a developer when they're asking for that kind of height. I don't know if that's been going on citywide. And I, I just want to get away from this kind of ad hoc, you know, if they ask, we'll give them affordability. If they ask, we'll give them kind of the improved sidewalks and that kind of stuff. And I want to really bake it in and make sure that we have the community benefits that that neighbors deserve. When we have these projects move through. And so that's why I'm offering that amendment. And like I said, I'm this is limited. The, the, the base zoning, it would only be for commercial services, cs

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and cs one type properties.

>> Mayor pro tem moves adoption of vela amendment number one to item number 56. Is there a second? Is there a second? Councilmember qadri seconds. The motion discussion on the item. In that case, for those that were voting on the mayor pro tem motion to amend number one as he just described it, those in favor of the motion to amend raise your hand.

>> One, two, three, four, five.

>> Those opposed, raise your hand. There being five votes in favor, four votes opposed and

[7:41:13 PM]

two absent. The motion to amend item number 56 vela amendment number one fails. That takes us to vela. Amendment number two.

>> Mayor, just.

>> Parliamentary inquiry.

>> Sure.

>> Do we need six votes to pass an amendment?

>> Yes. You have to have a majority to pass it.

>> A majority of of the council, not the majority of the members present. That's right.

>> Thank you. Sure thing, mayor pro tem, you're recognized on your proposed amendment. Number two.

>> Amendment number two would build in a waiver to the compatibility requirements. That is what we do already with our kind of baseline compatibility requirements. We allow for a waiver. Again, there's many times when we don't want to waive compatibility requirements. There may be a number of times when we do want to waive compatibility requirements. Again, I appreciate the mayor's amendment setting out those guidelines on compatibility. But to the extent that there

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are situations where we do want to go ahead and allow them that extra space and that extra height, I think we should have the option to do that. So I would propose my amendment number two.

>> Councilmember mayor pro tem vela moves amendment to item number 56 labeled mayor pro tem vela. Amendment two. It is seconded by councilmember Siegel discussion with regard to vela proposed amendment number two to item number 56. Hearing none. Without objection, I vela amendment number two. That was a very aggressive quiet. No. Yeah, yeah. I mean, he he may have hurt himself. Yeah. Vela amendment number two is to item number 56 is adopted, with councilmember duchen being shown vigorously. Opposed. I appreciate the fact that you take a good joke, by the way, councilmember. Yeah yeah yeah

[7:43:16 PM]

yeah. I asked him if he dusted that thing off for item 56. All right, members, that will now take us back to the main motion. I think we're all getting a little punchy. That'll take us back to the main motion. And this is to adopt item number 56, as it's been amended by the various amendments. The vote will be on the main motion as amended. Is there any discussion on the main motion as amended? Councilmember duchen.

>> Finally, my time to shine.

>> 740 yeah. If you see me standing.

>> So, look, this is clearly designed to solve a city problem. And, and I suppose also to support certain kinds of development. And if I'm going to channel the mayor for a moment, we pass this and it's

[7:44:16 PM]

going to be a wonderful day to be a real estate developer in Austin, Texas. I think we're all aware things were tough for six months. Capital was getting a little more expensive. So was the price of concrete and steel. And worst of all, home prices were finally going down. But thank goodness we're here to come in

and rescue our rent seekers in the form of what I'm assuming are going to be 250ft towers, 105ft, developments that are coming to our neighborhoods. So like I said, I get that this is here to address an issue, a policy issue due to sb 840. And what concerns me is that we started with what I thought was a fairly sensible staff proposal that morphed into something that I can barely make sense of. What are we doing here? Who are we serving and what way does increasing the economic return and the base land value value of commercial property serve

[7:45:18 PM]

the vast majority of constituents? I'm sorry that sb 840 undermined the appropriative utility of our density bonus program, db 90, but this response just feels absurd to me. There are some aspects. There are a couple aspects that give me pause. One is the legal context. This conversation is happening in the wake of sb 840. We know that special interest lobby to the legislature to undermine db 90 S effectiveness. They removed one of the few tools that we have to address affordable housing that doesn't cannibalize existing, cheaper housing, that doesn't have to use bonds, and that doesn't require increased taxes on homeowners or renters. For what that's worth, many of those who put us in this position have expressed their support for this item, with the caveat that more height entitlements are going to surely serve our

>> Our constituents more. The next thing is the rapid pace

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that gives me pause. Have we considered how this program is going to interact with our earlier and nascent db tod entitlements? I can't figure out why developer would exchange 12% affordability for 120ft. If they can achieve 250ft with a mere percent. I'm afraid that the equity transit overlay is a dead letter. We are going to cannibalize our previous concern and replace it with the new one. So just as under db 90, we're going to cannibalize existing affordable housing that works for potential affordable housing that we currently manage. The scope is the third thing that gives me pause. I worry this endeavor ignores, like a lot of other efforts, the diversity of our city. I know I'm a broken record on this, but not everybody wants to live in mixed use apartments jammed up against their neighbors. The appeal of the city for many is the open space, the clear sky, the quiet leisure of private life. And while I appreciate that some are enjoying the bustle of an urban playground for the well-heeled, I know

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from talking to my constituents, a lot of people just prefer close knit communities with compact, shared common spaces. Even the the cottage core stuff. The missing middle. You know, is substantially different

than what we're talking about here. Many different people want to build their lives in many different ways, and I really hope we let them. And don't simply cater to a class of itinerant interlopers. All I'm seeing is more of the same. Whether we are building it under a pod or using vmu, or the upcoming rm zoning, or now it's going to be a menu of density bonuses. We're ordering the Texas donut by the by the baker's dozen. And I never thought I'd say this, but with this policy, I'm starting to think the Texas donut might be actually one of the preferred outcomes here. The burden we're putting on staff is the fourth thing that gives me some pause. This is a buffet of entitlements that isn't paired with increasing obligations. The density base to density plus 190 offers the exact same

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obligations as db base. We are relying on a percentage of somewhat affordable units to offset offset the increases in height. It's the nearby residents, and occasionally the folks living in the original building that are going to bear the cost of what we're giving away. And that's all to say. It's really clear that in these circumstances, the developer has incredibly little incentive to stay reasonable. That's going to leave it to staff to have to make these decisions. And they've got to hold a line and negotiate against very motivated developers who are clearly losing patience with our attempts to preserve the diversity of residential, living and lifestyle options that we've enjoyed for decades. Rather than funneling people into some kind of mixed use utopia, staff are going to be tasked with going back and forth with developers trying to put 250ft in the middle of neighborhoods until they give up or send it to council, where I'm not sure exactly what the outcome is going to be at that point, because our track record with the db 90 does not inspire

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me with a ton of confidence that we're going to side with neighborhoods when that happens. By my analysis, we declined one out of 60 db 90 applications, and that makes me suspect suspect that we're going to continue to give away the store and potentially trade away neighbors quietude to chase property tax revenue. I think all this boils down to and feeling like we're getting goaded into a panic here, and I wish we could be a little calmer. The entitlements like this are basically a one way ratchet, and we keep opening up more and more of the city to development of what may be a dubious value, especially when rents are down and immigration is down and land values have at least plateaued. We've let ourselves get convinced that unprecedented development is still needed, even as this acute crisis may be well behind us. And I fully get that. Like nationwide, broader housing affordability is a crisis. Absolutely. But it's not a fire. It's not a flood. Any tool we implement will take time and

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it's going to lag behind the market. If the last five years have taught us, certainly me anything, it's that we can only navigate macroeconomic forces. We can't control them. And if we keep giving away more and more to developers, when the market's low, will be shocked by what was what, we basically traded away for nothing. If we change our minds, if we have no ground to claim, wait. Never mind. These buildings should have been smaller down the line. It will be too late. We'll have lost our sky. And the last thing I'll say is that last night I was in a meeting. 40 people. There was really no appetite, from what I could tell for any of these changes. Before and after that meeting, I drove around. I looked around in my district to the places that have the no. And geo and lo and other zoning where the 105ft or the 250ft directly abutted single family homes and neighborhoods. I took some photos and like I joked, I thought really hard about a 4040 slide deck. But then I

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thought maybe this one time might spare you guys. But if you haven't yet, I would just encourage you to go look at your district zoning. See how this policy interacts with the Ed, zo, and geo and lo and cs zoning in your areas, in your neighborhoods before you move forward with more haste than caution. And we can't take back something that went a little bit too far the first time we tackled it. That's all I've got.

>> Thank you. Thank you, council member. Appreciate you. Any further discussion with regard to item number 56 as amended? Hearing none without objection, item number 56, as amended is adopted, with council member duchen being shown voting no. Members, that concludes all the items on the agenda for this regular meeting of the Austin city council on may 21st, 2026. So without objection, we are adjourned at 7:52 P.M. Good work everybody.